

# UNCLE SAM DETECTIVE

BY

WILLIAM ATHERTON DU PUY

AUTHOR OF

"UNCLE SAM'S MODERN MIRACLES,"

"UNCLE SAM, WONDERWORKER"

WITH FOUR ILLUSTRATIONS BY  
S. EDWIN MEGARGEE, JR.



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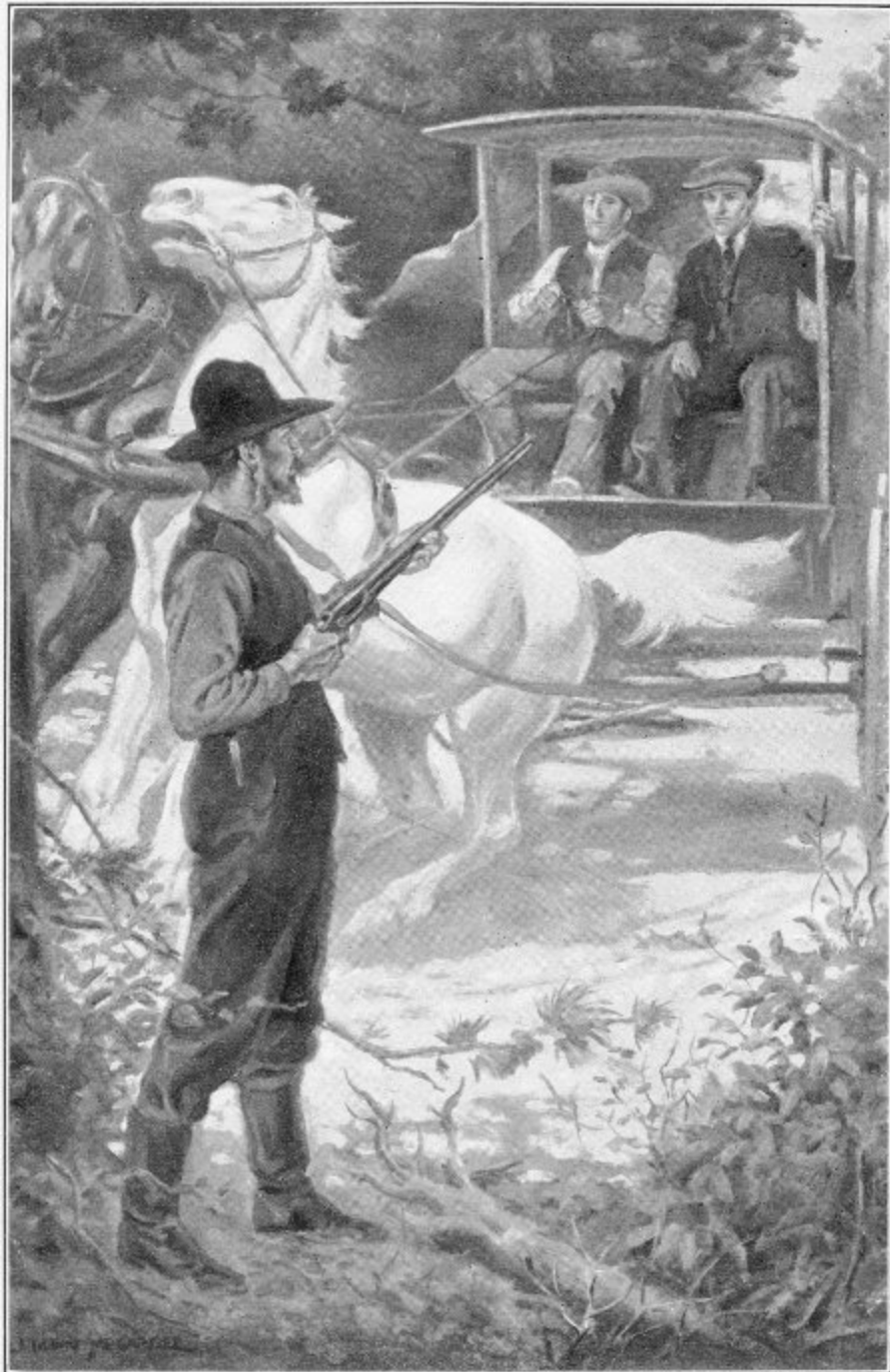
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DETECTIVE \*\*\*

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# UNCLE SAM: DETECTIVE

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**"'WHAT HAVE YOU GOT THERE?' ASKED THE MAN IN THE  
ROAD"**

**—Page 6**

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# INTRODUCTION

May I ask you to close your eyes for a moment and conjure up the picture that is filed away in your mind under the heading, "detective"?

There! You have him. He is a large man of middle age. His tendency is toward stoutness. The first detail of him that stands out in your conception is his shoes. In stories you have read, plays you have seen, the detective has had square-toed shoes. You noticed his shoes that time when the house was robbed and a plain clothes man came out and snooped about.

These shoes are a survival of the days when the detective walked his beat; for the sleuth, of course, is a graduate policeman. He must have been a large man to have been a policeman, and he must have attained some age to have passed through the grades. Such men as he always put on flesh with age. Your man perspires freely, breathes heavily, moves with deliberation. The police detective can be recognized a block away.

Or, perhaps, you have the best accredited fiction idea of the unraveler of mysteries. This creation is a tall, cadaverous individual, who sits on the small of his back in a morris-chair and smokes a pipe. From a leaf torn from last year's almanac, in an East Side garret, he draws the conclusion that the perpetrator of a Black Hand outrage in Xenia, Ohio, is a pock-marked Hungarian now floating down the Mississippi on a scow; he radiographs with the aid of a weird instrument at his elbow and apprehends the fugitive.

Of these two conceptions of detectives it may be said that the first is quite correct: that the graduate policeman is abroad in the land, lumbering along on the trail of its criminals and occasionally catching one of them. His assignment to this task is, obviously, a bit like thrusting the work of a fox upon a ponderous elephant. The police departments, however, are practically the only training schools for detectives and it is but natural that they should be drawn upon.

Of the second conception of the detective—the man of science and deductions—it may be said merely that he does not exist in all the world,

nor could exist. There is one case in a hundred which would require the man of science in its solution and upon which he might work much as he does in fiction. In the ninety-nine there would be no place for such talents as his.

For each criminal case is a problem separate unto itself, and there may not be brought to it more than a trained, logical, imaginative mind, which may unfold it and see all the possibilities. There is but the occasional call upon science, and the good detective knows when to consult the specialist.

It was little more than half a dozen years ago that the Federal Department of Justice set about the upbuilding of the greatest detective bureau that the Government, or America for that matter, has ever known. As the Bureau of Investigation it was to have charge of all the secret work of the Government for which provision was not made elsewhere. It was to wrestle with violations of neutrality, with those of the national banking laws, with anti-trust cases, bucket shop cases, white slave cases; it was to prosecute those who impersonate an officer of the Government, to pursue those who flee the country and seek to evade the long arm of the Federal law. Its duties were vastly wider than those of any other of the Government detective agencies.

Department of Justice cases are stupendously big in many instances. They may affect the relations that exist between nations, they may mean the wrecking of hundred-million-dollar corporations, the stopping of practises that are blights upon the morality and good name of the nation. They are endless in variety and stupendous in their results.

The Department of Justice asked itself what manner of man should be called upon to perform this important work. It looked the tasks in the face and sought to determine the individual who would be best fitted to their performance. When it had come to a conclusion it built a staff of a hundred or two hundred (the number should not be stated) made up of men of the material specified.

That staff ever since has been wrestling with the great problems that confront a powerful nation with multitudinous interests. Its accomplishments have satisfied the Department that its judgment was right when it established a peculiar standard for the men whom it selected to perform these delicate and difficult tasks.

I have purposely cultivated these men in many cities, have seen them at work, have been given special privileges in my efforts to get a true conception of them and their methods. Scores of the stars that have been developed in the service have told me their best stories, their most striking experiences.

In the end, I have attempted to evolve a character who is typical of this new school of detectives. I have wanted him to work in my stories as he would have done in actual life. I have wanted him to be true in every detail to those young men who to-day are actually performing those tasks for Uncle Sam.

So has Billy Gard come into being. The cases upon which he goes forth have actually been ground through the mill of which he is a part. Each is founded on facts related to me by these special agents of the Department of Justice. Billy Gard is not an individual but a type—a new detective who is effectually performing as important work as ever came to the lot of men of his kind.

If the reader wants to know that his story pictures correctly the situation which it undertakes, I wish to assure him that I have taken infinite care that Billy Gard should work out his problems by the methods that are actually employed and that the Government machine operates in just this way.

WILLIAM ATHERTON DU PUY.

Washington, D. C.,  
March, 1916.

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**UNCLE SAM: DETECTIVE**

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**UNCLE SAM: DETECTIVE**

# I

## THE CONSCIENCE OF THE CUMBERLANDS

On the face of it one might have questioned the wisdom of selecting for a task so difficult a man who knew absolutely nothing about it. When the work in hand was the apprehension of a band of violators of the law who had for years defied and intimidated the whole countryside, this course seemed even more unusual. But the wonder would have still further multiplied itself if the casual observer could have given Billy Gard the once over as he sat nervously on the edge of the cane seat of the day coach as the accommodation train pulled into the hill country.

For this special agent of the Department of Justice, mind you, was to take up a piece of work upon which local constables and sheriffs, United States marshals and revenue agents had failed. There was murder at one end of the road he was to travel and the gallows at the other. And Gard was a nondescript youngster who looked less than thirty, neither light nor dark, large nor small—inconspicuous, easily lost in a crowd. The careful observer might have noticed the breadth of brow and the wrinkles that come to the man who thinks, or the tenseness of his slim form that indicated physical fitness. For to be sure, these federal sleuths of the new school are mostly college men, lawyers, expert accountants, as was Gard; but youngsters in whom is to be found the love of a bit of adventure and the steel of a set determination.

And now this slip of a lad was going back into the Cumberlands where the whisky still whispers its secret to the mountaineer; where the revenue agent penetrates at his peril and the Long Tom speaks from the thickets; where the clansman sets what he considers his rights above the law of the land and stands ready to lay his life or that of any who oppose him on the altar he has built. Gard was after a community of moonshiners who had defied all local authority and thrown down the gauntlet to the Federal Government itself. He came alone with a little wicker grip.

"I am looking for a place to board," the special agent told Todd, the livery stable man at Wheeler, the mountain town at which he had stopped off. "I have been clerking in a store in Atlanta and got pretty well run down. The doctor said I ought to stay in the mountains for a month or two."

"How much can you pay?" asked Todd.

"I would like to get it as cheap as five dollars a week," said Gard.

"You can buy a farm up here for five dollars a week," said Todd.

"Well, I want good board where I can get lots of milk to drink and eggs and where I can tramp around and shoot squirrels. Do you know such a place?"

The liveryman was accustomed to driving summer boarders out to the few places where they might stay in the Cumberlands. He sketched these possibilities and told of the location of each. Gard already had the map of the country well in mind and selected the farm near Sam Lunsford's, he being the mountaineer whom the agent most wanted to cultivate.

Todd reviewed the situation as between the mountaineers and the Government as he drove his customer out to the Tenney farm where he was to ask to be put up.

"You see," he said, "they have always made moonshine whisky around here and they just won't stop for nobody. They ain't many ideas gits into the head of a man who lives in the mountains, and when one gits set there, you can't get it out. They think they got a right to make whisky and whisky they are goin' to make or bust.

"Then along comes Tom Reynolds and Sam Lunsford and me and some more of us. We see that it ain't right to fight the Government and that whisky is no good anyhow, so whenever we find out where there is a still, we tell the revenue agents about it. Well, we git warnin's that we better not do it no more, but them fellers can't skeer us so we go right ahead.

"Then one night, Tom Reynolds starts home from Wheeler late in the evenin' but he don't never get there. Next mornin' we find his wagon standin' off to the side of the road and Tom is down in front of the seat dead with a load of buckshot in his head.

"Sam Lunsford has still got the idea, though, that the boys ought not to make moonshine so he goes right ahead reportin' every still he finds. So things goes on for two months. Then, one night, Sam was up late with one of his babies that had the colic. He was settin' before the fire a rockin' the baby when, bang! somebody shoots him through the winder.

"Well, that shot didn't quite get Sam. Did you ever try to shoot the head off of a chicken as it walked across the yard? Its head moves for'd and back and it is mighty hard to hit it. That's the way with Sam rockin' the baby, I reckon. Anyway, the buckshot just got Sam in the back part of his head and didn't kill him. Next day his old woman picked the buckshot out with a pocket knife because the doctor was afraid to go. Now Sam is as well as he ever was and he ain't changed his mind about the stills. Him and me reported two of them last week."

This story was about in accordance with the information Gard received from Washington. The revenue agents were too well known to work effectually in the Cumberlands any more, so the Department of Justice had taken over the case. The murderers and those who attempted murder should be apprehended.

As the wagon wound along the country road Todd called the special agent's attention to the report of a rifle from a hillside to the right. Soon another gun was discharged further ahead and a third still further on. This, the liveryman said, was a system of signals that told of their presence.

A little farther along the road wound into a hollow down which flowed a brook. Out of the brush in this hollow stepped the form of a mountaineer with a rifle across his arm. Todd drew up his team.

"What have you got there?" asked the man in the road.

"Summer boarder," said Todd.

"Where's he goin'?" was the query.

"To Tenney's," answered Todd.

The mountaineer walked around to the back of the wagon where Gard's little wicker grip was carried. Without a word he opened the grip and

carefully examined everything in it. Seemingly satisfied, he waved permission for them to proceed.

"Young feller," he said to Gard in parting, "you are in durn bad company. You can't never tell whether you will git back when you start out with that skunk."

To which Todd grinned as he drove on.

"They ain't never made the bullet that'll kill me," he said.

It was three days later that Billy Gard, squirrel rifle on his shoulder, walked into the clearing about the house of Sam Lunsford, the man who had survived the charge of buckshot in the back of his head. The Lunsford house consisted of one log room with a lean-to addition at the back. There was a clearing of some thirty acres where grew a most indifferent sprinkling of corn and cotton. There was a crib for the corn, a ramshackle wagon, a flea-bitten gray horse and some hogs running wild in the woods. Such was the Lunsford estate, presided over by this huge mountaineer and to which his eleven children were heir. Seldom did an echo of the outside world reach this home in the woods. Not a member of the family was able to read. Every Sunday Sam Lunsford drove the flea-bitten gray or walked seven miles to a little mountain church where was preached a gospel of hellfire and brimstone. He was hated by his neighbors and constantly in the shadow of death. Yet he went unswervingly on the way of his duty in accordance with his lights.

Gard already had the measure of his man. No sooner had he presented himself than he put his business up to the mountaineer, "cold turkey," as the agents say when they lay all the cards on the table. Would Lunsford help the government in getting the facts that would bring the murderers of Tom Reynolds and the men who shot him to justice? Lunsford would do all he could.

"Whom do you suspect?" the agent asked.

"There are so many of them agin me," said Lunsford, "that it is hard to tell which ones done it."

"Will you show me just how you were sitting when you were shot?"

The mountaineer placed the rocking chair in front of the fire directly between a hole in the window and a spot in the opposite wall where the buckshot had lodged themselves, peppering up a surface two feet square. Thus was it easy to trace the flight of the shot through the room. The special agent examined both window pane and wall.

"Could you tell where the man stood when he fired?" he asked.

"Yes," said Lunsford. "I looked for tracks next day. Let me show you."

He led the way into the yard and there pointed out a stout peg which had been driven into the ground not a dozen feet from the window.

"The tracks came up to there and stopped," he said.

"Did you measure the tracks?" asked the special agent.

The mountaineer had done so and had cut a stick just the length of the track. This stick had been carefully preserved.

"Did you find any of the gun wadding?" asked the agent.

Even this precaution was taken by Lunsford. These men of the mountains mostly load their own shells and the wads in this case had been made by cutting pieces out of a pasteboard box. So there were a number of clues at hand.

Special Agent Billy Gard stood on the spot from which the shot had been fired. From this point to that at which the buckshot had entered the wall of the cabin was not more than thirty feet.

"An ordinary shotgun at thirty feet," he reflected, remembering his squirrel hunting days, "shoots almost like a rifle. The shot at that distance are all in a bunch not bigger than your fist. Yet the shot in the cabin wall were scattered. The man with the gun must have been further away."

Gard stated this view of the matter to the mountaineer, but that individual showed how it would have been impossible for the shot to have been fired from a greater distance because there was a depression that would have placed the man with the gun too low down to see in at the window. The shot could have been fired from but the one spot. The window pane through



which the shot had passed was about half way between the peg and the wall where the charge had lodged. The hole in the window was not more than half as large as the wall surface peppered by the shot. This scatter of shot at such short range was significant.

"The shot must have been fired from a sawed-off shotgun," said the special agent. "Only a short-barreled gun would have scattered so much at this short range."

He meditated a moment and then asked:

"Who is there around here who has a sawed-off shotgun?"

"Ty Jones has got one," said Sam.

"Is he friendly to you?" asked Gard.

"No," was the reply. "The revenue agents chopped up his still after I reported it."

"Did he ever threaten you?"

"He said onst at the crossroads that he knew a bear with a sore head that would soon be feelin' almighty comf'table 'cause it was goin' to lose that head."

Here was a probable case of Ty Jones being the man guilty of the attempt on the life of Lunsford. There was a possibility, as Gard saw it, of getting this suspicion confirmed. Despite the animosity that existed between the heads of the families, the Jones youngsters and the Lunsford youngsters were playmates; so does the sociability of youth break down the bars set up by maturity. Lunsford had a boy of ten who was wise with the cunning of the woods and trustworthy in lending a hand in the feuds to which he was born. This boy, in playing about the Jones household, was instructed to pick up every piece of pasteboard box he could find and bring those pieces home. Likewise was he to measure the shoes of the Jones household, when an opportunity offered, and tie knots in a string to indicate their length.

It was a week before this task had been completed by the boy, but the results indicated that the foot of a certain pair of shoes in the Jones home was like unto that of the man of the sawed-off shotgun. Scraps of cut-up

shoe boxes had been found, white on one side and brown on the other, and from these had evidently been made wads for reloading shells.

Thus far was Special Agent Gard able to carry his case toward a solution. There were twenty men in the neighborhood who might have been implicated with Jones, if he were guilty, in this attempt and in the killing of Tom Reynolds. There were twenty and more makers of moonshine who had been reported or stood in danger. It was hard to determine which of the twenty were actually guilty. The suspicions against Jones were not evidence. After a month on the case Gard decided that a complete solution of the mystery was possible only through working in with the moonshiners themselves and gaining their confidence.

So the summer boarder left the Tenney farm, stating that his health was greatly improved but that he would come back two months later for another stay.

A week after this there was nailed up at every post office and court house within a hundred miles of Wheeler a notice of reward for an escaped convict. A short, stout, curly-headed young outlaw had broken jail in South Carolina and when last heard of was bearing in this direction. Fifty dollars reward would be paid for his capture. His picture appeared with the notice.

After still another week the Jones children were playing in the woods back of their house when a strange man called them from a distance. The youngsters approached cautiously. The man was no less cautious. He was a short curly-headed young fellow with a stubby beard, with his clothing in shreds and very dirty. He looked as though he had slept in the woods for a month. There were stripes across an under garment that showed through his open shirt.

"Do you suppose," said the man of rags, "that your maw could stake a hungry man to six or seven dollars' worth of bread and bacon and wait for remuneration until the executors of his estate act?"

"Yuh don't mean yuh want somethin' to eat, do yuh?" said young Lem Jones.

"Son," said the curly-headed one, "your instincts are clairvoyant. You have demonstrated a hypothesis, confirmed a rumor, hit upon a great truth,

sleuthed a primal fact to its lair. The plain truth is that I haven't had anything to eat in so long that I have forgotten my last meal. I am the hungriest man in the world. I could eat tacks with a spoon."

"Come on," said Lem, a bit dizzy with the unusual words, but anxious to please.

He led the way to the house where Mrs. Jones met the hungry man at the door.

"Madam," said the hungry one most courteously, "I am needing a little something to eat. I have been lost in the woods and without food."

"What are they after you for, young feller?" inquired Mrs. Jones incisively, she who had spent a life in those mountains where the sympathy was all with the man whose hand was turned against authority and where many fugitives from the law had found refuge.

"Have you found me out so soon?" grinned the fugitive. "Well, if I must tell I will say that I just knocked a hole in a jail down South Carolina way, cracked the heads of a couple of armed guards together, robbed the city marshal of his horse, outran the sheriff's posse, swam the Elb river where ford there was none, and lived on a diet of blackberries for seven days. Back of that there was the little matter of cracking a safe. Other than that I assure you my conduct has been of the best."

So engaging was the manner of this young man of the rags from the great world beyond the mountains that Mrs. Jones immediately liked him. He was a perfect cataract of words and talked incessantly. She was not able to understand half he said but was pleased with all of it. He ran on glibly but always stopped short of being smart in the sense that would call forth dislike. All the time he was eating corn bread and bacon with the relish of one who has long omitted the formality of dining.

Such was the introduction of Special Agent A. Spaulding Dowling into the Cumberlands, he who played the cadet in white slave cases, the wild young man about town in the bucket shop investigations, and made love to a bank cashier's daughter to learn where the loot was hidden. For all these situations Dowling had a stream of talk that never failed to amuse and disarm. Billy Gard had asked the department for his help on the

moonshiners' case and Dowling had fallen into the plan with all the enthusiasm of adventurous youth.

The features of the jail breaker for whom the reward was offered were those of Dowling. So had preparation been made for his coming. Gard had laid his plans with an understanding of the habits of the mountaineer to hide the fugitive. He had figured that such a fugitive might get into the confidence of those iron men of few words and filch from them their secrets. With the right culprits behind the bars the backbone of this defiance of the law might be broken.

Dowling's stream of talk won the friendship of Ty Jones and his sons as it had won his wife. The fugitive was tucked away in the hills and fed by the mountaineers. He came to know the intimates of the Jones family and his stream of talk entertained them for days and weeks. He hibernated with others of his kind for he found the hills full of men in hiding. He became a visitor at many a cabin and eventually struck the rock that responded to his confidence.

A young mountaineer named Ed Hill maintained an active still high up in the mountains—a virgin still that had never known the desecration of a raid. Hill was high spirited and companionable, unlike most of his neighbors. His was the soul of a poet, a lover of the wilds, a patriot of the mountains. The flame of adventure, the love of danger, the belief in the individual rights of the mountaineer, made him a moving spirit among the men who battled the government.

Ed Hill told the fugitive the whole story of the killing of Tom Reynolds and the shooting of Sam Lunsford. He told of the determination to rid the mountains of Todd, the livery stable man, and to preserve for the men of the Cumberlands the right to do as they chose in their own retreats.

It seemed that of all the men of the mountains who made moonshine whisky, there were but four who were willing to go the limit of spilling the blood of their fellows in resisting the law. Hill was one of these and saw his acts as those of the man who fights for his country. Ty Jones, contrary to the suspicions of Sam Lunsford, always advised against violence. But Jones had a boy of eighteen, a heavy-faced, dull-witted lad, who was possessed of the desire to kill, to be known among his fellows as a bad man. This

younger Jones it was who had aimed his father's sawed-off shotgun at Sam Lunsford as that hulking figure of a man swayed back and forth as he rocked the baby that suffered from colic. The patriot Hill, Will Jones the born murderer, a father and son by the name of Hinton, had been the murderers of Tom Reynolds. There were no others who would go so far as to kill to avenge their fancied grievances.

The summer was dragging to its close as the conversational special agent got his information together. The yellow was stealing into the trees of the hillsides when Billy Gard, he whose health had been broken behind the ribbon counter, came back to Tenney's for another few weeks in the open. He wandered into the woods and met the fugitive from the South Carolina jail. The jail bird and the ribbon counter clerk talked long together and when they parted the plans were laid for the nipping off of the men who would murder for their stills.

It was a week later and the quiet of after-midnight rested upon the little mountain town of Wheeler. In such towns there are no all-night industries, no street cars to drone through deserted thoroughfares, not even an arc light to sputter at street crossings. There is but the occasional stamping of a horse in its stall or the baying of a watch dog in answer to the howl of a wolf on the hillside. But murder was planned to take place that night in Wheeler and A. Spaulding Dowling knew all about it.

As the town slept four stealthy figures crept down the trail that cuts across the point of the Hunchback. Soft-footedly, rifles in hand, they passed down a side street beneath the dense shade of giant sycamores. It was but three blocks from the woods to Main street. Reaching this artery of the town, two of the men crouched in the shadow while two others crossed the street and went a block further, turning to the left. Each group then shifted itself a hundred feet to the left and paused again.

So stationed the four men found themselves in front and back of Todd's livery stable. The building itself sat back a little from the street. On the ground floor were the stalls for the horses and the sheds where the wagons were stored. Overhead were bins of corn and hay and a living room where Todd slept that he might always be near his teams. About the whole was a roomy barnyard enclosed by a high board fence. The gates to the outer

enclosure were locked, but once past this wall a man would have the run of the whole place.

The mountaineers, two in front and two in the rear of the building, swung themselves to the top of the fence and leaped to the ground inside. Rifles at hip they started to close in on the building. Each party entered at opposite ends of the corridor down the middle through which a wagon might drive. Nothing interfered with their progress and no sound was heard except a sleeping horse occasionally changing feet on the board floor of his stall. Stealthily the four figures gathered in a cluster and turned up the steep stairway that led to the sleeping room of Todd. With every rifle ready for action they pushed open the door. The moon coming in at a window disclosed what seemed to be a sleeping form in the bed. Deliberately the four rifles came to bear upon it. There was a pause and then from the leader came the order:

"Fire!"

Every finger pressed the trigger of its rifle. Every hammer came down on its cap. But no report followed. Not a gun had been discharged.

"Come on out in the open, you sneakin' cowards," came a clamorous voice from the barnyard that was recognized as being that of Todd. "Come out in the lot and I'll larrup you all."

The men in the room looked puzzled, one at the other, and then at the form on the bed. They approached the latter and found it to be but a dummy to represent Todd. They had been trapped. They would fight their way out.

The mountaineers charged down the stairway. As they came into the moonlight at the opening of the barn they faced the tall form of a man they knew well, the United States marshal of the district. With no gun in his hands the marshal raised his hands on high.

"Listen, men," he commanded. "A parley. You are trapped. There are armed men at every corner of this building and every man who runs out of it will be shot dead. Your powder has been wet and none of you can fire a shot. You can't fight armed men. There is but one thing for you to do and that is to surrender."

In the parley that followed the marshal asked each man to try his gun to see if it could be fired. None would respond. The mountaineers found themselves caught in the very act of attempting to kill Todd, whom they had often threatened. They had been duped and trapped.

So had these young detectives of the new school worked out a most difficult case and one which later proved, in the courts, to be effective, for every man arrested is now serving a long term in prison and the backbone of the defiance of law in this region is broken.

"Mr. Summer Boarder," said the curly-haired Dowling, "it is back to the ribbon counter for you. Your little vacation is over. But I will say that you have shown remarkable intelligence in this matter. You called me in to help you. Little drops of water put in just the right place saved all your lives. These mountaineers would have eaten you up if I hadn't fixed their ammunition. Please thank me—"

"Easy, Windy One, easy," interjected Gard. "Kiss the hand of the man who lent you the brains to do it with."

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## II

### THE BANK WRECKER

Billy Gard was not thinking of business at all. As a healthy, ultranormal young man, he was drowsing over his breakfast as one has a way of doing when at peace with the world and when unaroused by any call of the present. He had reached the rolls and coffee stage of his meal in a spirit of detachment that took no account of the somewhat garish flashiness of the hotel dining-room in this typical hostelry of a city that had become noted as a maker of industrial millionaires. Then as his glance idly trailed among the other breakfasters, it automatically picked up an incident that flashed a light into his dormant brain and brought it to full consciousness.

A spoon had started from a grape fruit to the mouth of the tall, curly-haired man two tables away. Half way on its journey the hand which held it had twitched violently and spilled most of the contents. The brown eyes of the man stole out somewhat furtively to learn if anybody had noticed his nervousness.

Special Agent Billy Gard now gazed at the ceiling, but his mind was busy. It was running over the facts that it contained with relation to Bayard Alexander, who was this morning not himself and apprehensive lest the fact be noticed. For Alexander was of the class of men of whom it was his business to know. He was cashier of the Second National bank and Uncle Sam keeps a pretty close watch on such institutions when they happen to be located in communities of feverish activity.

So the special agent recalled that the tall man with the damp curls was a moving spirit in the city, an important instrument in its development, a man of many philanthropies, personal friend of a United States Senator, cashier and active head of one of the most powerful financial institutions in the community. He was a man of very great energy, but one who led a normal, wholesome life and who, at the age of forty-five, seemed just coming into his stride. The bank examiner, Gard recalled, had steadily given the Second National a clean bill of health.



Why, then, should Alexander be nervous and, granting him that privilege, why should he fear its being noticed?

All of which was the seemingly illogical reason why Gard went to Wheeling that very night and was not seen about the metropolis for a week thereafter.

"I am a poor man," he told Allen, the stout bank examiner, when they met in the West Virginia town. "Poor but honest and not trying to borrow money. I am on my way to the city of opportunity looking for a job."

"You have come away that you might go back, as I understand it," said Allen. "Couldn't you change your peacock raiment for a hand-me-down without coming to Wheeling?"

"Yes, but I couldn't see you, Cherub," said Gard, "and you are to make all things possible for me. You are to convert me from a dweller in gilded palaces to a bank bookkeeper out of work, but with credentials.

"There is in Wheeling a bank cashier of your acquaintance," explained the special agent, "who used to work beside a bookkeeper whose friendship I want to cultivate. You introduce me to the cashier, he finds out what a really good fellow I am, we become friends. He gives me a letter of introduction to the man I want to meet. I return to the city and thrust myself properly into the affairs of one Sloan, bookkeeper for the Second National. The next time the corpulent examiner comes around he gets the surprise of his life. Do you follow me?"

Billy Gard had reached the conclusion that, if there was anything wrong with Bayard Alexander's bank the examiner was being deceived and that, therefore, there must be a juggling of accounts. Bookkeeper Charley Sloan of the individual ledgers occupied the post most likely to be used for deception, and so the special agent was taking a lot of trouble to make the right opportunity for getting friendly with Charley. That mild little man was therefore favorably impressed when he was handed a letter from his former associate who had gone to Wheeling and become a cashier. The two visited so agreeably together that a friendship developed and Gard came to live at the bookkeeper's boarding house. The two accountants grew to spend many evenings together and naturally talked shop.

"I had a friend," said Gard one evening, "who worked in a bank in New Orleans. Next to him was a bookkeeper who went wrong. He was induced to do this by a depositor who had a scheme for making them both rich. All the depositor needed was a little money. So he proposed that he draw checks against the bank and that the bookkeeper charge them temporarily to other accounts. The depositor would cash the checks at other banks and, when they came in, the teller would merely turn them over to the bookkeeper, probably asking if there was money to meet them. In this way a depositor who never had a thousand dollars in the bank eventually checked out \$50,000."

"There was a teller," Sloan volunteered, "who worked in a bank here who entered the deposits in the books of the people making them and put the money in his pocket. There was no record of it except in the pass books. He got nearly all the money that came in for two months before he was found out."

"There are a lot of ways in which a bookkeeper may hide the facts with relation to a bank," continued the special agent. "It is pretty safe to charge anything to the inactive account of an estate or an endowed institution. These are not often looked into. The accounts balance for the examiner. I'll bet there isn't one bank in a dozen that doesn't fool the examiner."

"It's the easiest thing in the world," volunteered Sloan, "to take the necessary number of leaves out of the loose-leaf ledger to counterbalance it if the cash is short, and hide the leaves until the examiner is gone."

"Did you ever know that to be done?" abruptly asked the special agent.

The bookkeeper colored to his temples and was noticeably confused at the question. Then he said he had heard of its being done. The sleuth would have sworn he had led the bookkeeper into a confession.

Nothing was more natural than that these two bank bookkeepers should recur occasionally to the possibility of so arranging accounts that were in questionable condition that they would be passed by the examiner. Gard would lead to this in such a way that the bookkeeper would seem to have begun these discussions. Then he would talk freely. He would tell so many stories that the timid Sloan would want to relate a few in furnishing his part

of the entertainment. But Gard knew that the bookkeeper was a man without imagination and that he could relate only what had happened in his experience. So he was all ears when Sloan one night gave his opinions on the subject of kiting.

"Of course," he said, "all banks have depositors who kite their checks and thereby get hold of money which they may use for a week before they have to make good. A depositor may turn in a check for a thousand dollars, drawn on a New York bank where he has no money. At the same time he sends the New York bank a check for the same amount, drawn on you. This causes the New York bank to honor the check drawn against it. The check drawn on you has to find its way through the clearing house and it will be a week before it gets back. In the meantime the depositor has had the use of a thousand dollars.

"But when it comes to real kiting," continued the bookkeeper, "it is the banks themselves that do it. If a bank has a sudden call for \$100,000 and hasn't the money, all it has to do is to send a messenger with a check to a friendly bank around the corner. The messenger gets the whole amount in cash. It appears as an asset of the bank. It will be two or three days before the check will come back through the clearing house and appear as a liability, or the friendly bank may hold it up even longer. The banks may be swapping this sort of favors. The bank examiner does not know of the outstanding check. He is out of town before it appears."

Special Agent Billy Gard was again practically certain that he had here been told a chapter out of the experience of the Second National. He began to see his way clear to a denouement.

That same night events were transpiring of which he was to know a week later but which as yet were held in confidence among the directors of the Second National. They took place at a meeting of these same directors called by a minority which was dissatisfied with certain features of its management. Director Hinton, a sprightly and quick-tempered little man, was the leader of the revolt. Senator Bothdoldt was present as a supporter of the management of the bank as represented by the suave, forceful cashier, Bayard Alexander, whose hand sometimes shook at breakfast.

"I want to protest," Hinton began by launching directly into the heart of the matter in hand, "against this new loan to the McGrath Construction Company. It has been three years now that we have been pouring out our money to these people. We have \$400,000 of their paper and I want to be shown that we can realize on it. It is time to call a halt."

"And there are the notes of the Oldman Mercantile Company," somewhat heatedly argued a second disaffected director. "I have been reliably informed within the last two days that they are in danger of going to the wall."

"And we, as directors, are responsible for the bank," said Mr. Isaacs, who was conservative.

"I for one," said Mr. Hinton, "have reached the point where I insist on a new management. I would like to know the sentiment of the board upon this question."

But the cashier asked for a word of explanation. Broad-shouldered and upstanding he rose among these heavy, sleek, bald-headed business men. His high and intellectual brow and clear-cut features gave him a distinction that always made an impression. But the firm mouth and the damp curls were those of a man of physical force and determination. His voice was alluring and convincing as he made his plea and there was now no tremble of the hand.

He stated and called upon Senator Bothdoldt to witness that the McGrath Construction Company had just received from the Government contracts for the building of numerous locks in the Ohio River. He agreed with the spirit of conservatism of the board and shared it. He had heard the rumors with relation to the Oldman Mercantile Company and had sifted them to their depths and had found them without basis in fact. However, he had just called in a block of their notes. He painted a rosy picture of the condition of the bank and the prospects of the future. He reminded the directors that they had given him a free hand in the past and pointed to the institution as a monument to his accomplishment. At the termination of which speech, so convincing and so dominant was the personality of the man, Director Hinton withdrew his protest and the institution was left under the former guidance.

It was three days later that things began to happen. Gard had called upon Bank Examiner Allen to come to his assistance. The two of them had conferred the night before and settled upon a plan of campaign for testing the stability of the affairs of the bank.

It was in accordance with this plan that the rotund and genial Allen breakfasted in that dining-room where the special agent's suspicions had first been aroused. Bayard Alexander was at his usual table and Allen allowed the banker to see him although he appeared not to be aware of it. It was also in accordance with the cards played by the men of the Government service that Special Agent Gard, still a bit seedy in his hand-me-down suit, was loafing on the sidewalk opposite the Second National bank when the cashier came to work. It was a part of his plan that he should see as much as possible of what went on in the institution when the word was passed that the examiner was in town.

Gard was not surprised, therefore, when a messenger emerged from the bank and hurried off down the street. He believed that the story of the bookkeeper of the kiting bank was to be enacted before his eyes. He followed the messenger to another bank two blocks away and there saw him present a check. Gard crowded in on the pretense of getting a bill changed and saw blocks of bills of large denominations being taken from the vault. The messenger hurried back to the bank with them. It was evident that that institution was making ready for the coming of the examiner. It was as evident that its affairs were not as they should be or this preparation would not be necessary.

It was a part of the program that when Sloan, the bookkeeper, came out of the bank for lunch, Gard should be waiting for him. It was not unusual that they thus went to their noonday meal together.

"Will you do me a favor?" asked Sloan while they were at lunch. "Take care of this package for me. It is a large photograph, rolled, that I have just received from home. Please be careful of it."

The special agent assumed charge of the package which looked not unlike a roll of music. Later he found his suspicions justified for in the roll were a number of leaves from the bank's individual ledger. Gard was appalled at

the amount of money that they represented. He carefully photographed them and returned them that night to the bookkeeper.

No pretext was omitted for getting a look into what was transpiring in the Second National bank on this particular day. Examiner Allen had called in the afternoon and had carefully looked over the balances. All appeared to be in order and no discrepancies were revealed. The bank seemed particularly strong from the standpoint of cash on hand.

It was just at closing time that two things happened. Gard presented himself at the Second National and asked to see the cashier. He had become known there as an associate of Sloan's. He was looking for a position as bookkeeper and it was for this he came. He waited.

It often happens that an individual may wander unannounced into quarters the privacy of which are ordinarily closely guarded. Gard found the door open that led into the corridor off of which were to be found the offices of the officials of the bank. He walked in and wandered down the row until he found that of the cashier. This he entered and found entirely empty. It was a spacious room with a big, flat-topped desk. Across one corner of this was thrown a coat, and a hat rested upon it. An open traveling bag stood on the table.

The special agent, by leaning on the table in the attitude of waiting, could look into the bag. There he saw a package of what he recognized as a well-known issue of industrial bonds which the examiner had listed as one of the chief assets of the bank. It should have been in the bank's vaults, instead of which it was in the cashier's traveling bag. This was a discovery well worth consideration.

Cashier Alexander entered the room hurriedly from another part of the bank. He was visibly startled to find some one present and demanded brusquely what the intruder was doing there.

"I am a bookkeeper, sir," said the special agent very humbly. "Sloan is a friend of mine and thought you might employ me."

"I can't talk to you to-night. Come around next week."

"But may I not come to-morrow?" said Gard.

"I will be out of town for three days," Alexander said finally. "I can't talk to you until after that."

The special agent took his dismissal. He had learned that the bank cashier was going away and that he was taking a package of the bank's most valuable securities with him. He was going some distance for the trip was to last three days. His destination was probably New York.

Meantime the genial examiner had rolled in upon the bank to which the Second National had sent its messenger, at about closing time. He had asked to see the transactions of the day. Among these was found the record of the check that had been cashed early in the morning. It was the personal check of Bayard Alexander and was for \$125,000.

The two representatives of the Federal Government conferred hurriedly.

"And the securities," questioned Gard. "Were they intact when you were at the bank this morning?"

"Everything was in order," replied Allen.

"The package of the industrials. What was its value?"

"About \$500,000," replied the examiner.

"Alexander is leaving to-night with these securities. He may be taking the \$125,000 in cash with him. The time has come for his arrest. Particularly must we guard those assets and prevent any unnecessary demands upon the bank."

"He may be making a run for Canada," said Allen.

"The securities will take him to New York that he may realize upon them," was Gard's deduction. "I am for the station and will follow him if he takes any train. You try for his trail about town and report to me there."

But after all it was a piece of luck that saved the day for Gard. He was racing for the station in a taxicab when his machine was halted at a crossing. Another taxicab pulled up beside his, waited a minute, two minutes. He could see the driver from where that individual sat not six feet away and just opposite his window. Presently this chauffeur bent down to

get instructions from his fare. The man in the taxicab was talking quietly, but so near was he to the special agent that he could be easily overheard.

"Get out of this jam," he was saying. "Cut across town to the North side station. We have already missed the 6:15. If you head it off at the North side it is worth a twenty-dollar bill to you."

The voice was smooth and unruffled. Yet it was dominant. It set the driver immediately upon edge and into motion. And there was in it a familiar note that puzzled the detective for a moment, then brought back the interview of the afternoon. Yes, it was Bayard Alexander talking.

It was hard luck that caused a crossing policeman to let the first automobile through and shut off the second. It was the worst sort of luck that caused the special agent to arrive at the North side station just as the gate was slammed and made it necessary for him to produce credentials to get through. He was barely able to swing into the vestibule of a sleeper as the train was getting under way. It was particularly hazardous from the standpoint of accomplishing the end he had in mind, for he did not even know if Alexander was aboard and faced the danger of having ridden away on the fastest train to New York and left his work behind him. Even if the man he was after was aboard there was the chance that he had become aware of the chase and would take precaution to out-wit him.

But now there was no hurry. His man was or was not on the train and the porter told him there would be no stop for two hours. The special agent was still a good deal of a youngster with an appreciation of the dramatic and here was a situation that appealed to him. He wondered if he were riding into the dusk on a wild goose chase, or if he had cornered this fugitive master-crook, with a traveling bag containing half a million dollars of other peoples' money. He pictured the man he was after—the suave, confident, stealthy cashier, who had stolen his hundreds of thousands and had, by the very force of him, compelled his subordinates to hide his shortcomings. He wondered if this man of action was expecting pursuit or if he was riding on in confidence of being able to make his escape. He thought of the satchel that the cashier carried and of his responsibility, as a Government agent, for safeguarding its contents. It was something of an assignment for a youngster.



"And Mother used to say to me," grinned Billy to himself, "when she sent me around the corner for a dozen eggs: 'Do be careful to bring back the change, and for goodness' sake don't drop the bag.' I wish Mother could see me now."

Whereupon William H. Gard of the United States Department of Justice arose and went to the front of the train. From this point he worked steadily back, making sure that he saw every passenger, looking each over with sufficient scrutiny that a disguise would not have escaped him, making sure that the man he sought was in the portion of the train to the rear. It began to look as though he had actually boarded a train which the fugitive had failed to catch.

Dark was just coming on. It was that hour when most of the passengers on a train are to be found in the diner. It happened that this train was running light and now the sleepers were practically deserted but for the nodding porters. Through one after another of these the special agent passed until there remained only the observation car at the end. It was here that he would find his quarry or prove himself outwitted.

When he came into the observation car through the narrow hall that leads to it, a lounging figure by the door drew itself taut. Instinctively it put its hand to a traveling bag that rested on the next chair. Then it remained still.

The special agent came direct down the car and went immediately to the task in hand.

"You are Bayard Alexander," he said, "and my prisoner."

The cashier was, after all, surprised. He was not aware that he was being followed. He sprang forward in his chair but met the glint of a pistol in the hand of the special agent.

"And you? Oh, I see!" said the cashier, recovering himself. "The bookkeeper was not a bookkeeper after all."

"I am an agent of the Department of Justice," said Gard. "You are under arrest."

The tall figure of the cashier had risen from its chair. To the traveling bag he clung instinctively. The situation seemed entirely in the control of the special agent with gun drawn and the retreat cut off. Yet, like a flash, the cashier turned the knob of the door that led out upon the rear platform of the observation car. The gun of the special agent spit forth a flame, but whether he had intended to bring down his man or not he was afterward quite unable to recall.

But with a leap he was after and upon the fugitive. He suspected the intent of the cashier to throw himself from the train, to end all in suicide. He saw the traveling bag getting beyond his reach. It was the last thing that would have appealed to him to stand idly by while such incidents were taking place.

The two men grappled. A new purpose flashed into the mind of the cashier. Here was he given an unexpected opportunity for freedom. Only the special agent stood in his way. If he could but drop this youngster over the rail, suicide would be unnecessary. A new purpose came into his tall, lithe form. It was to be put to the task of fighting for its own preservation.

And such a setting for a fight! The clamor of the train beat into the blood of the contestants like the applause of an arena. The swish of the platform as the express dashed through the darkness at seventy miles an hour made the ordinary strategy of battle uncertain. Beyond the narrow rail that skirted this platform upon which their fight was staged death waited expectant on three sides. There were now no weapons and the contestants went back to the primal in a tooth and fang grapple for existence as might two frenzied bears at bay.

The cashier was the larger man and one who had always kept in condition through gymnasium work. The special agent was lither and younger. The larger man was determined that he would thrust the smaller over the rail and fling him from the train. He fought his way to the edge of the platform, forcing his antagonist farther and farther over it, hammering him down by the sheer superiority of weight and strength.

But all the time the special agent was playing to his own advantage. He was getting low beneath the guard of the cashier. His arms had found an iron lock beneath his antagonist's coat and about his waist. He felt that this hold

could not be broken and that a time would come when the strength of the larger man would wane. He could afford to wait.

It was but a swish of the train that gave him the slight advantage he sought in taking the aggressive. It swayed the tall form of his enemy as it towered above him a little backward. This put the spine in a position where it could not immediately resist a strong pressure. Already he had felt a give in the body muscles that meant the first approach of weakness. Like a flash his head was in the tall man's chest, all his strength was in his arms, and he was administering that treatment known in his youth as the "Indian hug." Slowly he overcame his antagonist, bent him back, and they came tumbling among the chairs of the observation platform.

From the fall came a new grip to the advantage of the special agent. As they went down he flung his legs around his antagonist, and was able to get the wrestler's "scissors" about his waist, thus applying pressure where there was already exhaustion and allowing his legs, which were rested, to bear the brunt.

Thus were they locked when the brakeman came to the rear and found them. But the battle was already near its end. For the flash of a moment the cashier rallied and acted. In that moment his hands seized and flung from the train the grip with its precious burden. Then he sank into unconsciousness.

Billy Gard had ridden back to the section of the road where the traveling bag had gone overboard, and had waited for the coming of daylight to search for it. In the gray dawn he walked down the track and met an Irish section man, who had already picked it up.

"I see you have found my satchel," said Gard, accosting him.

"Your satchel it may be," said the Irishman, "but you will have to be after tellin' me what's in it by way of identification."

"Nothing much beside half a million dollars," said the special agent, proffering the key.

The man who had found the traveling bag looked inside and, as far as Billy Gard knows, never spoke again. He was still dumb with amazement when

the young man drove away in his automobile.



### III

## A FIASCO IN FIREARMS

It is here set down for the first time that Special Agent Billy Gard of the United States Department of Justice trod the deck of the good German ship *Esmiranga* and smoked many Mexican cigarettes on that historic morning in April, 1914, when she approached the port of Vera Cruz, loaded to the gunwales with ammunition for the Huertistas, and precipitated the landing of American marines.

Also it was here first told that it was the hand of Billy Gard that lighted the match that ignited the powder that caused the explosion that kept Yankee fighting men in Mexico for many months and the big American sister republics on the verge of war. For the action of the head of the government of a hundred million of people, the orders extended to the military, the shuttling of battleships and transports, were based upon mysteriously received messages from this young representative of the United States, who through a combination of chance and design found himself strangely placed in the center of a web of circumstance.

It had all started in a New York hotel six months before. It was not entirely out of keeping with what was to follow that a huge and bewhiskered Russian should have staged the prologue of what was later to assume something of the nature of an international farce. But it was such a man, registering himself as G. Egeloff, pronouncing some of his indifferent English with the explosiveness of Russia and some of it with the lilting softness of Latin America, who created a scene in a Manhattan hotel and thus first introduced the whole matter. He had arrived but a moment before, dusty, disheveled, empty handed. The room clerk had suggested that it was the custom of the hotel that guests without baggage should pay in advance. Then had come the explosion accompanied by oaths in four languages.

The man with the whiskers called upon all to witness that this indignity had been placed upon him, G. Egeloff, the representative of rulers of nations,

the bearer of credentials, the possessor of enough money in his one vest pocket to buy the hotel in question and turn it into a barracks for his peons.

Whereupon he produced from the vest pocket in question a draft on the Mexican treasury for the neat sum of three million dollars in gold, signed by none other than Victoriano Huerta himself. At which signal the entire hotel staff salaamed profoundly, the man who swore was escorted to the best suite and the house detective telephoned to the special agents of the Department of Justice.

Billy Gard was forthwith sent out to determine the legitimacy of the mission of this strange representative of turbulent Mexico.

In three days he knew that Egeloff was in touch with those representatives of the Huerta régime with whom the Department of Justice was already acquainted and whose activities centered about a certain Mexican boarding house just off Union square. He also knew that the Russian had called up from his hotel room certain manufacturers of munitions whose factories were in Hartford and that representatives of those firms had visited him.

Gard had drawn the conclusion that the Russian was buying ammunition for the Mexican government. Since the United States was denying clearance to ships with such cargoes destined to either faction to the controversy to the south, it was necessary that all the facts be ascertained.

But it developed that the strong current of the plans of the man from Mexico ran through Valentines, that outfitter of revolutionists and dealer in second-hand and out-of-date war material. Valentines based his operations upon the principle that the discarded munitions of progressive nations are plenty good enough for use in Latin-America and that the purchase of all such, no matter how antiquated, offers a good opportunity for profit. Hardly a warlike venture in the tumultuous lands to the south has run its course within recent years without leaning heavily upon Valentines.

Knowing this, Gard was particularly anxious to find out what was transpiring within when, on a murky Saturday night, he followed the Russian and three of his Mexican associates through the narrow lanes of the lower East Side, beneath its clanging elevated, and to the side door of Valentines, within which they disappeared.

He had previously reconnoitered the surroundings. He knew that Valentines had taken great care in guarding the privacy of his establishment. The dark back room in which his conferences were held had but one entrance, which was from the main establishment. The area-way upon which its single window looked faced the wall of a printing house, broken by but three or four small windows, as is so often the case with these blank surfaces. Gard had made note of the fact that one of these windows was opposite and above that in the back room of Valentines. He had gained admission to the printing house and had viewed the adjoining premises from this high window.

A single possibility presented itself. This was that Valentines might leave his curtain up and that Jane Gates might help with the case.

Jane Gates occupied a warm spot in the hearts of the special agents and they were always particular that when they called upon her there was no possibility of unpleasant experiences, and the way seemed clear here. She was a deaf girl, known among them as the Lily Maid, born without the sense of hearing but mistress of the inestimable difficulties of lip reading and the possessor of the nimblest set of fingers in the world, these latter earning her a place as copyist for the service. Her face was of a cameo beauty, with a touch of pathos because of her isolation. She was the warm spot in the heart of the office but, as its very spirit was the untangling of riddles, she had found opportunity to help in a novel way in several difficult cases through her ability at lip reading.

By prearrangement Jane Gates, on this Saturday night, was awaiting at the office not half a dozen blocks away a possible call from Billy Gard. Barrett had a taxi at the front door and the expected summons brought him to the publishing house in five minutes. Beneath a light in the hall Gard told the deaf girl of the situation, for lip reading needs light. Soon they were in the gloom by the little window and the eager eyes of the Lily Maid were looking into the office opposite where the conference on munitions was going forward. Fortunately Valentines did not speak Spanish and an interpreter was necessary. The face of this man was in plain view not thirty feet away.

Soon Jane Gates was repeating in the peculiar, hollow voice of those who do not hear but have learned to form words with the lips:

"Mauser ammunition—old Krupp rapid-fire guns—Seventy five—"

Gard stepped beyond the range of view from the opposite window. He turned a pocket flashlight on his own lips.

"Try to find out how they are to be shipped," he instructed.

"Could supply a total amounting to \$750,000 in value," the girl repeated after the interpreter.

"Delivered in thirty days—Brooklyn—how can you get clearance papers?"

"We clear for Odessa," the interpreter's lips said. "The United States must accept our claim of that destination. We know how to evade embargo regulations."

Valentines had been walking nervously about the room. At this moment he approached the window and pulled down the curtain that looked into the courtyard. The work of the lip reader was at an end.





**"GARD TURNED A POCKET FLASHLIGHT ON HIS OWN LIPS:  
'TRY TO  
FIND OUT HOW THEY ARE TO BE SHIPPED'"—Page 54**

It was a month later when Gard had traced a consignment of ammunition from the factory at Hartford to its place on a Brooklyn pier where it lay

ready for shipment. It seemed the last of the American goods that were needed to complete the cargo of the Italian bark, *City of Naples*, that was ready to sail. It appeared that papers had already been taken out, that the manifests acknowledged the presence of great quantities of war munitions, but that the claim was made that the cargo was bought for South Russian dealers and bound for Odessa.

Gard hurriedly ascertained that the United States would not refuse permission for the ship to sail. It was, however, anxious to keep in touch with its movements. Could the special agent find a way to accompany her? Gard would try.

Half an hour later a young Italian strolled down the pier just as the last of the cargo was being taken aboard the *City of Naples*. He was dressed in a well-worn, light-checked, somewhat flashy suit, a scarlet vest, a flowing tie. His dark locks breathed forth odors of the lotions of cheap barber shops. He walked nonchalantly aboard the Italian bark and went below.

The vessel was just breaking loose from her moorings when the stowaway was discovered. There had been great haste in her sailing and she was making for the seas two hours ahead of her appointed time. The stowaway surmised that there was every reason why her officers would fear delay and that, if he could remain below decks until she was under way, the vessel would not be stopped to put him ashore.

It was from this situation that an unequal fight developed in which three sailormen sought to drag an unwilling youngster in a plaid suit from the hold to the deck that he might be put off the ship. But the first of the attacking force proved himself unfamiliar with the strategy of a lead with the left to make an opening for a swing with the right, and so this latter blow caught him on the chin and he went down and out. The second sailor was a squarehead and rushed his antagonist. The stowaway ducked and the force of the Swede increased the severity of a mighty jab with the right in the pit of the stomach, which happened at the time to be unusually full, and the attacker crumbled with an agony in his inwards. The stowaway grappled with the third man and showed an additional knowledge of the science of the rough and tumble. He twisted one of that individual's hands behind him

and pushed it up, using the favorite jiu jitsu trick that American policemen have borrowed from the Japanese. In this way he had his man at his mercy.

"Mother of Jesus," came a roar from the doorway in most indifferent Spanish. "Where did you learn it all?"

The stowaway looked up and saw the huge form of the bearded Russian who represented the government of Mexico standing there.

"In the United States," he answered in Spanish. "Ah, they are wonderful, those Americans!"

It should be remembered that Billy Gard, for it was he, had lived abroad when a boy with his father who was in the consular service. He had learned the languages of the Mediterranean almost before he spoke English and was therefore much at home among its people. And because of this he had been able to become an Italian stowaway in half an hour at a second-hand store in Brooklyn.

"But why all this fighting?" asked the Russian.

"I would go back to Italy, bon Italy," said the stowaway. "These pigs of sailormen know not how homesick I am. They would put me ashore. I not go. You see the result."

"Well, you will not be put ashore now," said the Russian. "I happen to be interested in this cargo, and I want no delay. You may come on deck with me."

It happened in this way that Billy Gard went to sea with a large cargo of Mexican ammunition, little believing that it would ever cross to Europe. Since he was aboard and might not be otherwise disposed of, the Italian captain set him to work as a clerk, and got much good service out of him on the ship's books before land was again sighted. It happened in this way, also, that he was given an opportunity to study and cultivate G. Egeloff, but little came of it because of the all-sufficiency of that gentleman within himself.

Gard was greatly surprised when the *City of Naples* maintained her course straight across the Atlantic. Even more surprised was he when she passed in

at Gibraltar, ignored the ports of Spain, sailed past the towns of her nativity in Italy and on to the east. Not until the Dardanelles and the Bosphorus were passed was he convinced that she was bound for the port for which she had cleared. But after six weeks at sea she reached Odessa, on the Black Sea, and there put into port.

But at Odessa the unexpected happened. The authorities, being by temperament suspicious and ever-vigilant of anarchistic plots, refused to let the ship unload her cargo of ammunition. Egeloff stormed and swore and bribed, but all to no avail. The ammunition might not be landed.

Billy Gard managed to get ashore and find his way to the American consulate. From there he was able to make his report to the home office and receive instructions that he was to remain with the ammunition cargo.

The special agent found his task comparatively easy here, and merely had to wait for events to take their normal course. His chief interest was G. Egeloff, who had remained a mystery to him despite a semi-friendship that had slowly grown up between them. He had attempted in vain to lead the Russian into a discussion of his future plans in Mexico, and had grown to suspect that the gentleman had no such plans. At Odessa the big man seemed impatient of delay, and, Gard thought, rather reckless of the disposition of his charge.

The representative of the United States had been contemplating the value of the guns bought at Valentines and the figure of \$750,000 which the Lily Maid had caught from the lips of the interpreter. He knew that the purchases at Hartford had not exceeded \$100,000. He drew the conclusion that this strange representative of the Indian head of a Latin-American nation would probably give less than value for the \$3,000,000 that had been placed in his hands for the purchase of American munitions of war.

The special agent was still attached to the *City of Naples* as clerk when, after ten days of futile attempts at landing her cargo, she again turned her nose to the sea. She was two days out when he became assured of a fact which he had suspected. The Russian was not aboard. The ship picked her course through the Mediterranean, out again past Gibraltar, but, instead of striking out toward Mexico as Gard had suspected she would, she steered to

the north and eventually came to anchor in the port of Hamburg on a windy morning in March.

At Hamburg there was assurance of ability to discharge cargo. No sooner had the ship tied up than its long-restrained personnel of officers and crew availed themselves of the freedom of shore leave. As the afternoon wore on, the vessel was deserted with the exception of the Italian second mate and a few members of the crew. Gard stuck to his desk in the purser's cabin. It was from this point of vantage that he became aware of an altercation on deck. An American voice was saying in English:

"Mr. Egeloff; I want to see Mr. Egeloff."

The second mate protested his inability to speak English, whereupon a second voice repeated the request in Spanish, with no better result. Then of a sudden a great light seemed to break on the second mate.

"Ah! Si, señor. If you will be so good as to step this way."

Whereupon he led the strangers to the cabin, where he knew Gard to be at work, and, remembering that the supposed clerk spoke many languages, he turned the visitors over to him.

"Mr. Egeloff?" asked the American, evidently misinterpreting the action of the mate.

The special agent was taken entirely by surprise. The possibilities of such a situation had never presented themselves to him.

"What if I am?" he asked cautiously.

"I am McKay," said the American.

"You have credentials, I suppose," said Gard.

"Yes," answered that individual. "I am authorized to provide for the reshipment of the cargo."

Whereupon he presented letters from the Mexican government showing him to be its agent in London. His companion he introduced as Mr. Sanchez, Mexican consul at Hamburg, whereupon the three dropped into Spanish and

continued the conversation. Gard presented letters he had found in the ship's office and addressed to these gentlemen. He took it that these letters were from the Mexican consul at Odessa. They evidently asked the men to whom they were addressed to do what they could toward expediting the transshipment of the cargo.

"We have all arrangements made," McKay volunteered. "The *Esmiranga* will take our stuff aboard immediately and is sailing for Vera Cruz in six days."

"I have had the very devil of a time," said the special agent, introducing the rasp of an occasional Russian consonant into his Spanish as he had heard it done for two months by the man whose rôle was being thrust upon him. "I want to run over to Warsaw for a few days. Do you not think, gentlemen, that I have earned this brief vacation?"

Whereupon McKay and Sanchez agreed to attend to all details, making it necessary only that the supposed Egeloff should be in Hamburg on the day of sailing. So was Gard relieved of the difficulty and danger of a sustained masquerade and so was he able again to get in touch with America. As a matter of fact he hurried to Paris. There he found Coleman, whom he had known before, in charge of the Paris branch of his own service.

"Dress me up like a white man," he told Coleman. "Lead me up to something that human beings eat. Take me out where I may try the experiment of attempting to be a gentleman again. I am by no means sure I can do it. Four days from now talk to me about cipher messages, but not until then."

But when Gard returned to Hamburg it was understood that he should use the old confederate cipher for any messages that he might be able to send. This is a simple and always efficient cipher made up of a square of the letters of the alphabet. One begins by writing the twenty-six letters in a row, commencing with A. The second line begins with B, placed directly under the A of the first line, and followed by all the letters in order. The third line begins with C, the fourth with D, and so on until Z is reached. Any amateur may build up his square of letters in this way.

There must be a secret key word which is known to the senders and the receivers. The keyword is written out repeatedly and the message is written beneath it. Instead of using the letters of the message, the letters of the keyword are used. This is the first puzzling translation. The message as it then appears is taken to the square of letters. In writing it as it is ultimately to be sent, its letters are found in the top line of the square and also in the perpendicular line that runs down its side. The lines of letters that radiate from these margins, one horizontally and one perpendicularly, meet at some point within the square. The letter upon which they meet is used in the message. No one in the world without his square of letters and without the keyword can read this message.

So the home government was informed that Special Agent William H. Gard might communicate with its ships by means of the confederate cipher and that the keyword, rather strangely, was "Russian whiskers." The home government transmitted this information to its battleships lying off Mexico and their operators were instructed to pick up any wireless that might come to them out of the Atlantic.

Gard hurried back to Hamburg just in time to sail on the *Esmiranga*. He was not sure but that the big Russian would communicate with the Mexican representatives and approached the situation he had developed with no little misgiving. It appeared that his conclusion that the Russian had made a getaway with much swag was correct. He was warmly received by both McKay and Sanchez and the ship got away with but one difficulty facing the special agent. The Mexican consul was returning to his native land aboard it.

Gard realized that, as the confidential representative of Huerta, he could not with impunity have anything to do with Sanchez, as that volatile Latin would immediately lead him into much talk of Mexican men and conditions. Gard knew almost nothing about Mexico City and could not even sustain a casual conversation on that subject.

It was because of these considerations that the apparently genial disposition of the supposed purchaser of munitions of war proved a disappointment to Señor Sanchez. This Russian was evidently no sailor. He took to his cabin as soon as the *Esmiranga* took to sea. His sea manners were also far from

Latin for he answered with guttural oaths any inquiries that were made as to the condition of his health. He seemed to have gone on a mad debauch and insisted that a constant procession of highballs be sent to his stateroom. He cut Señor Sanchez dead when he met him on the deck. Caramba! A beast of a man was this, to be shunned as the plague!

The captain and the wireless operator were the only individuals with whom this disagreeable shipmate had anything to do. To the captain it was made plain that a delicate situation existed off Mexico. The ships of those pigs of Americans were blockading Vera Cruz. They might blockade but they had no right to stop a German ship bound for that port. But he must talk to his principals in Mexico. There was the wireless of the *Esmiranga*, and there was his secret cipher which no Yankee could read. Might the operator handle his messages?

To be sure. The representative of the Mexican government which was to pay handsomely for the transportation of the cargo aboard the *Esmiranga* might do entirely as he wished.

So it transpired that Special Agent Billy Gard began talking to the American battleships in southern seas when the *Esmiranga* was not much more than half-way across the Atlantic. He amused himself writing messages much as a man passes the time of a voyage in playing solitaire. So it happened that the United States Government had all the details of the approach of a shipload of ammunition of American origin destined to Huerta, upon whom the screws were just then being put for insulting the Stars and Stripes. So it was evident that if this ammunition were allowed to land, it might be used against American troops, who were at any moment to be thrown into Mexico.

Yet the United States might not prevent a German ship from entering the harbor at Vera Cruz. The only method of stopping that ammunition was to seize the port and customs house and thereby come into possession of the cargo if it were disembarked.

The wireless of the *Esmiranga* sputtered out a message which, when interpreted in accordance with the confederate cipher and the keyword of "Russian whiskers," conveyed the information that the vessel was approaching the Mexican coast and that her intention was to steam under



the very noses of the American dreadnoughts into port. The facts were reported to Washington, where the alternative of seizing the port was sternly faced. Orders were given to act.

The next day American marines went, some to glory and some to death, past that most tragic spot in all America, the fortress prison of San Juan de Ullao; into those streets frequented by the sacred scavenger buzzard of the Aztecs; beneath the walls of the ancient parochial church beside the Plaza de la Constitución where the first American boy was destined to die at the hands of a sniping priest; into the gate city that had known Cortez and Maximillian, and had loaded the galleons of Spain with more silver and gold than had ever before been amassed anywhere in the history of the world.

But the *Esmiranga* did not come in to discharge her ammunition that it might fall into the hands of the Americans. Instead, it haunted Mexican waters for a while as a creature of unrest, uncertain where to land. Finally it put into Mobile, where its captain was left at a still greater loss, for the supposed Mexican gun-runner went ashore and was seen no more. Sanchez, the Mexican consul, left by train for his native land. Huerta, in the madness of his career, extended no instructions.

The ultimate disposition of the *Esmiranga's* cargo completes the record of another of those fiascos in the game of pandering to revolutionists in Latin America. The outcast cargo knocked about the Caribbean for a while like a party dressed up and no place to go. The constitutionalists came into possession of Tampico and sought a way to deal with the captain of the *Esmiranga*, who was still unpaid for transporting his cargo and willing to listen to almost any proposition. But the constitutionalists bought no pigs in pokes and insisted on an examination of the cargo. Probably they had themselves bought of Valentines and knew the nature of his stock in trade. They found a way to open some of the boxes and there discovered such an array of antique armament that even they scorned its use. Valentines and the Russian who came to New York to buy for Huerta had taken no pains to give that warlike gentleman the value of even a portion of his money.

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## IV

# THE SUGAR SAMPLERS

"Mr. Gard," said the chief, "I take it you would like to earn the stipend the Government pays you."

"Your lead sounds ominous," said the young special agent, who had a free and easy way with him even at the Washington headquarters. "If I say yes, you will hand me a large piece of hard work. If I say no, I will be courting discharge. I select the lesser of two evils. I confess to a desire to earn my money."

"It is like this," said the chief. "We suspect that there is a leak in the collection of sugar duties. You know the possibilities. If a ship comes to port with 10,000 tons of sugar from Cuba, it pays duty that depends on the purity of the cargo. If that sugar is graded at 92 per cent. pure it gets in a half cent a pound cheaper than if it is graded 96 per cent. pure. The difference in duty received by the Government on such a cargo might, theoretically, amount to \$100,000."

"If I catch three ships," mused Gard half to himself, "I have earned my salary for the rest of my life and won't have to work any more."

"I wouldn't just say that," responded the chief; "but if you saved the Government half a cent a pound on all the sugar imported, you would bring into the coffers a round two million a year. That would be a fair accomplishment for a somewhat amateurish detective."

"Sustained by the flattery of my superior," said Gard. "I am ready to rush into any mad undertaking. What are the orders?"

"You will be assigned to one of the great sugar ports. We do not even know that any fraud is being practised. You are to find out. If there is fraud you are to determine the method of it. The criminals, particularly the big ones, are to be apprehended. The Government would like to know how these frauds may be prevented in future. The work need not be completed to-

morrow or next day. You may have any amount of help. But we must know that sugar duties are honestly paid."

It was a week later that William H. Gard sent in his card to Henry Gottrell, president of the Continental Refining Company, one of the greatest importers of raw sugar in the nation. According to this card Gard was a writer of magazine stories. He had explained in asking for an interview that he was assigned to write an article on "sugar ships," which should be a yarn of color and romance in a setting of fact.

When the special agent entered the office of President Gottrell, large and florid and radiating geniality, he found his plan of approach somewhat interfered with by the presence of a third party. Seated at the elbow of the refiner was one of the most striking young women he had ever seen. Corn-colored hair gone mad in its tendency to curl made a perfect frizzle about her face. A flock of freckles, each seemingly in pursuit of its fellow just ahead, were hurdling the bridge of a somewhat pug nose. Blue eyes that danced and a mouth that responded to the racing thought of an active brain gave life to the face. And as she arose the slightest movement of her slim, well-rounded form suggested fast work on a tennis court.

Henry Gottrell presented his daughter.

"She always looked like a Swede," said the big man, "so we call her Thelma."

"And Mr. Gard," she bubbled forth, "I have so wanted to know what a writer did when he goes for an interview. May I stay and see?"

"It will destroy the romantic illusion if you do," said Gard. "Are you willing to pay the price?"

"I can't believe that," she said. "Do let me see how it is done! Don't leave out a single thing."

"The interviewer begins," said the special agent, "by seating himself, as I am doing, in an uncomfortable chair which has been arranged with the idea in mind of preventing him from staying too long. The gentleman being interviewed always reaches into the right-hand drawer of his desk, as your father is doing, and produces a box of very excellent cigars. Then the

interviewer explains the idea that is on his mind that requires elucidation. Has the man being interviewed anything on hand, already prepared, that covers the ground. Maybe he has made a speech at a convention, or something of that sort. The idea is to save labor for both. Mr. Gottrell is now looking for the report of his testimony before the committee on tariff revision. He will probably produce three reprints that will contain much matter that I want. I ask if he will provide a conversational escort to conduct me over one of his sugar ships, if I may talk to his captains. He agrees. You see him doing it. The interview is at an end. The foundation has been laid for a romance on 'sugar ships,' the same having a background of fact."

"That is splendid," exclaimed Miss Gottrell, "because it does so easily a thing that looks so hard. It does not spoil an illusion at all. It is wonderfully clever."

It was in this way that Special Agent Gard got an opportunity to go most carefully over the docks, through the warehouses, into the ships of the Continental Refining Company. It was in this way that he was enabled to ask many questions that might have aroused suspicion had he been there in any other guise than that of a writing man. It was in this way that he was able to observe rather carefully every process of the transfer of a cargo of sugar through the customs house at which the Federal Government takes its toll.

All the time the special agent was looking for a clue—was bringing an incisive mind to bear upon the problem of the course the sugar took and the possibility of fraud at each step. He spent days observing the methods of the weighers. He watched every detail of the transfer of cargo from ship to warehouse. He loafed about the sheds where the samples were taken—a process in which he took a vast interest.

Here the samplers, Government employees, ran their little hollow tubes through the mesh of the sacks that contained sugar. The tubes went in empty but came out full of that which was within. This constituted the sample for a given sack. Each sample was made into a little package, carefully labeled, and went to the Government laboratory to be tested. The duty on the sugar coming in was charged according to the degree of purity of these samples.

It was here that Billy Gard picked up his first clue. He noticed a peculiarity about the methods used by the samplers in inserting their tubes into the sacks. They were always run along the side of the sack and never plunged into its very heart. Tobin, the little consumptive, sampled in this peculiar way, as did the hammer-handed Hansen of the every-ready scowl. Yet it would be easier to take the sample out of the middle of the bag. Why did the samplers skim near the edge?

Gard took this question to the Government laboratory, but found no ready answer to it. He procured a typical sack of sugar and from it took two samples—one from the very heart and one from the outside rim. These he had tested in the laboratory. That from the middle of the bag showed a degree of purity 3 per cent. higher than that from the outside. The impurity, the report stated, was in the form of water.

Technical men were set to work to determine through many experiments the difference in the grade of the sugar in different parts of the bag. Finally it was established that raw sugar has a tendency to take up moisture, and that that portion of it which is exposed does so. The sugar near the outside came in contact with the air which contained moisture, while that on the inside did not. The refiners were, of course, aware of this tendency. But the important conclusion from the viewpoint of Billy Gard was that the Government samplers were doing their work in such a way as to favor the importers. Here might be a leak that was very important.

William H. Gard, special writer, that day disappeared from the sugar docks and was never seen again. Simultaneously with his disappearance the saloon of Jean Flavot, not a block and a half distant, acquired a new customer in the person of a roughly dressed young laborer who did not drink as heavily as some of his fellows, but was none the less willing to buy for others. But what was vastly more in his favor in the eyes of Flavot than even liberality was the fact that he spoke French. Mon Dieu, these rough Americans who knew not of the blandishments of absinthe and drank only the whisky! The resort keeper and the newcomer held them in common contempt.

The special agent had selected the resort of Jean Flavot as a basis of operations because it was the place most frequented by the samplers. He

wanted, in the first place, to find out if these men had more money to spend than honest men of their salaries should have. The individual who makes illicit money usually spends it lavishly and it should therefore be easy to determine if the samplers were being paid to be crooked. And Gard, after two weeks of convivial association with them, was rather thrown back upon himself when he found that their carousals were always within their means and that money was scarce among them. They were evidently not being bribed.

That he might get on a more intimate basis with these samplers Gard went to work as a laborer on the docks, and there toiled for two months. He came to be most intimately one of them, was given every opportunity for observing their work, was even intrusted with certain valuable confidences when the men were sober and saw his way toward learning more by associating with them when they were in their cups.

His task was but half finished, however, when the maiden with the frizzy hair and the freckles came near upsetting the beans. The daughter of the president of the company had played through her childhood on the docks and about the warehouse and was not yet averse to climbing stacks of sugar sacks or descending into the hold of the ships. So it happened that she often visited the water front, and Gard had at first feared he might be recognized, but this fear wore away as the visits were repeated and no attention was paid to him.

But one busy day he was carting away the sacks of sugar that were being unloaded in packages of twenty or so, slung in ropes and lifted by mighty derricks, when Miss Gottrell strolled down the docks under a pink parasol and in the midst of an array of fluffy, spring ruffles such as make a healthy, wholesome girl outrival in beauty the orchids of the most tropically luxuriant jungle.

The special agent had always liked corn-colored hair and freckles on the nose and worshiped at the shrine of the physically fit. Besides which this girl had enthusiasm and intelligence and inspiration. And it was spring and he was a youngster shut off from his kind and lonesome. He had thought of her a lot of times since that day he had interested her by pretending to be

something he was not. Now he rather resented it that she should be there and he a perspiring laborer, not daring to speak to her.

And just at that time something very startling happened. The great crane of the ship drew another load of sugar from the hold and swung it majestically over the dock. In doing so it described a great sweep in reaching the spot where it was to be deposited. In the midst of this sweep a single sack of sugar slipped from beneath the ropes and came hurtling out and down as though it were a projectile from a sling.

The pink parasol was standing unconsciously with its back turned directly in the course of the flying bag. The vision of spring beneath it was gazing away to where a sail was just taking the fresh breeze. Billy Gard and his truck were emerging from the shed for a new load of sugar. And here was a young man quick to act and with a training that enabled him to do so effectively.

Three strides and a leap into the air were all the time allowed. But this was enough to make it possible for him to tackle about the waist the catapulted sugar sack, much as he had often tackled the member of an opposing team who tried to go around his end in the old football days. To be sure, this end play was the fastest he had ever seen and resulted in a good spill, but it was a success. The pink parasol was uninjured.

Thelma Gottrell came to a realization of what had happened about the time Gard was getting himself to his feet. She ran to him spontaneously and would have helped him to rise had he shown the forethought to be a little slower.

"I do hope you are not hurt!" she began. "It was splendid—Oh! What? It is Mr. Gard, isn't it? How in the world—" She stopped in consternation. Billy Gard grinned foolishly.

"Don't give me away," he pleaded with her. "It is a very great secret and it would all be spoiled if you did. A writing man must have color, must know life, you know. Please don't spoil my chance by telling a single soul about it."

"Since you have probably saved my life," said she, "it would not be grateful of me to deny any wish of yours. But I will agree not to tell only on one



condition. You must promise to come to me and let me hear all about it when it is over."

"I promise," said Gard.

"And you must let me say that I think you are wonderful to do the things you do, and that I thank you."

She placed her dainty glove in his grimy workingman's hand for a moment and was gone.

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It was a wild Saturday night at Jean Flavot's. The occasion of the celebration was the ending of the season on the sugar docks. For seven months in the year the Continental Refining Company was busy with sugar that poured in upon it from Cuba and Porto Rico and Santo Domingo and other lands to the south. Then there was a period of five months when there was no sugar from the outside and refiners turned their attention to the home-grown crop.

Those men who had worked together in the camaraderie of the docks for seven months this season, and perhaps for many a year before, were tomorrow to be dispersed. They would be scattered about at many places and would play their part in the handling of the raw sugar that came from the canefields of Louisiana and the beet lands of Colorado and Michigan. Most probably they would meet again on these same docks five months later. But assuredly there was every reason why they should end the season in one mad carouse.

Billy Gard was present. Through the weeks that had passed he had gradually tightened the net that revealed to the Government the conditions that existed on the sugar docks. But his case might still be strengthened, for he wanted the whole story from a man who participated in the irregularities, and in such a way that it might be introduced into court as evidence. This was the last opportunity and the special agent hoped that the story might be told to-night when the samplers were reckless over their liquor.

Jean Flavot brought whisky and beer when the big-fisted Hansen beat upon the table. Billy Gard stood upon his chair and drank to the time when they

would all get together again under the cobwebs that decorated the ceiling of the little Frenchman. He led three lusty cheers for that time, for none was so abandoned on these occasions as the youngster who had saved the president's daughter. And Flavot and Billy interchanged a wink, for they had a secret between them. Both knew that the beverage that the special agent drank with such recklessness was nothing more than cold tea, and the little Frenchman delighted in seeing his favorite lead these American pigs, who knew no decency in drinking, on to complete inebriety.

But Gard had a secret from even Flavot which had to do with a grimy little man who sat at a nearby table and who had of late frequented the place—a seedy, long-haired, sallow man who worked always with pencil over the manuscript of a play he was writing. As a true genius he paid no attention to what went on around him, but always pored over his papers.

But this same man in Washington was a star stenographer at the Department of Justice, a dapper, one-time court reporter, the man who had handled the listening end of many a dictagraph when the ways were being greased between men in high places and the penitentiary at Atlanta.

"And you samplers," Gard was saying, "where can I meet you when another Saturday night comes?"

"Me at the Bayou Fouché mills," said Hansen.

"And the company sends me to Colorado for my lungs," said Tobin, the consumptive.

"And I keep time at the refinery," ventured "Fat" Cunningham.

"So everybody works," said the special agent. "Uncle Sam does not care if he lays good men off half the time, but the Continental people take care of the samplers."

"Good is the reason why they should," said the consumptive Tobin. "Don't we save them enough money in the way we take the samples?"

"How is that?" asked Gard.

"Look here, young fellow," said the gruff Hansen, "it seems to me that you are a good little asker of questions. Why are you so curious? Maybe you are

a secret service man, eh?"

"Sure," said Gard. "I am Chief Wilkinson himself."

"Wilkinson, nothing," said Hansen. "His name is Wilkie."

"Wilkie, your eye," argued the special agent. "Don't you suppose I read detective stories? His name is Wilkinson."

But the sampler was sure of his facts and the apparent error of the other man disarmed him.

"Well," he said, "as you're so curious and as I have the tip that you are to be a sampler next season, I might as well put you wise. We are all taken care of by the refiners because we look after their interests on the dock."

The big fellow looked carefully about, but there was nobody near except the frowsy dramatist, who was absorbed in his manuscript. He threw off another big drink of whisky and with it all discretion.

"You see," he said, "a sampler on Government wages would be in a pretty fix if he were let out after seven months and had to stand a chance of loafing for five. So the company passes the word that if the boys do the right thing they will be given work during the off season. I happen to know Gottrell himself and he takes me aside. That was eight years ago.

"'Hansen,' he says to me, 'pass the tip to the boys to sample right,' he says, 'and there will be work for them between seasons.'"

"'What do you mean, sample right?' I says.

"'Well,' he says, 'a wet sample may mean she grades 92 and a dry one that she grades 94. A sampler can get a good many of them wet. I don't have to tell you how.'"

"So I passed the word," continued Hansen. "At the end of the season half of the samplers were offered jobs with the company. It was easy, of course, for them to find from the records who was getting wet sugar. Not a dry sugar man got a job. You ask Tobin. He was one of the guys who held out for honesty. But it was a hard season for Tobin, with his health bad and three

kids. So next season he lined up. So did most of them. Inside of three years there was not a sampler on the dock who was not taking them wet."

"But put me wise," said Gard. "If I am going to get a sampler's job next year you better pass the word to me so I will know how to hold it."

"I guess you know enough about raw sugar," said the sampler, "to know that it drinks up moisture like a sponge when it gets a chance. Well, they are not careful in keeping out the damp air when it is aboard ship, and it often comes handy, not altogether by accident, for a sack of sugar to get a chance to lie on a wet board. The sugar on the outside naturally gets a little damp, and if you will turn a sack over you may find a wet side to it. The first lesson is to take your samples from the wet side of the sack and from the part near the outside.

"But maybe the sugar has been kept pretty dry. Well it is up to the sampler to get a little moisture into his tube. If it is a warm day a few drops of sweat may be gathered by a scrape of the back of your hand. Every drop is worth its weight in gold a hundred times to the refiners. It would surprise you to learn how cleverly the sampler learns to spit a bit of tobacco juice into his tube. You have worked on the docks for a long time. You never saw it done, did you? But they were at it all the time. I bet the Government has paid a million dollars for tobacco juice in the last ten years. Cunningham, here, has grown fat eating tobacco."

"But does everybody on the dock take wet samples?" asked the detective.

"Surest thing you know," said Hansen. "Ask them."

"How about it, Cunningham?" queried Gard.

"I need the work," said the fat man.

"And you, Tobin?"

"I held out a year," said the little consumptive, "but couldn't afford to lose my job."

All the others present pleaded guilty.

"Don't you fellows get anything for it but a little off-season work?" asked Gard.

"Not a thing," acknowledged Hansen with a huge oath. "We certainly sell out cheap and the company makes barrels of money out of the bargain. But the old man has never given us a look in on any of it."

The dictagraph stenographer at the next table had caught every word. He was in a position to substantiate the testimony of Gard who should be able to make these samplers tell their stories in court. Soon the two faded away without being missed, but they took with them a complete case against the Government samplers of this port and against the Continental Refining Company which had been profiting through their shortcomings.

It was a month later and Billy Gard had completed his work. He had gone to Henry Gottrell "cold turkey," and with authority from the department. He had shown that rotund and genial captain of industry just the case the Government had against him. With him he had gone over the record of the business of the refiners since that period, eight years previous, when the wet sample scheme had been inaugurated. He had worked out an estimate of the probable duty that the Government had lost during that time. The actual loss was not, of course, as great as the theoretical, for many of the samples were of necessity honest. Yet it must have run as high as \$600,000 as a shortage on the part of Gottrell and his associates.

Gard indicated the possibility of the success of a criminal prosecution, the probability of recovering that large sum of money through the courts. He confessed to the humiliation of the Government that so many of its employees had been false to their trust. He even granted that the Government might, under the circumstances, feel itself somewhat to blame for the conditions that had existed. It is not recorded whether the vision of a girl with frizzly, corn-colored hair came into the mind of the special agent and had to do with his recommendations that the case be settled out of court. But certain it is that the Government authorized him to propose that, if the company should pay the Government \$600,000, an amount it would be just able to raise and escape bankruptcy, the case would be dismissed, the samplers discharged, and a new régime inaugurated in which the Government would take pains to protect itself.

Upon this basis the case was settled. Billy Gard had earned his salary.

The next day he was packing up at his hotel in preparation for leaving for Washington when there arrived by messenger a little, square, delicately scented envelope which he tore open somewhat wonderingly. Inside he found this note:

Father has told me all about it. For the third time let me say, "Splendid!" And remember that you promised to come and tell me about it when it was all over.

THELMA GOTTRELL.

Which would seem a perfectly good reason why Gard was a day late in reaching Washington.

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## V

# THE PSYCHOLOGICAL SLEUTH

Billy Gard was jogging comfortably from the station to the Commercial hotel in the carryall which, in Royerton, still afforded the only link between those two points, when pandemonium broke out in the slumbrous streets. He met its forerunner head on not two blocks from the station. This bolt that had launched itself from the clear skies took the form of a normally dignified family carriage drawn by two lean bays. But the sedate respectability which surrounded this equipage when it was driven by its proper owner, President Sissons of the Royerton National bank, had been lost in the madness of the present exploit.

For the lean bays were now extending themselves in what appeared to be an attempt to break all speed records that the community had ever known. The dignified carriage was careening from side to side in a way that threatened its overthrow at any moment. Gard's first impression was of a team that had broken loose from a hitching rack and dashed away uncontrolled. But as it flashed past him there was an instant in which the actual situation was photographed upon his brain.

For this team was not without a driver. He had seen the form of a slim young man which leaned far out over the dashboard—pale, refined features that fitted illy into a scene of such vigorous action. But what was more surprising was that this driver, instead of attempting to restrain his horses, was every moment lashing them into new exertions.

"Homer Kester, as I live!" ejaculated the driver of the carryall in consternation.

"Who is Homer Kester?" asked Gard.

"The cashier of the bank," was the reply.

Whereupon the young special agent of the Department of Justice acquired an even greater interest in the situation than he had experienced before, for

he had come to Royerton for the purpose of making inquiries into the condition of its national bank, which was under suspicion.

Behind the fleeing carriage came the town constable, who had evidently appropriated, for purposes of giving chase, the first horse he had found by the side of the street. Others had joined in the pursuit and a rabble of small boys and curious townsmen crowded the street. From these the stranger was soon able to gather the story of what had happened in the immediate past.

It had suddenly developed that the cashier was short in his accounts. The directors had awakened of a sudden to a realization that the institution over which they presided was but a financial shell. There was no delay in the interest of expediency. An immediate call was sent forth for the constable. The young cashier went into a panic. In desperation he rushed from the back door of the bank, cut loose the team of the institution's president which stood near, leaped in and fled from the danger that faced him.

It would have appeared that such a procedure would have been entirely futile, that there would have been no question of the apprehension of this criminal. Yet such was not the case, and Homer Kester was a thorn in the flesh of the authorities and particularly of Special Agent Billy Gard for many a day. For he ran his team two miles into the country, abandoned it, but sent it still adrift, caught a cross-country trolley, and with the exception of a single fleeting moment, was not again seen by the authorities for a year and a half.

Gard, in the meantime, was faced with the immediate problem of determining the nature of the crime and representing the United States, that justice might be meted out. In the course of which work he developed the detail of what had happened to the lone financial institution of this country town and revealed a method by which a single depositor had filched it of its funds in a way that almost amounted to the knowledge and consent of the directors.

The trouble was all caused by a young man by the name of George D. Caviness, who was born with a peculiar gift of inducing his associates to perform for him such favors as were better not granted. It would seem that he had taken for his model in life the monkey (if it was a monkey) that had first induced the cat to pull those historical chestnuts out of the fire. But so



alluring were his blandishments, so attractive his personality, so popular was he socially, that the town had become accustomed to forgiving his transgressions and allowing him to have his way.

The father of George D. had been a director of the Royerton National bank and at one time a man of means. It was a great shock to the town when, three years earlier, the elder Caviness had blown out his brains. It was a surprise to his associates to find that his estate had so dwindled that there was almost nothing left. The bank was directly embarrassed, because of the fact that the younger Caviness had borrowed, upon his father's endorsement, \$3,000 from that institution. Knowing the youngster as these directors did, they called him on the carpet and asked him what he intended to do toward making good.

"I am going to pay these notes almost immediately," he said confidently. "You know that I am now the local representative of a New York insurance company. I am doing a great business. In fact, I can promise a payment tomorrow."

"But," urged a director, "your personal account is also overdrawn."

"That will not be necessary any more," said Caviness. "I am now on a firm financial basis. I am now in a position to throw new business to the bank instead of being a burden to it."

With these assurances the directors parted with young Caviness on the friendliest of terms. They wanted to believe in what he said, as this would save the bank money and themselves embarrassment. Further than this there seemed nothing that could be done, and the boundless optimism of the young man created confidence.

The next day the insurance agent deposited for discount a sixty-day note for \$300, given him by a man for whom he had written a policy. He drew \$50 in cash, and allowed the balance to be placed to his credit. The directors were encouraged. The insurance man continued such operations, much of his paper being perfectly good. It would appear that he was on the way toward clearing up his affairs, but Caviness spent much money, some of it going toward the entertainment of sons and daughters of the directors. If they stopped him at any time it would have meant the absolute loss of the

amount he already owed. As illogical as it might seem, more and more credit was extended.

In addition to the liberties that Caviness thus took with the directors of the bank, he had also established a sort of dominance over Homer Kester, its young cashier. The dominant insurance man had been a leader among their mutual associates from youth, was the social lion of the town, and always patronized the cashier. That timid youth had allowed his friend to overdraw his account when his father was a director, and it therefore seemed safe. This fact made it easier afterward when it was unsafe.

Finally the directors awoke to the fact that George Caviness owed the bank \$10,000. Homer Kester, the cashier, so reported. The directors were appalled. This was the end.

Caviness was contrite. He made new notes for the whole amount. These would at least appear in the assets of the bank when the examiner came around. He promised he would in future deposit only cash and certified checks. The hope of recovering some of the money led the directors to keep the account open. There seemed no other way.

But Kester, the cashier, had not reported all the facts with relation to the Caviness accounts. The checking account of the latter was at this time overdrawn to the amount of \$3,500. The cashier realized that he had been personally at fault in allowing this. He had confessed his embarrassment to Caviness. The latter had advised that the cashier juggle the accounts in such a way that the shortage would not show, and that he fail to report it to the directors.

Arranging the accounts was easy. As a matter of fact, these overdrafts were already being hid by being carried on the books as cash. The arrangement had become necessary upon the occasion of a recent visit of a national bank examiner. As the examiner had been deceived, so might be the directors. So it happened that Caviness was \$3,500 deeper in debt than the directors knew.

Billy Gard was fascinated in developing the psychology of the case—the manner in which this prodigal played upon the cashier and the directors to his advantage. But here the miscreant had come to the end of his string with

the directors. He was to be allowed only to pay in money. But with the cashier the situation was different. Caviness now had Kester in his control. That youngster had made a false report to the examiner and the directors. He had violated the law. His position, even his freedom, depended on helping Caviness to make good.

"If I had but a few hundred dollars," Caviness told Kester when they met surreptitiously to talk the matter over, "I could clean up the whole amount. I have a most unusual business opportunity in Philadelphia. You must let me overdraw just once more."

"Not a cent," insisted Kester. "I have already let you ruin me and the bank. I will go no further."

"If you don't," brutally stated the insurance man, "you are ruined by what you have already done, I am ruined, the bank is ruined. This is the one chance."

In the end he went to Philadelphia to grasp this one chance. Billy Gard acknowledged that it was logical that the cashier should allow him to do so. The draft that Caviness drew was for twice the amount he had named but the harassed cashier could not bring himself to refuse to honor it. Caviness had proved himself a psychologist again. Two days later a smaller draft came but with no line of explanation. The chance to recoup might depend upon this money, the cashier felt. He appreciated the greater chances on the other side but, having honored the larger check, he could not turn down the smaller one. It was not logic that he should do so. As the days passed there came other drafts for always smaller amounts. There was still no report from Caviness. Yet what excuse could the cashier offer himself for refusing these small drafts when he had honored the big ones? Finally the prodigal drew, in a single day, forty small checks ranging from one to five dollars.

Despairingly the cashier cashed every one.

It was during the week that followed that the directors had precipitated the flight of the cashier. Billy Gard found the whole case easy to clear up with the exception of the apprehension of the two men who had been the instruments in wrecking the bank.

The special agent had little doubt of his ability to catch Homer Kester, the cashier. There was the almost infallible theory that such a fugitive would write home. There was but the necessity to wait until he should do so and the point of hiding would be indicated by the post mark. There was no need of haste in the case of Kester, it seemed, but Caviness was harder to figure out.

Yet just the reverse proved to be true. Gard's theory for catching a man of the Caviness type held good, while on the fugitive cashier he absolutely failed.

In Royerton it was easy to find many intimates of the insurance man. From these it was learned that the spendthrift often visited Philadelphia and that while there he kept fast company. Some of the young men of the village knew of the places he frequented, the people who were his friends.

"Such a man," soliloquized Billy Gard, "always hides with a woman."

Whereupon the special agent returned to Philadelphia and began investigating, one after another, the resorts and the sporting friends of the missing insurance agent. One thread after another was followed to its end until, in tracing a certain woman to Germantown, the special agent met with a result and a surprise that was beyond his expectation.

A drayman who had hauled the goods and chattels of the woman he was tracing had given Gard the Germantown address. It was eleven o'clock on a sunshiny morning when the special agent reached the address. It was a narrow house in a closely built row and evidently was rented, each floor as a flat. Gard had reconnoitered front and back, had gossiped with the grocer at the corner, with some children in the street. He was looking for an opportunity to approach the janitor of the house to question him informally, wanted to talk to the postman. Then he met the policeman on this beat. He had asked this guardian of the law about the occupants of the flat in question and the two men were drifting idly past when pandemonium broke loose.

Shriek after shriek tore its way through the drawn curtains of the ground-floor flat. There was the crash of broken furniture, the whack of heavy blows, the thud of falling bodies. The policeman and the special agent ran

to the door of the house to which the former put his shoulder with good effect. They were thus let into a narrow hall. Off of this were the doors to the flat through which the noise of a vast disturbance continued to come. It required the strength of the two men to break through the barrier, and some delay was occasioned. But when the door was finally forced it was a wild scene that was revealed.

They had broken into the sitting room. Sprawled across its floor was the form of a disheveled woman, frowsily blonde, shapely, clad in a dressing sacque and evidently unconscious. Chairs were upset, tables overturned.

The intruders gave but a hurried glance to this apartment, however, for the action of the play was still going forward and might be seen through the torn portières that led into the adjoining dining-room. As they looked the form of a strong young man fell heavily across the dining-room table, felled by a blow from the stout stick of a slim antagonist. The wielder of the stick shifted his position and Billy Gard got a view of his face, lividly white, delicately chiseled and refined in appearance. It seemed illy to fit into this chaotic scene. Yet the special agent knew he had seen it before and instantly the photographic flash of such a face bending over the dashboard of a madly plunging carriage returned to his consciousness. It was the face of Homer Kester.

Billy Gard had often had occasion to be vastly surprised by the unexpected vigor and prowess of mild and law-abiding men when plunged by circumstances into the realms of the lawless. He had therefore not been greatly surprised when the young cashier had made his wild ride to freedom. But as the aggressive wielder of a heavy stick that had beaten his antagonist into unconsciousness—this was indeed a militant rôle to be played by the inoffensive former cashier. That young man evidently had qualities that had not been attributed to him.

Gard knew instantly that the man stretched across the dining-room table was Caviness, the bank wrecker. The policeman, true to his training, rushed into the affray that it might be stopped and the participants placed under arrest. The wielder of the heavy stick turned toward the door, took in the situation in a glance and fled toward the back of the house. As in his escape from Royerton, all the luck broke with him. As he dashed into the kitchen

he slammed the door behind him. It was probably all chance that the latch was so set that the door locked, and the officer was delayed in breaking it down. From the back steps of this ground-floor flat to an alley was but twenty feet. When the officer gained those steps he but looked into a blank board fence in which there appeared another closed door. He rushed to this, flung it open, looked out. There was not a soul in sight. The police of Philadelphia lost track of Homer Kester when he slammed the flat door in the face of this member of its Germantown staff. The prowess of the Federal agents, represented by William H. Gard, one of its best men, was also ineffective in tracing the fugitive farther than to a railway station where he took a west-bound train.

It was more than a year after this and George D. Caviness was serving time in the Federal penitentiary at Atlanta. Billy Gard had been working hard on many other cases that had intervened and the tracing of Homer Kester had been allowed to rest. It is the motto of the Federal detectives, however, that a case is never abandoned, and now Gard was back upon the old task of catching the fugitive cashier. His decks were otherwise clear and his instructions were to get his man.

Gard locked himself up with the Kester case for three days. He read the records of it, reviewed his personal knowledge, got together every scrap of information that had any bearing upon the character of the fugitive. He wanted to know exactly what sort of youngster Kester was, he wanted to place himself in that youngster's place and attempt to determine what he would have done under the circumstances. It is a method that has been used by a few detectives with very great success. But it is only the occasional man who is so human that he may discard his own personality and appreciate the course that would be taken by another, who may thus get results.

In Kester he had a youth of twenty-four who had been born and reared in Royerton, had rarely been away from that town, had no interests out of it. He was a young man of good character, had demonstrated certain strokes of boldness and action. He had a mother and father and two sisters living in Royerton.

It appeared that Kester had fled and that he had cut all ties behind him—that he had left town and had never communicated with his relatives or friends. While Gard had been off the case a vigilant watch had none-the-less been kept upon all letters arriving in Royerton that might possibly be from the fugitive. No letters had come.

"Now, Gard," said the detective to himself, "were you a youngster of this training, living thus in Royerton, surrounded by a family to which you were devoted, with no interests in the world outside, with a certain element of boldness in your nature; if under these circumstances you got into trouble, would you run clear away and never communicate with your people?"

"No," he answered, transported back the few years that separated him from the inexperience of twenty-four. "I could not break so easily from my dependence upon my family and the only world I had ever known."

"And if you were thus thrown upon your own resources in the big outside world and had no money, and if you had the additional handicap of having to keep in hiding—would you be able to face a proposition like this and still not call for help from your people?"

"No," again answered the hypothetical youngster. "I would hide and find a way to get money and news from home."

So the detective reached the conclusion that Kester was, in all probability, communicating with his relatives. It was evident that he was not writing home. Too close a watch could be kept on letters coming to a small town for any of his people or their confidential friends to be receiving them without the knowledge of the special agents who, through the postmaster and letter carriers, had been steadily watching this means of communication.

So the conclusion was reached that Kester was getting messages to his people through some other means than the mails, in all probability through a confidential messenger. To do this he must be near by. He could hide to best advantage in a city. Philadelphia, Pittsburgh, Baltimore were in a convenient radius. The detective drew the conclusion that, were he in the boots of the fugitive, he would have taken refuge in one of these cities; that, had he not been willing to risk the mails, which Kester evidently was not, he would have used some trusty go-between and through that agency would

have learned the news from home and received from his relatives the money upon which to live.

Upon the basis of this theory Billy Gard asked himself more questions.

"Were I hiding under such conditions whom would I use as a messenger?"

A faithful former servant who might be living there, a distant relative, some individual hired for the task. There were not so many possibilities. They might be exhausted in a few weeks' investigation. Was there not, however, a shorter road to results?

"If I were in this lad's place," the detective again queried introspectively, "what would make me write home?"

"Obviously nothing would," came the answer, "so long as I could communicate through the safer medium of a trusted messenger."

"But if the messenger were an impossibility, would I write?"

This query the detective had some difficulty in answering. He brought himself to experience the lonesomeness and homesickness of the fugitive, the lad whose whole life interest was wrapped up in the little circle in which he had moved. At the same time he appreciated the fugitive's proven fear of the mails and his avoidance of them so far.

But for the sake of laying down a basis for action Detective Billy Gard granted that he would write if he could not communicate otherwise. If this were admitted what was to be done? Obviously the former methods of communication should be cut off.

How could this be done?

The messenger method of communication was possible only because the fugitive was near home. If he were far away it could not be used. If he were far away he would also feel an added degree of security. A worldly fugitive would not, but Kester would. With a continent between him and his crime the man who had always lived in this narrow sphere would not appreciate the possibilities of his capture. He would write.



Special Agent Billy Gard was quite sure of this. He would have done it himself at twenty-four. The runaway cashier should be captured by being caused to flee thousands of miles further away.

Having reached this conclusion the special agent called Police Sergeant Flaherty on the telephone. Would Flaherty come to see him? Flaherty would be there in fifteen minutes.

Now Gard knew that Flaherty had grown up in the little town of Royerton. His folks lived there and Flaherty occasionally went back for a visit. The Irishman was a trustworthy guardian of the law and might be depended upon to carry out orders.

"Flaherty," said the special agent, "would you like to take a bit of a trip to Royerton over Sunday and see your folks, with all expenses paid?"

"Would I eat a Dago's apples when I was hungry?" said the policeman.

"Well, here is the lay of the land," Gard explained. "I am after that fugitive cashier, Kester, and I am going to get him. He is not far from home and his folks are in communication with him. I want them to know that I am after him. They will tell him, will supply him with a bundle of money and he will not stop running until he reaches Arizona. Then I will get him."

"Them are not police methods," said Flaherty. "I am not catching this dip, but when I do pinch them it is usually by getting close to them."

"I like to catch them on the wing," said Gard. "Anyway, you have merely a speaking part. Your talk is to the home folks, to the effect that I am hot on the trail of Homer Kester and likely to nab him at any moment. Go talk your head off."

Whereupon the policeman from Royerton spent the week-end at that village, had a good time and passed the word of warning.

Billy Gard waited ten days.

At the end of that time he was called on the telephone by the postmaster at Royerton. A letter had come to a sister of Homer Kester and in that young man's handwriting. It was postmarked "Spokane, Washington."

Gard despatched a long telegram in code to the special agent of the Department of Justice nearest Spokane, he being located in Seattle. He asked that officer to run over to Spokane and pick up his man. It was merely the task of locating a well-described stranger in a comparatively small city. Two days later the Department was informed of the arrest.

"Psychology," said Billy Gard ruminatively, "is a great help to a detective—when it works."

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## VI

### **"ROPING" THE SMUGGLERS OF JAMAICA**

Special Agent Billy Gard sat in the café of Fun Ken, that wealthy Oriental who had pitched his resort among the ferns of the Blue Mountains which look down upon Kingston, the capital city of the tropical and flowery island of Jamaica. Many drowsy afternoons had he spent here with orange juice and a siphon at his elbow and the best of Havanas in his teeth. For Billy, in the opinion of every man he met in the islands, with the single exception of the American consul, was a retired manufacturer, with money to spend and time hanging heavily on his hands.

As a matter of fact, his table at the café was chosen because it gave him an opportunity to observe Fun Ken and his satellites, whom he suspected of being a part of a huge conspiracy for the smuggling of opium and Chinamen into the States.

This afternoon he had thus silently gained a reaffirmation of his belief that Fun Ken was a part of the organization with which he had already associated Wilmer Peterson, whose acquaintance he had been cultivating. He had seen Peterson alight from the electric car that passed the door. The American had gone through the café and out at the back. Fun Ken, who was at the time presiding at the cashier's desk, had immediately disappeared. Half an hour later Fun Ken was again on the cashier's stool and Peterson shortly thereafter returned to the café. This occurrence had been witnessed for three days in succession by the special agent, who regarded it as a convincing indication of collusion between these two men.

Of Peterson's operations, Gard already had absolute proof. This he had gained at Port Antonio, the shipping point for fruit at the other end of the island. He had been sent to the Caribbean because of the difficulty the United States was having in preventing the smuggling of opium and of Chinamen not legally entitled to enter the country.

It was suspected that Jamaica was the base of operations for these smugglers, and the Government wanted to understand the case from the inside.

Gard assumed the rôle of a retired glass manufacturer who had time to lounge the winter away about the southern seas. For two weeks he had luxuriated about the Hotel Titchfield, in Port Antonio, and changed his clothes oftener than any Englishman in the place. There he had noted the clumps of idle Chinamen who made headquarters near the wharf, and the occasional stealthy American who was particularly in evidence when there were freighters in the harbor.

Gard soon became a familiar figure about the hotel lobby and bar-room, where he spent money freely. Likewise was his boat to be seen on the bay for many hours of the day, for he made rowing his diversion.

"Don't buy drinks for that bunch, Mr. Gard," Hogan, the bartender at the Titchfield, admonished him. "They are nothing but a lot of smugglers."

This was his first lead. That night Gard rowed late on the bay, skirted a banana boat that lay tied to the wharf and scrambled up unseen to a side door of the customs house. To this door he had a key. He let himself in. Where the customs house faced the wharf were large double doors through which freight might be taken directly to the boat tied there. The special agent unlocked these doors and made a crack just large enough for observation and for eavesdropping, but still so small as not to attract attention from the outside. Here he waited from eight to eleven o'clock.

In the stillness of this late hour the skipper of the banana boat and Peterson, the smuggler, held a conference.

"I have room for ten men," said the skipper.

"I have the men ready to come aboard," said the smuggler.

"And the money?" suggested the man of the seas.

"The cash is ready; \$150 for each man when he is stowed away. You will land them at Mobile."

"At Mobile," assented the captain.

"See me next trip at Kingston," said the smuggler. "I leave for that point in the morning."

Thus was gained the first peep into the methods of the smugglers. Gard reported to the American consul, who sent a message that would result in the seizure of the banana boat when it reached Mobile.

The special agent now had the thread of his work well in hand. His intentions were to get at the very bottom of the affair, however, and not merely to apprehend an individual like Peterson. That gentleman should be induced to show the way. Peterson should be "roped." That most effective, yet most difficult task of working into the confidence of a culprit and inducing him to lay his cards on the table, should be employed.

It was with this idea in mind that Gard came down to breakfast early the next morning, but not so early that Peterson was not there ahead of him. He sat opposite his man. The special agent kept looking at his watch apprehensively, and finally asked the man opposite if he knew what time the train left for Kingston.

"At eight-thirty," said Peterson. "There is plenty of time. I am going over on that train myself."

This opened the conversation, and placed Gard in the position of having first indicated his intention of making the trip. He had said he was going before he seemed to know that Peterson had any such intention. These small matters are of great importance in laying the foundation for getting your man. They talked through the meal. It was but natural when, at 8:15, Gard appeared with his grip and started to enter his cab, that he should ask Peterson, who was just then ready for departure, to join him.

At the station the smuggler, as a return favor, advised Gard not to purchase a ticket, as one could ride for half the fare by handing the cash to the conductor. Gard, however, declined this opportunity to save money, for he was looking to the future and the necessity of establishing himself in a given light with this stranger.

Peterson asked his companion as to the hotel to which he was going in Kingston.

"The Myrtlebank," said Gard.

"It will cost you six dollars a day," said the smuggler. "Come with me, and I will show you as good accommodations for three."

A detective less experienced in roping might have considered an opportunity to go to this man's hotel with him as a piece of good fortune. Gard declined the invitation.

"No," he said. "The expense is of little importance to me. I shall stay at the Myrtlebank. Won't you take dinner with me there to-night?"

Peterson, being what the English call a "bounder," was impressed by his friend's disregard for money, and eagerly accepted all his invitations to share a more expensive hospitality. So was the atmosphere created for which the detective was striving.

The two men spent much time together. They automobiled about the city and dined at the resort of Fun Ken, back in the hills. The man who claimed to be a retired glass manufacturer seemed to be a careless sort of individual, with a disregard of how he spent his time. He was rather indifferent of his associates, it seemed, and inclined toward those whose lives were free and easy. He was the last man in the world to appear to have any interest in the activities of his fellows, or to care whether their means of livelihood was honest or not. He was the source of a great deal of satisfaction to Peterson, who was often embarrassed by inquiries into his occupation.

And all the time Gard was picking up the details of the operations of the smugglers. It was through the negro boy who waited on him at the hotel that he learned of an opium shipment. The boy had overheard the conversation that gave him the information, and told of it amusingly in the cockney English of the Jamaican negro.

Sing Foo was the moving spirit from the Chinese end in these smuggling operations. He was a more important man, in fact, than was Fun Ken, who ran the resort on the hill. Sing Foo was a wealthy merchant with a large establishment in the center of the Kingston Chinatown. Gard had been studying his establishment. The strange thing about it was that there were constantly two or three hundred idle Chinamen in its vicinity. The presence of Chinamen not at work is a condition so peculiar as to require an

explanation. But with the smuggling theory in the back of one's head, it was easy to conceive that these superfluous Mongolians were waiting an opportunity to be shuttled into the United States.

The smuggling of opium and of Chinamen was known to go hand in hand. Sing Foo, according to the negro boy, had arranged a shipment of opium to Philadelphia. A French-American named Flavot, whom Gard had met through Peterson, had been the intermediary. The captain of a tramp copra trader was to carry it. It was to be snugly hidden and, when the steamer docked, nothing was to be done immediately about it.

Presently a large negro wearing a linen ulster would come aboard under the pretext of doing some sort of work about the ship. This negro was to be shown the opium. He would carry it out a few boxes at a time.

Gard cabled his home office the details of this deal in opium introduction. He advised that nothing be done until the negro went aboard, actually carried out the stuff and was followed to his principal. There was a slip in Philadelphia, however; the captain got suspicious and the opium was thrown into the river.

Two months passed in this way. All the time Gard and Peterson were becoming more intimate. One day the supposed retired glass manufacturer confessed to the smuggler that he had once made some easy money by backing some men who had a system of beating the poolrooms. This, he said, was in Vicksburg, Miss. The poolrooms in that city got their returns on the Memphis races on a loop that was relayed out of New Orleans. That is, the results were telegraphed from Memphis to New Orleans and from there relayed to the smaller cities on a telegraphic loop. This caused a delay of about four minutes. The men whom Gard had backed had established communication by telephone between Memphis and Vicksburg and got the returns in time to put down bets ahead of the receipt of the poolroom's information. Thus they made the cleanup.

This not merely paved the way to similar confidences on the part of Peterson, but gave him to understand that Gard's morals were none too puritanical, and that he might be induced to back other questionable enterprises.

Peterson evidently thought this matter over thoroughly before acting, for it was three days before he touched on the subject. Then he said:

"I could show a man of your sort an investment that would pay him a hundred per cent. every month, if he were looking for a chance to make money."

"Well, I am not looking for such a chance," said Gard, "but if one should drop into my lap I might tie a string to it."

"Do you know anything about the opium business?" asked the smuggler.

"Not a thing," said Gard.

"Well, a can of opium can be bought for five dollars in Jamaica, and sold for twenty-seven fifty in Philadelphia."

"That's a pretty good profit," said the special agent; "but a man would have to get more than two or three boxes past for it to amount to anything."

"If you had a trim little schooner and some one to show you how to get her past the authorities, and she was loaded with opium to the gunwales, you would not have to make a trip every other week to keep in cigarette money, would you?"

"Obviously not," assented the capitalist.

"And you may have noticed all these idle Chinamen about Sing Foo's place," continued the smuggler. "Somebody is going to get one hundred and fifty dollars apiece for running those fellows into the States. They are crossing in a steady stream and getting past. It is but around the corner of Cuba and a hundred inlets inviting. Twenty of the Chinks can live in a space as big as a dog's house, and they feed themselves. It's clear profit. The little schooner could carry a score or so of them every trip."

"It looks like a good proposition on paper," said Gard. "If it could be demonstrated, it would easily get a backer. But the trouble with all such schemes is that they are good on paper, but they can't be actually shown upon the basis that a business man with money demands."

"But this one can be shown," urged the smuggler.



"That is the way you fellows with fancy schemes always talk," argued Gard. "You can make all the money in the world if you only had the backing. Then a man with the money comes along and says 'show me.' You always fall down on the showing."

"Would you put up the price of a schooner and a cargo of opium if you were shown that my scheme would work?" asked the smuggler.

"I would," said Gard. "But you must remember that I am a business man who has made his stake by strictly business methods. I must be shown."

This was the first step toward the formation of a smuggling syndicate that labored along in its preparation for birth and died tragically.

Gard here insisted on proving to Peterson his commercial reliability and financial standing. He had long before prepared the papers for just such an occasion. He had credentials, and letters of credit, and certificates of deposit and bank books without end. The smuggler had had no idea of the wealth of the man he had been cultivating. The backing was without end, if he but won this man's confidence.

So he took the financier in tow, with the idea of first showing him the source of supply of opium and of Chinamen. In the presence of Gard he got quotations on opium from Sing Foo and from Fun Ken at five dollars for a can the size of a pot of salmon. It was shown that there was opium to be had practically without end.

And the Chinamen themselves! He was told that there were always five hundred of them in Jamaica, ready to make the run into the States. When these were gone there were as many more on the way. In fact, there was all China to draw from. Every Chinaman who came was a member of an association. That membership was to cost him six hundred dollars. He need not pay in advance, as such men as Sing Foo stood back of the association and furnished the capital. Whenever a Chinaman got into the United States he went to work. He was able to earn at least twelve dollars a week. Half of this went to the association, until the six hundred dollar fee was paid. The association was willing to spend a total of four hundred dollars to get a Chinaman into the country. Its minimum profit was two hundred dollars a

man. The stream flowed constantly. Were not Sing Foo and Fun Ken the richest Chinamen in the Caribbean?

The supposed financier declared himself satisfied of the abundance of the supply of these objects for profitable smuggling. But he wanted to see some of the money actually made. Whereupon Peterson and Flavot agreed that he should have a complete demonstration.

There was then a Norwegian bark in port, and her captain had agreed to take aboard twelve Orientals. He was bound for Norfolk. Peterson and Flavot had made arrangements with him, and Sing Foo was ready with his men. In the dead of night Gard accompanied the two Americans as they pushed off the well-laden boats from the foot of a deserted street in Kingston. He saw the men go aboard. He went deep into the bow of the ship with them and saw them nailed up in a nook behind a wall that seemed to be the end of the vessel. He saw a Chinaman who had come aboard as the representative of Sing Foo pass the captain eighteen American one hundred dollar bills. He went back to Chinatown with Peterson and Flavot and saw them draw their bonus of fifty dollars for each Chinaman that had thus been disposed of.

The capitalist declared himself convinced so far as the Chinamen were concerned. How could he be shown profits in opium?

"Opium," said Peterson, "is the one sure way of making easy money. If you are ready for a little run back to the States, I will show you all the details."

The special agent assured the smuggler that he would be as pleased in making a run back to the mainland as in loafing in the Hotel Myrtlebank, if there were amusement in it and a chance to make some money in an interesting way.

Two days later the three men were aboard a fruit and passenger steamer at Port Antonio, bound for Philadelphia. Beneath the mattress of each man's bunk were twenty cans of opium.

"All you have to do," elaborated the smuggler, "is to open up your baggage for inspection as you approach the port. The inspectors go through it, but never do such a thing as look beneath the mattress. When they have gone

you take the opium out from its hiding place and put it into your baggage, which had already been inspected. Then it goes ashore."

"But," insisted the special agent, "is not your stuff examined again on the wharf?"

"This system would not work," Peterson explained, "if you were landing at New York. There the baggage is examined in the staterooms and again on the pier, as the passengers come ashore. But in Philadelphia there is but the one examination, which takes place in the stateroom."

"But is there not a pretty good chance that the inspector may sometime look under the mattress?" Gard asked.

"There is the barest possibility," assented the smuggler. "We have been taking it in this way for years, and it has never been found. But if it is discovered, we have but to look innocent. It cannot be proved that we are responsible for its presence. It might be the steward."

The three came into Philadelphia, and passed the customs officials as the smugglers had prophesied, without a hitch. They went to their hotel, and there found themselves each the possessor of twenty cans of opium, for which they had paid five dollars and for which, Peterson said, they were to receive \$27.50. This was the part of the transaction that was yet to be demonstrated.

"We will do but a little business in Philadelphia," said Peterson, "just to show that it can be done."

They took ten cans of the opium to a Chinaman in Arch street, with whom Peterson was acquainted. Yes, this man would buy opium. The price for the same grade was the same as before, \$27.50. He could use all he could get. He would be glad to take ten cans. The profit on these ten cans was \$225.

"We could have sold him a hundred cans as easily, with ten times the profit," said Peterson.

In New York the smugglers called upon a Doctor Yen, in Pell Street, one of the important men in Chinatown. He stated that he was able to buy opium at

\$27.50. The smugglers insisted on \$30. After much haggling 20 cans were sold at \$28.50. Here was a profit of \$470.

But Doctor Yen was to be counseled on a much more important matter. He was to be told of the proposal to purchase a boat for the opium traffic. He was to be asked to guarantee the purchase of large amounts of opium.

The old Chinaman became greatly excited. He ran to his safe and came back with \$10,000 in currency. He was willing to put up this money for its value in opium at \$27.50 a can as soon as delivered. When that was gone there would be other money. He alone would make the owners of the boat rich.

In Boston was the actual headquarters of Peterson and Flavot. A Jew by the name of Ferren was their financial backer. It was Ferren who had put them into the business. When Ferren was told of the proposed enterprise he would not at first listen to it. He would have to be shown that this Mr. Gard was on the level. There were too many eyes watching for opium.

Peterson told of the credentials, and finally succeeded in convincing him that Gard was what he purported to be and, gaining confidence as the plan developed, the Jew finally became enthusiastic. In the end he vied with Doctor Yen in his anxiety to purchase unlimited opium.

Gradually Gard granted that he was convinced of the feasibility of the scheme, if he were shown the possibility of getting the schooner into the States. It was at this point that he was introduced to one Captain Bailey, who had, some years before, figured in a very sensational attempt at the introduction of Chinamen from Canada and their landing at New Haven. Bailey had been caught, had served a term in prison, and, since his liberation, was running a fish stand in Boston market.

But Bailey knew all the coves in the Atlantic and the gulf into which a boat might put. He knew every dock where she might tie up, and the time that must pass thereafter before it would be safe to put his men ashore. Operating from Jamaica there was none of the danger into which he had run in bringing Orientals from Canada.

Eventually the papers were drawn, setting forth conditions under which all these men entered into a partnership in this smuggling venture. Gard,

Ferren, Peterson, Flavot and Bailey had all signed, and Gard had gone to New York to get the signature of Doctor Yen. The district attorney's office in Boston was prepared for the arrests when the papers should finally be signed. When Doctor Yen affixed his signature Gard signaled an associate across the narrow street in Chinatown. He sent the flash to Boston and the trap was sprung.



**"WHEN DOCTOR YEN AFFIXED HIS SIGNATURE GARD  
SIGNALLED"**  
—*Page 135*

So were all the inside facts of this most aggravating system of smuggling revealed. With these facts in hand, the Government had little difficulty in

breaking up a system that had been causing a lot of trouble for a decade.

So, also, was one of the most complete and successful cases of "roping" that any of the Government agents had ever attempted carried to a successful termination.

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## VII

### A BANK CASE FROM THE OUTSIDE

"It is astonishing," said Gard, the bookkeeper, "how few people know anything about their own business. Take bank accounts, for instance. Many people have money in the bank which lies there inactive. There is not one man in five, having such an account, who can tell the amount of it."

This statement was launched during the evening meal at Mrs. Hudson's very respectable boarding-house in the prosperous little town of New Beaufort, which slumbers in one of the valleys of central New York.

"I must take issue with you there," ventured the elderly rector of the Episcopal church who, being a widower, boarded with Mrs. Hudson. "I, for instance, have managed to save a little money for old age and I can tell the amount of it to a penny."

"And I know just how much I have on deposit," insisted Miss Dolan, the school-teacher.

"And I am quite sure of mine," asserted a buxom widow who had collected life insurance.

"As a test of my contention," said Gard, "I am willing to pledge a box of candy to each of the ladies and cigars to the gentlemen who will set down the exact amounts of their inactive accounts in the First National bank and then prove their figures correct by application to the cashier."

This proposal appealed to those who had been drawn into the incipient controversy. Next day they asked for the figures, and each had won his reward. Gard seemed chagrined that his theory should have thus gone to the winds, but he cheerfully stood treat.

For he had established a fact very important to him. The inactive accounts of the First National bank of New Beaufort were intact.



This was one of the first steps in an investigation of a financial institution which, while seemingly in the best of condition, was suspected of having been looted for hundreds of thousands of dollars. Special agents of the Department of Justice knew that an official of the bank had been trading heavily in Wall Street and that he had lost. Gard, a member of this new detective force of the Federal Government, had been sent to investigate. Representing himself as a bookkeeper he had secured a position with the leading grocer and had come to board with Mrs. Hudson.

He stayed three months. At the end of that time he reported the shortage, fixed the blame upon the man responsible for it, showed the methods used, cited the accounts from which the money had been stolen, told what accounts were still intact. Yet he had never been inside the bank, had seen none of its books, had consulted with nobody familiar with them, had received no confessions. The manner in which he accomplished these seemingly impossible ends illustrates most excellently the methods used by this new detective agency of the Government.

It was a strange conspiracy of circumstances that brought to New Beaufort detectives from three different services on the night, two months later, that Conrad Compton, the enterprising citizen and banker, was giving his big party.

There was McCord, a plain-clothes man from New York. McCord would not have been in New Beaufort but for the ramifications of the New York police department in keeping track of these middle class criminals who live through the trade of burglary—a calling that is sometimes refined to art. And the police department would not have come into possession of a certain tip if "Speck" Thompson had not done his bit up the river and returned to his old haunts so broken that he chose to become a stool pigeon because he was no longer up to second story work.

Speck had found that "Dutch" Shroder had arranged to crack a safe and that the scene of the cracking was New Beaufort. He had tipped the matter off to the police, and hence McCord's presence in a community that was far from metropolitan. He represented the first of the detective services.

The second such service was represented by Ogram Newton, a bank examiner in the service of the treasury department. His district was central

New York. For three years he had been taking an occasional look into the books of the various national banks of his district, checking up assets and liabilities, inquiring into the value of the paper held by the banks. Two weeks before Conrad Compton gave his party Newton had been in New Beaufort and had gone thoroughly into the affairs of the bank. Its books were models of efficiency and there was no flaw to be found in any of its securities or loans. Newton had given the institution his O. K. and had passed on to other towns.

But there was a feeling of unrest that haunted the young examiner. It seemed that his subconscious mind was aware of an oversight that had been made by his working faculties. He was not able to sleep well of nights, and in his sleep the various accounts of the New Beaufort bank insisted on visualizing themselves. Finally the recurring accounts eliminated themselves with the exception of one which persisted. The loans and discounts account kept thrusting itself into his consciousness.

"By Jove!" he exclaimed suddenly to himself. "The entries in that account, the amounts of money that have been run through it, are out of all proportion to the other business of the institution. Something is wrong with loans and discounts."

So Newton hurried back to New Beaufort and was that night a guest at the party given by Conrad Compton, with whom he had built up a friendship through years of association in the line of his work. He was to take a further look at the loans and discounts on the morrow.

The Department of Justice is the prosecutor in cases of violations of the national banking law. Its work is entirely apart from that of the bank examiners of the treasury department. The New York office of this service, as a matter of daily routine, received the information that David Lorange, assistant cashier of the First National bank of New Beaufort, was regularly placing heavy buying and selling orders with a certain broker in Wall Street.

For this reason, Agent Gard got the assignment to come to New Beaufort, and was thus the representative of the third detective service. His windows at the grocery store looked out upon the side door of the bank opposite. He was bland and inconspicuous, but he was an expert accountant, had taken a

degree in the law and worked three nights a week in the gymnasium in New York when he was in town.

The Compton home stood on a hill just back of the town. It was known as Stone Crest and was the most ambitious establishment thereabouts, being always pointed out with pride to visitors. The banker was a widower, but given to entertainment and to charity. The members of the board of aldermen often met at Stone Crest to discuss those matters that had to do with the well-being of the town. Teas were given there whenever its charitable women were inaugurating some new venture. The party to-night was a semipublic affair, for it was in commemoration of a centennial anniversary of that occasion when the first settlers had fought off attacking Indians from their stockade through a day and night.

Conrad Compton was a tall, graceful, nervous man, with a high forehead and a mass of wavy hair. His features were of a perfect regularity and the whole face was so small as to give it somewhat the appearance of that of a woman, an impression that was heightened by its absolute pallor.

Ogram Newton, the bank examiner, watched his host narrowly as he received his guests, as he directed their entertainment by a party of professionals who had been brought up from New York for the occasion, as the ices were served. He thought the banker was a bit paler than usual and his natural nervousness seemed somewhat accentuated. Once during the evening he had drifted into the library which happened to be empty of guests, and had found the host peering out of a window that commanded a view of the town.

"I trust you will pardon my preoccupation," said the banker, turning again to his guests, "I seem to have a way of feeling lonesomest when I have most company."

McCord, the plain-clothes man, had vacillated between his hotel, the railway station, and those streets that gave views of the alleys leading past the back ends of establishments that might contain safes worth raffling. Occasionally his eye fell upon the lights in the house of the banker on the hill, and wandered to the chief financial establishment of the town. Yet all was so serene in this eddy of the world that the hour of solitude that followed eleven o'clock seemed such an age that it drove him to bed.

As the time drew on toward twelve there was no sign of life in the village. The lights in the drug stores, the restaurants, the delicatessens where ice cream is served to the small town lovers, had one by one winked themselves out. The owl car of the trolley line that ran through the village had deposited its last late revelers at eleven-thirty. The swinging arc lights at the street intersections occasionally sputtered fitfully and glared again. A dynamo whirred distantly at the electric light plant.

Gard, the special agent of the Department of Justice, was one of the few men in the town who was awake except those who had been guests of the banker and who had lingered to an hour which was almost unprecedented in New Beaufort. They would have gone home at eleven, but the banker insisted that they remain for further entertainment on the part of his New York musicians. One song called forth another and the quality of the music proved so much more pleasing than that of their customary local talent that they forgot the passing of time. The special agent sat on a hill near the Compton home and smoked a pipe.

It was twelve o'clock before the party finally broke up. Those of the townspeople who had come in their automobiles were being tucked into the tonneaus, and those who had walked up the gray macadam drive were just setting out on foot when the clatter as of a bunch of giant fire crackers called their attention to the village below. From the bank building was seen suddenly to burst a cloud of smoke while, a moment later, a skylight was broken and a tongue of flame leaped forth.

"Fire! Fire!" came the shout from a dozen voices.

Gard had seen more than had the guests of the banker. As he smoked his pipe and watched the village below, the lights in the windows of Stone Crest, and the silent cottage of Lorange, the assistant cashier, he had seen an automobile, with no lamp showing, creep through the quiet back street, purr stealthily into the alley back of the bank and stop behind a small building that shut off his view. Half an hour passed and the darkened machine reappeared from behind the intervening building, turning into the thoroughfare leading to the southeast and disappeared in the distance at an ever increasing rate of speed.

When the exploding cartridges in the cashier's drawer at the bank gave the first warning of the fire, the clamor of the alarm followed and pandemonium broke out in the village. Of the dispersing group on the hill, every one ran for a nearer view of the fire. The musicians, the servants, the master of the house himself, all hurried into the village to make part of the excitement that prevailed. Stone Crest, the lights of its entertainment still glowing, was left deserted.

Gard, the special agent, again acted differently from his fellows by failing to do the thing which others did. He crossed over from the hill on which he had smoked and hastily entered the banker's house. Arriving, he seemed to know exactly what he wanted. He hurried through the rooms of the house, snapping on still more lights until he found that apartment which seemed to be the personal retreat of the owner.

Here he evidently had business. Standing in the middle of the floor he looked about. Thrown carelessly into a window seat he saw two heavy books of the appearance of ledgers. These he secured and placed on a table in the middle of the room without even examining them. Next he began further exploration. When he found the banker's bedroom he seemed satisfied. On the back of a chair was a coat, evidently that which Compton had worn until he dressed for the evening. Gard thrust his hand into the inside pocket of his coat and pulled out a batch of letters through which he ran rapidly. He selected two or three, thrust them into his pocket, returned for the ledgers, tucked these under his arm and left the house.

On the way to his lodgings he filed a telegram to the department at Washington which read as follows:

Compton, cashier in First National bank case, guilty. Lorange probably not implicated. Bank burned to-night by accomplices of Compton. Case complete.

GARD.

The manner in which these conclusions were reached are but typical of the methods of the sleuths of the Department of Justice. Gard had come to New Beaufort with but a suspicion that Lorange, the assistant cashier, was

playing the market on the funds of the bank. Lorange was known to be placing orders with a Wall Street broker.

At the boarding house Gard learned that Lorange lived modestly in a cottage with his wife and babies, had not been seen to make any display of money, was of sturdy farmer stock. On the other hand the investigator immediately picked up the facts that the cashier, Compton, maintained an expensive establishment, entertained lavishly, was often absent from town, was nervous, highstrung, in bad health.

All these facts led him to watch the cashier rather than his assistant. They led him, also, to some experimental testing of the condition of the bank's accounts. He knew that a dishonest employee of a bank, in appropriating money, had to charge it to some account to make the books balance. The large, inactive accounts offer a most tempting opportunity of this sort; but these were found to be intact by his ruse of inducing the depositors to call for their balances.

It was to get a better line on the business of the community, and particularly upon the accounts of Compton, that the special agent secured a position of bookkeeper in Joy's grocery store. Here he found, in the first place, that the buying of the Compton home was profligate and evidently wasteful. He found, further, that the bills were always paid without question and by check. Knowing of an old trick that has brought many a cashier to ruin, Gard sought a way to test these personal checks to determine whether or not they actually found their way to the personal account of the cashier.

The cashier of a bank is usually the individual who opens the mail, and many of these have been known to cash personal checks and destroy them when they came in for collection, charging the amount to some account where it might temporarily be hidden. To determine whether or not these personal checks were being juggled by the cashier Gard, as the grocer's bookkeeper, found a pretext to send to the bank for a record of some personal checks of Compton's which he had handled a few days earlier. The call was made while Compton was out to lunch, and the checks could not be found. Through another dealer Gard succeeded in getting a second similar request made with the same results. He concluded that Compton was at

least juggling his personal account and charging the amount of his personal checks to some other account, probably loans and discounts.

In various ways the special agent found opportunities, even without seeing the books of the bank, of demonstrating to his satisfaction that the accounts were being juggled. This was particularly true of new deposits. When a cashier is particularly hard pressed he may resort to a manipulation of the accounts of current depositors. The system is the simplest in the world. When a depositor hands in his money, the cashier enters the amount in the pass book of that individual as a receipt. Then, instead of entering the money to the depositor's credit, the cashier puts it into his pocket. Thus there is nothing to show for the transaction but the entry in the pass book, and that may not be presented for a long time. The cashier chooses for spoliation the accounts about which inquiries are least likely to be made. As far as the books of the bank are concerned they are as though the deposit had never been made, and the bank examiner, therefore, has no way of discovering the shortage.

Gard, through the store for which he worked, made several deposits, and, upon one pretext and another, sent to the assistant cashier of the bank for the record of them in the absence of Compton. They did not show on the account of the grocery store and the matter was passed over as a misunderstanding. But a second avenue of misappropriation thus was discovered.

In this way the special agent was able from the outside to get very good leads into the condition of the bank and to determine the manner of its looting when the facts might not have been obtainable by an expert working from the inside.

Gard's case was about completed and the Department was ready to act when the dramatic denouement came. Arson, suicide and flight are the three events most to be expected when the funds of a bank have been misappropriated. The young special agent was watching for any of these at the time of the anniversary party given by the banker. It was in preparation for any of them that he watched so late on that occasion.

On the afternoon which preceded the entertainment Gard was working over his books at the store and at the same time keeping an eye on the bank. An

hour after closing time at the bank he saw Compton come out of the side door with two books of the institution under his arm. He could make out that one was loans and discounts. He surmised that they might be records that were to be destroyed—probably the books that showed his guilt.

When from the hillside Gard that night saw the silent car stop back of the bank and the flames subsequently break out, he knew what had happened. These were accomplices of the cashier who had probably looted the bank of any remaining funds and, according to agreement, had set it on fire that the incriminating records of the cashier might be destroyed. The wily cashier, however, had made sure that the books that showed his guilt would not be found, in case the plan was not an entire success. He had removed them himself, but had not as yet destroyed them for he saw no probability of coming under immediate suspicion. Likewise had he neglected to destroy certain correspondence that later connected him with the parties found to have committed the arson.

The books taken from the banker's house were found to be the personal ledger wherein should have been entered deposits, and the loans and discounts ledger in which account Compton had entered the amounts representing all his personal checks. This latter was the account that had dwelt in the mind of Newton, the bank examiner. The letters that Gard had found in the banker's pockets, though unsigned and mysteriously phrased, were later traced to the Dutch Shroder gang. They proved a great aid to McCord, the plain-clothes man, who had slept peacefully through all the clamor incident to the burning of the bank, but who, through them, was able to trace the burglars.

Compton went to pieces when confronted with the proof that his derelictions had been found out. When his townspeople came to know the facts on the following day, they stormed the jail and threatened to lynch him. So determined was their onslaught that the sheriff spirited the prisoner away. In desperation he confessed his crimes and exonerated Lorange, the assistant cashier, who in playing the market had only executed the orders of his superior. Compton lived but six months after his conviction and sentence to ten years in the penitentiary at Atlanta.

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## VIII

### BEHIND CUSTOMS SCREENS

The effrontery of this special agent, you would quite naturally conclude, was ridiculous. You approve of the sort of courage that makes a man willing to tackle almost any big task, but you also recognize the limitations of the individual. David with his slingshot had an obvious chance of success. If he could make a scratch shot and land on the coco of Mr. Goliath he would win. But Special Agent Billy Gard sallied forth nonchalantly against the whole army of Philistines, apparently without even a slingshot.

The Philistines in this case were typified by the customs crowd of the port of New York. That crowd was a ring within the administration of the affairs of that greatest of gateways that had built up a system for diverting a million of dollars a year from the pocket of Uncle Sam and appropriating the money to itself. For twenty-five years the men of this inner circle had steadily strengthened their positions, their hold upon those in authority, their power to shake down importers. There is a great influence to be wielded by a million dollars a year in the hands of willing spenders.

The development of this condition of affairs was based primarily upon the fact that positions in the customs service are dependent upon politics. The men who built up the system of customs graft had secured their appointments because they had political influence. They afterward used that influence and put their easy money back of it. Their power grew. It made it possible for them to dictate appointments more important than their own, even to the collectorship itself. It made it possible for them to bring about the removal of any smaller official who seemed to stand in their way. Men not in the ring learned to wink at many things that they saw. When an emissary of the crooked customs crowd went to an importer, even where he was honest, it came to be known that it was wise to listen to any proposal made. Thus did the machine gather force.

Just one example of the workings of the system. An Italian named Costello was an importer of cheese. He was a successful, enterprising and honest

merchant. One day he received a large shipment from Italy, upon which he expected to pay a duty of \$10,000. The cargo was unloaded and weighed by the customs representatives. That night an emissary of the ring called upon the Italian merchant. He showed the record of weights for the cheese cargo. According to this record Costello would have had to pay a duty of \$5,000. It showed but half the weight in cheese that had actually arrived.

"We save you \$5,000," said the spokesman. "We expect you to divide the profit."

"But I believe in dealing honestly with the Government," said Costello. "I have always done so and I have prospered."

"My tip to you," said the go-between, "is to do as the weighers suggest. They could as easily have charged you overweight as underweight. Besides, you will save much money."

The importer, a foreigner, thus advised by representatives of the Government of his adoption, took the tip and thereafter profited through this official corruption and shared the duties thus saved. Costello received most of his goods as part of what were known as "Mediterranean cargoes," cheese, macaroni, olive oil. The Government was afterward found to have been losing an average of \$20,000 on each Mediterranean cargo that came to port.

The case is typical. The representatives of the Government practically forced the importers into these deceptions. The customs service and commercial New York became permeated with this sort of fraud.

Henry L. Stimson was appointed United States district attorney in 1909 and determined to clean up these customs frauds. William Loeb, Jr., was collector of the port, and of the same mind. The two men got their heads together and considered ways and means. A big cleanup followed and in bringing it about the work of Detective Billy Gard played a most important part.

This young special agent was told to go out and master the detail of New York customs, a service that was new to him, to come to understand them so well that he could place his finger on the points where things were going wrong, to pick out the men in the service who were corrupt, to get his

information in such form that it would be admissible in court as evidence and so strong that it would insure convictions. He was to do all this in the face of the unfriendliness of the service he was to study, despite all the stumbling-blocks that would be put in his way, in opposition to the dominant political machine of the port, in the face of a lack of any special knowledge of the service. Young Gard accepted the assignment with a grin.

"What are you doing on the customs cases?" District Attorney Stimson asked three weeks later.

"Going to the baseball games," said Gard.

"I hadn't noticed any cargoes being unloaded out that way," said Stimson. "How long have you been a fan?"

"Just a week," said the special agent. "Never attended a game before in my life. I sit in the nice, warm sun of the bleachers to the right among the fanatics. I have learned to keep a score card already."

And such were actually the facts. To solve the riddle of the customs frauds Agent Gard was working hard at the task of becoming a baseball fan.

Two weeks he had devoted to the docks. During the first of these weeks he had gone from wharf to wharf and from man to man. He had asked many questions which were but the common places that any individual who wanted to get a smattering of the detail of such a business would have asked. He was received tolerantly by the old heads of the customs crowd. Many agents had been to the docks ahead of him and most of these had been experts. If they began to get dangerous, political influence was used in having them pulled off the job or money was used in having them fail to report any wrongdoing. But this youngster who did not know the simplest things about the customs service—he was hardly worthy of notice.

But during that week Gard had not expected to become a customs expert. His plan for getting results was founded on a different idea. He had been hunting for a man who suited the purpose of his plan, and had found him. This man was an Irishman by the name of O'Toole, who was one of the weighers at a certain dock in Brooklyn. He had in the back of his head all the facts that the special agent lacked. If he could be induced to cooperate, the case might be worked out.

O'Toole was a man of fifty, and had been a weigher for eleven years. Gard had learned many things about him. He had no family, his great enthusiasm was baseball, and his weakness was a certainty of going to the mat with John Barleycorn every third Saturday night. He was a lonesome man, and sour and cynical.

"How long have you been on this investigation?" O'Toole asked Gard before the conversation had gone far.

"Just this week," said the special agent.

"Have you found anything?" asked the weigher.

"Not yet," said the special agent.

"Well, if you want your job to last, don't," said the Irishman.

They discussed the general points in the business of weighing cargoes and the work of the force having it in charge. But the special agent had gathered the idea that O'Toole was not in sympathy with conditions, that he was not a member of the inner circle. Yet an intelligent man serving as weigher for eleven years would know secrets that would be of interest to the Government, and O'Toole was embittered. He should be cultivated.

The days of the following week the special agent spent about the docks dressed as a rough laboring man. The nights he spent in nearby saloons with the acquaintances he had made during the day. The idea in this was to determine what information the laborers were able to pick up and whether they could be used as informers. Many of these were Irishmen, as smart as the best of them, and pretty well aware of what was going on. From the gossip of these men it was also possible to get many a flash on the character of the men higher up. O'Toole they pronounced honest.

"They won't give him a chance to get on the inside," said one, "because they are afraid he might talk when he is drunk."

"He wouldn't take dirty money, anyway," insisted another. "He is an honest man."

The third week the special agent was devoting to the ball park, sitting in the bleachers three seats back of O'Toole. He had determined that the Irishman

should tell him the story of the customs frauds from the inside. He knew that, to get on a basis of sufficient good feeling to bring this about, he must approach O'Toole on the most favorable basis possible. Too much care could not be taken in laying the foundation for his final proposal to the weigher. The man's love for baseball first presented itself. The agent determined to become a fellow fan with him. Thus should he come to know him better and under most favorable circumstances.

On two occasions the special agent bowed to the weigher in leaving the bleachers. He had thus got himself identified in that individual's mind as a fellow fan. It was the end of the second week, however, before the conditions developed that made just the opening that Gard wanted. The situation worked itself out on Saturday afternoon. The game had gone three innings when a flurry of rain threatened to bring it to a close. Then there was a downpour. The people in the bleachers scurried for shelter. There seemed little chance for the game being resumed, and most of the bleacherites filed out under their umbrellas.

Some twenty enthusiastic fans held to their seats on the chance that the game would go on. Among these were O'Toole and the special agent. Both were drenched to the skin. Finally the umpire announced that the game was called, and the stragglers turned homeward. As O'Toole started to go he was greeted by Special Agent Gard.

"By jove," said the young man, "I believe you are a more enthusiastic fan than I am."

"They shouldn't have called the game for a few drops of water," complained the saturated weigher. "But let us go some place and get a drink."

Whereupon the two dripping fans found their way to a nearby barroom and talked of club standings and batting averages while they warmed up with copious drafts of red-eyed liquor.

"Boy," said the weigher, after the fourth drink, "have you got a family?"

"No," answered Gard. "I am not married."

"Go get married," urged the older man. "When you begin to get old and have only a solitary room to which to go and no children nor grandchildren

to give you an interest in the world, there is nothing to live for. You perform your small duties with a great void in the back of your mind. There is no stage setting that makes the petty play seem worth while. The only relief is an occasional Saturday night when you forget."

The special agent began to realize that the weigher was starting on his tri-weekly fling. It also began to be evident that he was of the order of inebriates who indulge in a debauch of self-pity as an accompaniment to their liquor.

"It always seemed to me," said the special agent, "that a man could become so absorbed in his work that it would fill his whole life. Particularly should this be true when he has a task so important as yours."

"Mother of Mary!" exclaimed the Irishman. "Become absorbed in watching a bunch of thieves always at work? Would you like to spend your declining years in sitting idly by and watching your employer and benefactor robbed?"

"Why do this?" said Gard. "Why not lay the whole thing before the right authority and do a worth-while piece of work in cleaning up the service?"

"Yes, and be broken and thrown into the discard to starve," was the reply. "I have seen too many of them go up against the gang. None of it for O'Toole."

"Just one tip I will give you," said the weigher after hearing the special agent's argument in favor of lending his aid to showing up the frauds. "If you will examine the records of Mediterranean cargoes you will find that, during the past ten years, such cargoes have regularly been about twice as heavy when handled by certain weighers as when handled by others. The men whose records show these cargoes always light are the crooks. Those who show them heavy are honest. The solution is merely a matter of mathematics."

With this semiconfidence the agent contented himself. He continued to go to the baseball games, but met O'Toole only casually. In the meantime the records of weighers were being examined. In a week the figures were complete. They showed these men divided into two groups that were far apart with relation to the weights of cargoes. The group that weighed light was the larger.

A few days later Gard saw O'Toole after a ball game. He told the weigher that District Attorney Stimson wanted to see him that night at the Federal building, that the district attorney was under great obligations to him for the tip to examine weigher's records and wanted to thank him.

"O'Toole," said the district attorney that night, "this is a time when the Government needs the aid of honest men. We know that men who would clean up customs graft have, in the past, come to grief. But this is not now true. I have taken up your case with the Secretary of the Treasury himself. That official asks me to inform you that, in case you aid us in cleaning up this situation, your place will not only be made secure but that you should figure that the service will be remembered in the light of your future interests. We know that your record is clean. We want your help. Are you with us?"

Agent Gard had selected the right man. O'Toole, at first timid in his fear of the ring, became an enthusiast over the task of weeding out the graft. The dominance of local politicians had no terrors for him with Washington at his back. The value of all he had learned in eleven years at the scales was made to supplement the lack of customs experience on the part of the special agent. His acquaintance with the customs force in the port made his information invaluable. So enthusiastic did he become that he missed three ball games in succession and went past four Saturday nights without his customary tussle with the spirits that bring forgetfulness.

O'Toole confirmed much of the list of short-weight employees that had been made up. Of the derelictions of many of these he had personal knowledge. With their methods he was entirely familiar and was able to point the way toward the establishing of guilt so it would be admissible as evidence and would secure convictions.

That an individual weigher may report short weights it is necessary that his associate at the scales, a checker, should share in his deceptions, for the checker is a witness of the record of the scales. In the celebrated short weight cases of the sugar scandals, the checker had a steel spring like a corset stay that he thrust into the mechanism of the scale and retarded it, thus resulting in a showing of short weight. But in the case of the Mediterranean cargoes the fraud was less disguised. The scales were



allowed to record the proper weight, but the weigher and the checker, in collusion, divided the figure by two in setting it down. The system was both simple and effective. It worked for twenty-five years.

Gard consulted with O'Toole upon the advisability of using workmen about the docks as informers. The weigher thought this could be done and knew a number of men who might be so used. A laborer, for instance, working about the scales, was able to see the amount that the beam registered at given times. He could easily remember the big numbers, those that represented the thousands of pounds, until he had a chance to set them down. He could thus get a rough record of the weighing of a given half day. This could afterward be compared with the figures of the weigher. A pretty close check could thus be put on the given suspects.

By such methods fairly clear cases were obtained against given weighers and checkers. After much information was gathered certain guilty men would be selected who would be given chances to tell all about their knowledge of the frauds. These men would be given immunity. Thus would a few of the guilty escape punishment; but thus, also, would the Government learn all the details of the frauds that it might be able to provide effectually against them.

Special agents were set to watch every suspect, to learn his manner of life, how he spent his money, whether he could be trapped on the outside. When the Government needed the confession of a given man he would be called upon and talked to in some such manner as this:

"You, as checker, worked with Weigher Smith on a given cargo. The weights shown by the scales Smith divided by two and you passed them. That night a messenger was sent to Costello with a statement of the short weight he had passed. Costello paid half the duty on this short weight. You and the weigher split on the basis of forty, sixty.

"We know of a score of offenses equally glaring on your part. The Government needs you as a witness. Under the circumstances do you not think it would be advisable for you to go with me to the district attorney and make a complete statement of all you know about customs frauds?"

The man that the Government wanted usually came through with all he knew. So were the cases made absolute and so were all the methods of graft revealed. Eleven weighers and checkers were convicted and sent to the penitentiary. Many hundreds of thousands of dollars in duties that had been avoided were assessed against and paid by importers. The Government was lenient with most of these because of its chagrin over the part played by its representatives and because the initiative in the offending had usually been taken by Government agents.

Altogether the cleaning up of the customs scandals in the port of New York was a most complicated task. The work of Special Agent Gard is but a fragment of it, but was vastly important and decidedly typical of the problem in hand and its solution.

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## IX

### WITH THE REVOLUTION MAKERS

The Isla Dolorosa is in the Rio Grande River a few miles below El Paso. It is Mexican territory and is owned by an aged ranchman named Jose Encino. If one should start a camp fire anywhere on the island he would be running a monstrous risk, for so great is the quantity of ammunition that has been smuggled thus far on its way to revolutionary war and buried, that any such fire might cause a huge explosion.

It was in the moonshine of a clear November night in 1911 that a boat drifted down the Rio Grande from the American side, pulled up among the cattails of the north shore of the island and was beached beneath a great cottonwood tree that stood out against the sky as a landmark. Two men stepped ashore and waited in the shadows. Fifteen minutes later two riders splashed into the water from the Mexican side, floundered through the stream that but came to the stirrups, and pointed the noses of their horses for the same huge tree. Nearing it they halted.

"Reyes," said a voice from the darkness.

"Gomez," responded a rider.

The test of this interchange seemed to have been satisfactory for a small, dark man emerged from the shadow of the cottonwood and helped the riders to dismount. One of these later proved to be a woman who was treated with great courtesy by the small man. When the horses were tied the four seated themselves beneath the tree in a spot where the underbrush shut out the world. From the fitful light of an occasional match that served to light the eternal cigarettes of these Mexicans, an observer, if it had been possible for one to have looked on, might have studied four interesting faces.

The bearer of news and evidently the leader of the party was the small, dark man already mentioned. As it afterward developed he was Dr. Rafael Flores of El Paso. Doctor Flores, as the flicker of a match revealed, was a man of some sixty years of age, a thin, wiry individual with refined and almost

classic features. He was a practising physician, a citizen of means and repute in the border city. The man who had come with him in the boat was named Comacho. He was short, square built, deeply pock-marked. He was notorious along the border, particularly in Lower California. He was an anarchist and an expert with explosives and was suspected of having been connected with many dire deeds.

The man who came on horseback was huge and heavy and wore always a red flannel shirt. He it was who had led the assault on Juarez when the troops of Francisco Villa had captured that city early in the Madero campaign. He it was who inflicted some of the early atrocities upon prisoners, who plied the torch and who had to be discouraged in his activities by even his bandit associates. "Red Shirt" Pena he had since been called. His specialty was smuggling fire arms over the border. He had sixty loyal followers in the vicinity of El Carmen.

And the woman! Señorita Josefa Calderon was the name by which she was known. She was from the interior, was something of a mystery never entirely understood, but the current belief was that she was a sister of General Orozco. That uncontrolled chief of rebels was even then stationed at Juarez in command of Madero troops and was vacillating between allegiance to the new president and the leading of a revolt against him. Señorita Calderon, veiled, dark-eyed, slim as a cactus, was thought to be his messenger.

"There is news," said Doctor Flores, as soon as the party had settled itself. "General Reyes is in San Antonio. He arrived at New Orleans a week ago, came on to San Antonio where he was given a great demonstration. He has opened revolutionary headquarters there and every mail brings letters and every train brings messengers assuring him of support in overthrowing Madero. He has arranged for money to finance the movement. The friends of Emilio Vasquez Gomez are busily at work along the border. The American financial interests in Mexico are back of us. We are to open headquarters in El Paso and begin the active organization of our forces."

"But the money," said "Red Shirt" Pena. "We can do nothing until we have money with which to buy ammunition."

"The money," assured the doctor, "is to be immediately forthcoming. In that connection I have a mission for the Señorita Calderon. She is to go immediately to San Antonio to report to the chief and to get the money."

"When the money arrives," said Comacho, the anarchist, "all things will be possible. There is dynamite cached at Newman and more at Alamagordo. Ramon Sanchez has other stores of it at Phoenix. We can start action at half a dozen points and wake every dozing peon in Mexico. But provide the money, doctor, and I will guarantee to wake up two nations. There is little question of getting results either through the overthrow of Madero or intervention by the United States."

"Likewise will the arms begin to cross the river as soon as they may be bought," volunteered Pena. "I have many men ready to travel back and forth and each will carry a gun and a box of cartridges each trip."

"And the señorita?" asked Doctor Flores. "Can she go for us to San Antonio?"

"As the señor wishes," said that young woman. "But where shall I report on my return?"

"Back of my residence," said the doctor, "there is a small building opening into the alley. There are no windows. We will meet there."

After a long discussion of the details of the organization of the junta, this first gathering of the arch-conspirators broke up.

It was a week after this meeting in the Rio Grande that Archie Dobbs, special agent of the Department of Justice, assigned particularly to the Mexican border to look after violations of the neutrality laws, began to notice the frequency with which groups of Mexicans were to be seen engaged in earnest conversation in the streets of El Paso. About the Orndorff hotel there were in evidence groups of wealthy appearing grandees, such as own great ranches beyond the border. Idling about the Mexican saloons were many big-hatted vaqueros, such as make up the armies of any revolutionary movement when trouble starts across the line.

Dobbs went to see Juan Ortego. This young son of Chihuahua was one of the dependable men of Madero. Ortego was a member of the personal secret

service of the new president and his station at El Paso was regarded as important as an outpost of trouble for the government.

"What is in the air?" asked the American special agent of Ortego.

"Revolution," said the Mexican.

"Whom have they got?"

"Reyes, Gomez, probably Orozco, possibly Villa," said Ortego.

"Have you got an informer among them?" Dobbs asked.

"No, I have failed in that respect," was the answer.

"Who is the one military leader that Madero can trust?" Dobbs wanted to know.

The Mexican secret service man recommended General Herrera at Chihuahua. He also stated that Doctor Flores was the Reyes representative at El Paso.

Archie Dobbs acted at once. The Department of Justice has its special agents who will fit into almost any condition that is likely to arise. Billy Gard, for instance, had been assigned to this work on the Mexican border because of his knowledge of Spanish. As he was growing up his father had served for many years in the consular service and Billy had become as a native of the Latin countries. It had been his pride as a lad to assume every characteristic of the land to which his father was assigned and it was probably this dissembling that led him into the detective game. With a bit of a Mexican touch to his wearing apparel and a covering of alkali dust he now became a typical son of the land of the south.

Such was the appearance presented by Gard when, two days after the talk between the secret service men of two nations, he came into El Paso from the South. He bore credentials from General Herrera which it had been possible for him to get through Madero's secret service man, Juan Ortego. He appeared much worn and dust-covered when he began a search of El Paso for Doctor Flores. Having found that gentleman in consultation with a party of ranch owners at the Orndorff hotel, he presented himself and asked for a word in private with the junta chief.

"I am from General Herrera," said Gard. "I bring to you his greetings and these credentials which will assure you that you may treat with me in confidence. He bids me say that he holds General Reyes in a deferential respect which he gives to no other living Mexican. He awaits an opportunity to cooperate with you."

This news was, to Flores, the best he had heard since he organized the junta. He was a visionary enthusiast such as would accept such a declaration without further confirmation. Assurances had come from many sources of support to Reyes who, in reality, occupied an enviable position in the hearts of the Mexican people. But Herrera, the Madero general, who had been regarded as firmly against them! His coming over was too good to believe. The doctor embraced the young man, according to the Mexican custom, and kissed him first on one cheek and then on the other.

Thus did a special agent of the United States become a member of a Mexican revolutionary junta.

Through Gard the Department of Justice soon had all the particulars of the Reyes revolution as far as they were known to the El Paso junta. It knew that the aged general had been promised support from many sources, that he had been provided with considerable sums of money, that arms had been bought in hundred lots from dealers all along the border, that these were being doled out to individuals who were to cross over the border at a given time and form the nucleus of the revolution. In El Paso some two hundred men had already been thus provided. These men were being maintained at boarding houses about town and were being handed regularly small sums of money. Gard met every day with the members of the junta and talked over the details of these matters.

In the little building which had no windows and which stood back of Doctor Flores' house, Gard also met the individuals who were the firebrands of the revolution. "Red Shirt" Pena was always there and was steadily engaged in smuggling ammunition across the border. The pock-marked anarchist, Comacho, was maturing his spectacular plans. Señorita Josefa Calderon, slim as a cactus, came now and then, with a message from Reyes or Orozco. Often she brought large sums of money. Gard once accompanied her to Juarez and used all his charms in an effort to develop a love affair with her,

but in vain. He afterward learned that she was mourning a sweetheart who had died in fighting Madero and was devoting herself to this cause in hope of revenge.

Toward the end of December the plans for the revolution grew near maturity. General Reyes was to slip out of San Antonio and across the Rio Grande where he was to pick up his recruits enlisted on the American side and those on the Mexican side who had promised to join with him. At the psychological moment Pena of the red shirt, and Comacho, the anarchist, were to put on performances so spectacular as to attract the attention of the world.

Comacho had his dynamiting plans well developed. Personally he intended to place a bomb under the international bridge at El Paso. An associate was to perform the same service with relation to the American customs house at Nogales, and the consulate at Laredo was to be blown up.

While Comacho was performing these outrages, "Red Shirt" Pena was to be busied in the fine art of murder. The sheriff of El Paso, Juan Ortego, and Archie Dobbs were the men against whom the capacities of Pena as a killer were to be directed. But failing these he was to run amuck and do whatever damage he could. Any representative of the American army, any Madero official, was to be regarded as a fair mark. The object was to at least create a great sensation to advertise the new revolution, and possibly to bring about intervention. At any rate the border should be awakened.

With all this information in hand the United States authorities were ready to act. They wanted, however, to time their coup in such a way as to have the most discouraging effect possible upon the revolutionists. With this idea in mind they postponed making arrests until the last moment.

The revolutionists were to be taken into custody by Captain Hughes of the Texas Rangers. There were some fifteen of the active plotters that should be arrested and the Ranger force was the best fitted agency on the border to cope with these. Every man was known to the Rangers and all were being kept pretty well located.

The manner of making these arrests was peculiar to this cowboy police of the Southwest. The plan was that, when the time to strike should come,



operations should begin at the little building without windows where the ringleaders of the revolutionists gathered. These should be arrested, none being allowed to escape and give the alarm. They should all be put into a wagon, inclosed with white canvas, such as is common in the Southwest and which would attract no attention in passing through the streets. This wagon, with two or three Rangers aboard and others riding carelessly near it, should then drive about El Paso, picking up a man here and another there until all those wanted were under the white canvas. So was it planned that a clean sweep of the revolutionists should be made in a manner of raid that might seem queer to those accustomed to the methods of metropolitan police but which was intended to accomplish its purpose.

But as far as Billy Gard was concerned, the raid came near coming too late. The position of Gard, the American special agent, in revolution headquarters as a Mexican conspirator, was never one of especial security. There was the danger of his identity being found out, which would not only spoil his case but might result in personal violence being done him, as his associates were not men to trifle with. There was the difficulty of getting his information to Archie Dobbs and thence to the department at Washington without his connection being discovered. Finally there was his part to be played in the arrests.

Eventually the time came to strike. General Reyes had disappeared from San Antonio and was believed to be fleeing for the Mexican border. The order was issued from Washington to intercept and arrest any of the Reyes party that might be found at any border points. The trap was to be sprung at El Paso.

On that morning, December 22, 1911, Billy Gard reported at the windowless building at ten o'clock. Doctor Flores was there and was soon joined by Comacho, the dynamiter. Presently a ranchman from Sonora was admitted. Señorita Calderon was expected from San Antonio with additional funds, and Pena and other moving spirits were to drop in.

"Is there any news from General Herrera?" Doctor Flores asked Gard.

That young man reported that the Herrera troops would go over to General Reyes as soon as his forces started into the interior.

"And is señor, the dynamiter, ready to perform his service to the cause of liberty?" asked the doctor of Comacho.

"The noise we will make will be heard from Tia Juana to Brownsville," responded that inflammatory and enthusiastic individual.

"Pena is now on the street ready to strike," stated the leader. "This afternoon Reyes will cross the Rio Grande and, pish! the powder will be ignited."

At this moment a careful knock was heard at the one entrance to the rendezvous, and the doctor, who always sat with his back against this door, opened it an inch. He recognized the man outside and welcomed him. He ushered him inside and began his presentation to those already assembled. He was a revolutionist from Los Angeles who had but just arrived.

The entrance of the visitor would have been of no great importance to the detective but for one fact—he was from Los Angeles. Gard had done much work in Los Angeles and a few of the members of the revolutionary junta there had learned his identity. The visitor was one of that few. If Gard were recognized he would be exposed and in this desperate company would be in a delicate position.

The light in the windowless building was very dim and the stranger had come in from the sunlight. His eyes were not adjusted to the darkened apartment and he therefore did not recognize the special agent when presented to him. Appreciating the reason for this lack of recognition, Gard made an excuse for going out and approached the door. Flores again sat with his back against it. When the young man gave his excuse for wanting to go the doctor waved him aside and stated that he desired that he should hear the report of the man from Los Angeles. Gard dared insist only to a reasonable extent. Doctor Flores would not hear of his departure. Quietly he settled into the remotest and darkest corner.

The man from Los Angeles began to tell of the part he had played in lighting the fuse that was about to start a revolution. His remarks were addressed to Doctor Flores and to Comacho, the dynamiter, an associate of his. The man in the corner was given little attention. But as the talker's vision became adjusted to the darkened room, he turned his glance occasionally in the direction of the special agent.

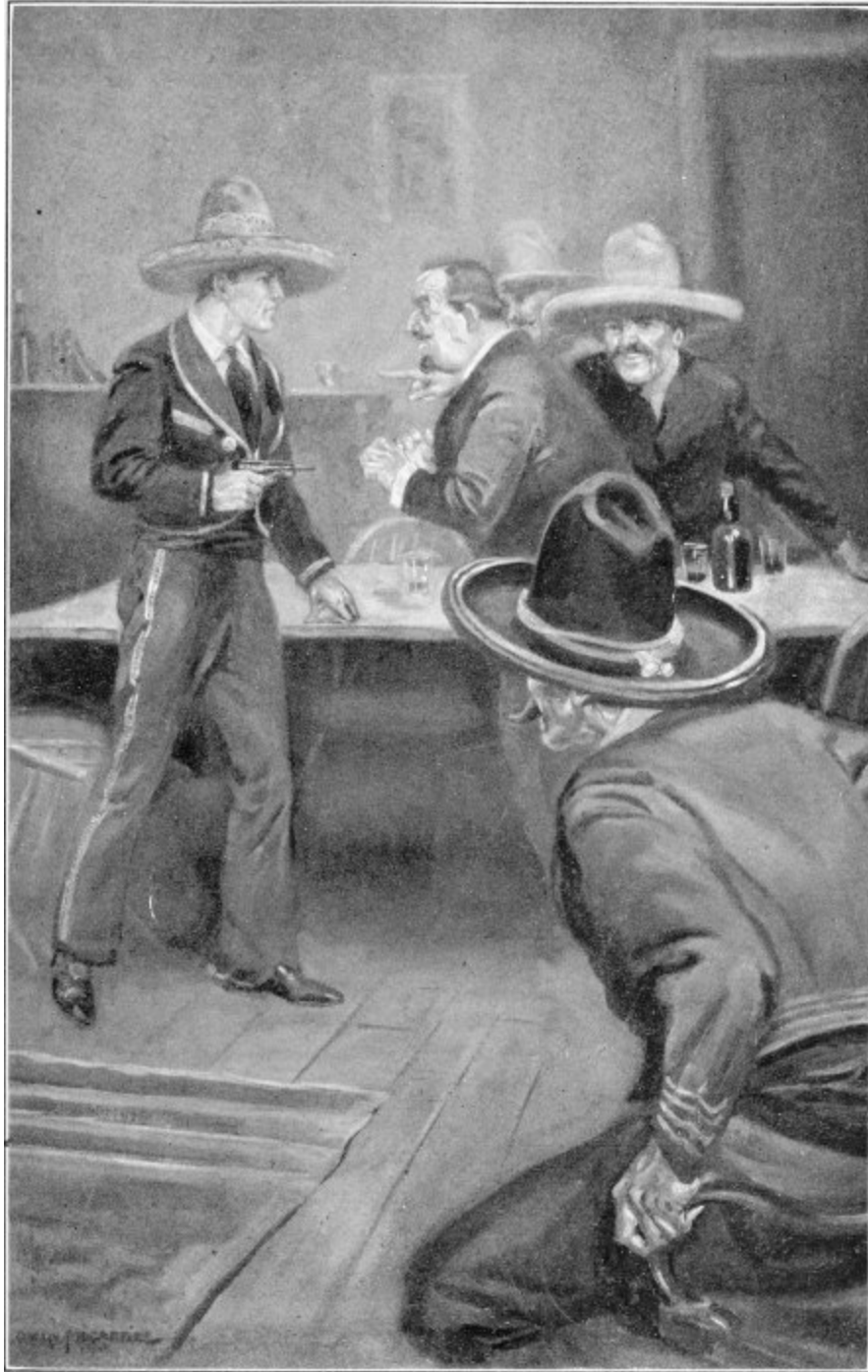
That young man sat as one hypnotized with the possibilities of the situation. He felt very sure that, as time passed, the visitor's eyesight would adjust itself and he would be recognized. His mind ran ahead and saw the scene that would then be precipitated. The thrill of it held him taut, ready for any emergency.

It was the third time that the eye of the visitor passed him that it lingered a moment questioningly, and passed on. He looked at the dynamiter during a long explanation of some detail of bomb making before his glance again returned to Gard. By this time his eyesight had become entirely readjusted.

He started forward, mouth agape. He sprang to his feet. He pointed an accusing finger at the special agent and fairly screamed: "By the Holy Virgin, a spy, a traitor! He is an agent of the perfidious United States. He is a detective, an informer. I knew him in Los Angeles. He peeped into our windows and stole our papers. He has already betrayed you and the cause."

A vile oath was ripped from the throat of the pock-marked dynamiter. The Mexican ranchman stood agape. The nervous little doctor sprang to his feet and started as if to spring at the throat of the special agent. But as he advanced he found himself looking into the muzzle of a big American pistol. He recoiled.

"Don't make a great mistake," said Gard. "What this man says may be true and it may not. Granting that it is true I am then in the best position right now I could hope to be in. If one of you advances a step toward me I will fire. None of you dare fire upon me, as the shots that would follow would expose you. Now sit tight and talk business. What do you propose to do about it?"



**"IF ONE OF YOU ADVANCES A STEP TOWARD ME I WILL  
FIRE"**

**—Page 188**

"Gringo pig of a spy, you shall die and be fed to the buzzards!" hissed the dynamiter.

"Mother of Mary, we have been betrayed!" almost sobbed the little doctor.

"It may not be as bad as it seems," argued Gard, talking against time. "The four of you should be able to get me if you insist on shooting it out. I will get one or two of you, however, and the police will get the rest. I would suggest that it would be wiser for you to let me back slowly out of that door and that you all beat it for Mexico."

The little doctor stiffened stubbornly against the one exit, but before his proposition could be seriously considered there came a loud rapping at the door. The noise of it sounded as though it were made with the butt of a revolver. The Mexicans present stood transfixed with fear. The knocking was repeated with greater vigor. Then a drawling Texas voice sang out:

"Oh, you greasers, lift the latch. This ain't no way to treat visitors."

"Break it in, Captain," called out Gard, who recognized the voice of the Ranger chief. "This bunch is half captured already."

Then came the creaking of door hinges as though a great weight was being thrown against them and, finally, a mighty crash. As the door came in nothing could be seen but the blank side of a thick cotton mattress. Few other things will stop bullets like a cotton mattress and it is therefore an excellent breastwork in an attack which is likely to be met by bullets fired through a door. This was not the first time such an object had been used in Ranger strategy.

Presently the head of a Ranger peered cautiously around the mattress and a request for a parley was made. The Mexicans decided upon discretion and surrendered without a fight. Gard was thus relieved of a very delicate situation.

The four prisoners from the windowless house were loaded into the white-topped wagon. It moved on unostentatiously to other parts of the city and around it the Ranger dragnet tightened. "Red Shirt" Pena was found in the act of boarding a street car to cross the bridge into Juarez. He made fight but a Ranger floored him with a blow from a big forty-five six-shooter. In two hours fifteen of the ringleaders of the El Paso revolutionists were behind prison bars and any expedition that might have been launched in this vicinity was leaderless.

At Brownsville a similar dragnet had operated at about the same time. General Reyes himself succeeded in getting across into Mexico. But the leaders from the American side had been discouraged and failed to follow him even where they were not under arrest. The Mexicans did not rally to the aged general's cause after he entered his native land, as had been expected. Discouraged and heartbroken he surrendered to the Madero authorities a few days later at the little town of Linares, and his revolution was at an end.

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## X

# THE ELUSIVE FUGITIVE

When one individual in a great world goes forth secretly to hide himself and a second man starts forth to find him, it would appear that all the advantage was with the fugitive. Particularly would this seem to be the case when the man in flight is of a high degree of intelligence and is thoroughly informed as to the methods that will be employed in the pursuit.

Yet the detective who knows his business and who sticks to the trail month after month nearly always turns up his man. He may do this by following out, one after another, the probabilities in the case. There is almost no man who will refrain from performing some one of those everyday actions that it is but natural he should take. There is almost no man who will flee without leaving a trail behind himself. If he is the criminal genius who succeeds in doing all these things, there is the element of chance that will turn up some bit of information which will put the vigilant sleuth on his track. For there are many pulses upon which the detective finger may rest long after the criminal gets to feel so secure as to become careless. Particularly is this true of the sleuths of the Federal Government, whose instructions are never to abandon the pursuit of an escaped criminal.

There is the case of Alexander Berliner, for instance. He was a prince of frauds, a man of exceptional ability, a cosmopolitan, one who knew detective methods, a man with money. He had a month the start of Billy Gard of the Federal Department of Justice. He knew that the special agent was after him. He appreciated the danger of a long term in prison if he were caught.

Would you think, under the circumstances, that the detective in the case could make sufficient splash among the tides of humanity that surge around a great world to disturb the tranquillity of Berliner? Let us see how the case developed.

Gard had the advantage of having got "a spot" on Berliner. That is to say, he had seen him. Berliner was a customs broker. His business was to act as agent for American purchasers and European dealers. He knew his Europe and he knew New York. The details of customs regulations and duties to be paid were an open book to him. He spoke many languages and had customers among the wealthiest people in America.

It was when a mere suspicion arose as to the fidelity with which he was paying his duties that Billy Gard, on some pretext, went to see him. A large, upstanding, white-haired man he was—unusually handsome and dominant.

"May I ask," said Gard, "if you think table linens of good quality could be procured from Ireland within six weeks? My sister is opening an establishment at that time and is not satisfied with the offerings here."

"Who is your sister?" asked Berliner, rather more directly than a customer would expect to be questioned by a broker.

"Mrs. Jonathan Moulton," said the special agent glibly, giving the name of a woman friend. "She lives in Seventy-second Street."

"Do you mind if I call her for a confirmation of your inquiry?" said the broker, still noncommittal.

"Such a request is not usually addressed to a prospective customer," said Gard, appearing a bit nettled, "but I have no objection whatever."

As a matter of fact the special agent was very much disconcerted. He had foreseen the possibility of having to use the name of some individual who might afterward be called upon to verify the genuineness of his interest in linens. Mrs. Moulton was a good friend who would be entirely willing to help him in a little deception of this sort, but he had not as yet coached her as to the part she might be called upon to play. He had thought there would be plenty of time later if it became necessary to identify the supposed customer. But Berliner was evidently suspicious of bright young men who called upon him. He evidently knew that he was under investigation. Gard's particular hope, if the broker insisted on calling his alleged sister, was that he would find that she was not at home.

But luck was not with him. Mrs. Moulton herself answered the telephone.



"May I ask," said the broker, "if you will give me the name of the young man whom you have commissioned to buy linens for you?"

The manner in which the question was put, Gard realized, gave Mrs. Moulton no intimation of the situation. He knew she was sufficiently clever to be entirely noncommittal if the broker mentioned his name. But Berliner was too shrewd for this.

"You have authorized no one to buy for you?" the broker was saying. "You are not in the market for linens at all? I see. There must have been some mistake."

Berliner turned to his caller.

"Young Mr. Detective," he said, urbanely, "your work is a bit amateurish. May I present you with your hat? I trust there will be no occasion for our acquaintance to develop further."

The case against Berliner did not come to a crisis immediately. It was two months later that the customs agents reported that he was gone and that they had evidence that he had long resorted to undervaluing the imports of his clients. By getting an article through the customs house at less than its value, he would defraud the Government of just the difference between the amount paid and the amount that should have been paid. But this money was not saved for his customer. That individual was charged the full amount due and the broker pocketed the difference. There was evidence that the Government had lost \$100,000 through these operations.

Because Gard had seen the customs broker he was assigned to the capture of the fugitive. He set about the task methodically.

The special agent diligently searched out every one of Berliner's intimates. There was a wife and brother to begin with. It is the A, B, C of fugitive catching that every man will communicate with some one of his relatives or intimates. It is not human nature to break off every tie. Against the possibility of this fugitive writing Gard established a close watch over the mail of each of the fugitive's relatives and close friends. The postman who delivered mail to each was given samples of Berliner's handwriting, was instructed to report the arrival of any letter that might be suspected of

coming from him, to have tracings made of its envelope, to note its postmark, before it was delivered.

But a month passed and no suspicious letter arrived.

In the meantime every possibility of getting directly on the trail was exhausted. Even in a great city like New York it is difficult for anybody to take a train without having fixed the attention of somebody else. An expressman must be called to get a truck to the station. A taxicab may be used. Servants are aware of a departure. Tickets must be bought. Conductors on trains must take up those tickets.

It is a tedious task to interview innumerable expressmen and ask each if he had had a summons from a certain apartment. The taxicab records of calls are equally confusing, but each may be traced to a driver and that individual may be questioned. Every ticket seller in a city may be seen in a day or two, the photograph of the man wanted may be shown and a recollection of him developed. If the fugitive is of striking appearance, as was Berliner, the chances of his being remembered are increased. If the trail is once crossed the going is easier.

Yet all these and many other devices failed in this case, and chance first pointed the way. The goddess of coincidence made her appearance in a modest motion picture theater where Gard and a friend were killing a bit of time. Among the reels shown was one which portrayed a visit of the President to New York. It began with the arrival at the station, among throngs of people.

"By the Lord Harry!" suddenly exclaimed the special agent. "Would you pipe that gray-haired gent in the foreground. I have been looking for him for a month."

It was Berliner. He had chosen the moment when the station was most crowded to make his getaway. Oblivious to the presence of the motion picture operator, he had stopped for a moment to say good-bye to another man, his brother, as Gard thought. The two had spoken a few words and parted.

"I wonder," soliloquized Gard, "what those two men said to each other."

Then he thought of Jane Gates, the Lily Maid, the deaf copyist at headquarters, the cameo-faced girl, best loved of the special agents.

"The Lily Maid might read the lips of those unconscious motion picture actors," he thought. "They are right out in front."

So it happened that the deaf typist got a half-holiday and she and Gard spent it at the picture show, where her lack of the sense of hearing in no way detracted from her enjoyment.

The scene at the station came on. Gard pointed out the two men in the foreground, who, fortunately, were facing the machine. The deaf girl picked their words from their lips and repeated them in the hollow tones of those who have learned to talk without hearing.

"Send Margaret to London in three months," the customs broker was saying. "I shall not write."

"But how shall we know of your whereabouts?" the brother asked.

"You will not know. I take no chances," was the answer.

"But where are you going?"

"First to Montreal, eventually to Europe. There I will hide and live in peace."

This much of the talk of the brothers was definitely made out. A return for three performances thoroughly confirmed the conversation.

"You are the best detective on the force," Gard told the deaf girl with his lips, thereby making her very happy, for she was full of the enthusiasm of the service.

"But more remarkable than this," he continued, watching for the flush of pink which such sallies always drew to her cheeks, "is that the best detective in the great city should, at the same time, be its very prettiest girl."

The next day the special agent was on the cold trail in Montreal. The fact that a fugitive must eat and sleep is a great help to a detective. All the hotels in a city may be canvassed and are likely to yield results. It was at a little

family hostelry in the suburbs that a gray-haired man of distinction had passed a week. He had been gone nine days. Yes, he had a trunk. The porter knew that it had gone to a certain station. The ticket agent thought he remembered selling the man whose picture was shown him a ticket to Chicago. Dave White was the conductor on the train to that point on the day in question and remembered the gray-haired man.

In Chicago the trail grew warmer. The fugitive had been at the Auditorium but four days earlier, but the porters were unable to recall any of the details of his going away. The special agent asked to see the room Berliner had occupied. It was taken by another guest, but Gard was allowed to explain himself to the successor of the fugitive and was given permission to search the room. A close examination of it developed but one clue. Sticking inside a waste basket were three fragments of a letterhead that had been torn into small pieces. One of these fragments showed part of the picture of another hotel. An arrow, drawn in ink, pointed to a certain window.

Gard took the fragments of the picture of the hotel to a traveler's guide and searched for the house that would compare with it. Eventually he found the duplicate, and it was a Chicago hostelry. He hurried to it. After showing his credentials to the house detective, information was freely supplied. The room in question was occupied by a woman and had been so occupied for two weeks. She was a handsome and stylish red-haired woman of thirty-five. She had been carefully watched for a reason that presently developed.

"Has she received any callers?" asked the special agent.

"But one person, a man, has visited her," answered the house detective.

"What sort of a man?" asked Gard.

"A large man with gray hair," said the house detective. "He is in her room now."

"Will you go up with me immediately?" ejaculated the special agent. "I must not fail to see this man."

"Assuredly," was the response, and they caught the next elevator.

The car they took was an express and was not to stop until it reached the eleventh floor. The next to it was a local, stopping at all floors. The express, going up with the detectives aboard, slackened its speed at the eighth floor while its operator gave some message to the boy on the local which had stopped there to take on a passenger. The cars were of an open-work structure and the passengers in one could see quite plainly those on the other as they passed. As the express passed Gard looked through at those riding on the other car. Imagine his consternation when, not two feet from him, he saw the man for whom he had been searching for months. As he gazed through the checked steel slats of the car side he was close enough to have put out his hand and laid it on his man had nothing intervened. Berliner faced him and, as the car paused, he and the special agent gazed directly into the eyes of each other. This was for but an instant and both cars were in motion again. The detective was being borne rapidly toward the top of the building and the fugitive less rapidly toward the ground.

"There is my man on the other elevator," Gard whispered hurriedly to the house detective. "Have the boy reverse and run down again."

The message was given to the operator, who obeyed instantly and some excuse was made to the passengers on the car. The local had been stopping at each floor and the express passed it and barely reached the ground floor first. There the two detectives stepped out and waited for the coming of the other car.

A moment later it arrived, much crowded, and began to disgorge itself. The two officers waited in instant readiness to capture the man whom they had seen at the eighth floor. But the car was emptied and he was not among the passengers.

"Where did the big gray-haired man get off?" the boy was asked.

"Third floor, sir," he replied.

"You bar the exits," Gard said to the house detective, "and I will get back to the third."

On that floor the hallman said that the white-haired gentleman had run down the steps to the second. Gard followed, but was able to find no one on that floor who had seen the fugitive. He ran hastily about looking for

possible exits, and then instituted a thorough search. He investigated every possible avenue of escape and hastened downstairs to his ally to help cut off the line of retreat. Every possible barrier was put up and the house was well gone over. The gray-haired fugitive had, however, eluded pursuit.

Gard immediately called upon the Chicago police to throw out a dragnet and a general alarm, and this was done. All railway stations were watched with particular care. But none of these efforts were of any avail, as Berliner was never reported to have been seen again in Chicago. Nor was Gard able to get so much as the glimmer of a trace of him nor a suggestion as to where he might have gone.

It was a task of infinite patience that brought Special Agent William H. Gard to London two months later on the trail of a woman whom he had traced half around the world. The Titian-haired guest of the Chicago hotel, the wife of the fugitive broker, here installed herself for a while and lived in a manner that amounted to absolute seclusion.

Then she went to Paris. There she took rooms in a quiet side street and seemed to settle down with some idea of permanence. There was nothing in her mode of life that would indicate that she lived differently from any other woman who was alone in the world and sought quiet. She went out for a long walk every afternoon, purchased the necessities of her establishment, or books, of which she seemed to read great numbers.

Special Agent Gard established a close watch over the house in which she lived. This was easy because there was but a front entrance and apartments opposite looked out upon the street. He determined that nobody should enter this house without being observed. He asked the Paris police to provide him with two reliable men who could watch with him in shifts from the quarters he rented across the street.

A vigil of two weeks revealed absolutely nothing. With the exception of the servant who came at noon each day and remained not more than four hours, no living creature entered the house. In all that two weeks the postman left no mail. Billy Gard seemed to be up against a blank wall. He held, however, that if a man kept awake on the most hopeless job for a sufficient length of time some clue was sure to develop or some idea present itself that would lead toward results.

Gard investigated the maid who worked the daily short shift in the quarters of the red-haired woman from America. He found her a placid and stupid creature who knew nothing nor had intelligence sufficient for his purpose. Incidentally he found that she had secured her place through an employment agency located at a considerable distance. He immediately made use of this information.

The special agent, through the Paris police force, secured the cooperation of the employment bureau. A position that paid much better was offered to the servant of Mrs. Berliner. It was, quite naturally, accepted. That lady, finding herself without a servant, returned to the agency that had formerly provided her with one who was entirely satisfactory. She asked for a second maid.

The employment bureau immediately supplied her demand. The woman who was sent was, in secret, more than she seemed to be. She was connected with the Paris police department and was a detective of some cleverness. Almost immediately she took up her new activities.

Three days later she reported to Agent Gard from America. She had found in her red-haired mistress a woman who led a quiet life that seemed in no way irregular, who followed a normal routine of housekeeping, walking, shopping. She seemed to have no acquaintances. But one thing irregular appeared in the whole establishment. There was one room in the rear of the suite which remained locked. The mistress had stated that it was a storage room. This seemed somewhat strange, as it must look out upon the interior court and therefore be the most attractive room of them all. It seemed peculiar that such a room should be used for storage and, even so, that it should be locked up.

Gard put together the two facts—the locked room and the short hours of the servant—and drew a conclusion. It was as the result of this conclusion that he asked the woman detective to install a dictagraph beneath the table in the sunny little dining room just off the apartment of the locked door. This was easy of accomplishment during the hour of the afternoon stroll of the mistress of the house. The wires of the dictagraph were run across the street and into the watch-tower rooms of the special agent.

When the dinner hour approached that evening Billy Gard sat patiently with the headpiece of the dictagraph securely in place. The first sound that he

caught from across the street was that of feet, supposedly those of the woman of the Titian hair, passing back and forth about the room, then an occasional snatch of a song while she worked. He gathered that she was arranging for the evening meal, the servant having gone home hours before.

Ten minutes passed and then there came over the wire a sound that might have been a bit surprising to the observer of this ultra quiet household, the watcher at the entrance through which none had passed unseen since the day it was rented, had not the listener already developed a theory.

"Well, Margaret," said a full-throated man's voice, as transmitted by the dictagraph, "this is not so bad. I never dreamed that you had the housewifely instincts that would make it possible for you to arrange with your own hands the dainty dinners we are having. I am beginning to think that the man is lucky who cannot afford servants."

"And don't you know," said a woman's voice, "I never enjoyed anything more in my life. For almost the only time I can remember I have a definite occupation. I have to provide our creature comforts. I haven't been so happy in years. I really don't care how long they keep us cooped up."

"I will confess," said the man, "that the novelty has worn off of the view into the courtyard. But it might be worse. For a while they had me thinking quite regularly of striped suits and the lockstep which are part of a life even more confining than this. And here I have you. I am quite content to wait for the atmosphere to clear."

"But I am very sure we are still being watched," said the woman. "I always feel that I am being followed when I go out."

"Very likely," said the man. "But no detective will pursue fruitless quests indefinitely. Even though they know you are here, they will ultimately lose interest in a surveillance that yields nothing. We can afford to wait. The time will come when we can steal away in safety."

"When it is all over," she responded, "I do wish that we could find a way to let those detectives know that you were here under their very noses all the time."



Billy Gard, it may here be set down, was most anxious to learn how this had been possible. He had followed Margaret Berliner to the house when she had first come to see it. He had been notified immediately when she had rented it. From that moment he had watched every detail of her taking possession; had, with the aid of his men, seen everything that had gone into the house. Yet Berliner had installed himself without his knowledge and had been living there all the time.

"It would have been impossible without Archie," Berliner was saying. "A man in a position like mine needs, upon occasion, some one he can trust to do little things for him. We may quarrel with blood relatives all our lives, but they have the advantage of being safe to trust in time of trouble. It is a very small thing to send a man to a rent agent for a key to inspect lodgings and to send him back with the key after they are inspected. But had I not been able to trust Archie absolutely I would not have been able to get in here a day ahead of you and this snug little arrangement would not have been possible."

It was because of what he here overheard that Special Agent Gard, assisted by Coleman of the Paris office and the police of that city, considerately waited until Mrs. Berliner went shopping the following day and were admitted by the woman detective, who was at the time washing the accumulated dishes of the household. They so surrounded the locked door as to make escape impossible and then announced their presence. Gard told Berliner, through the locked door, of the situation that existed on the outside. He suggested that the easiest way was to unbolt the entrance, thereby saving the necessity of breaking it down. Whereupon the customs broker walked out and surrendered, and a very tedious fugitive case was brought to a successful conclusion.

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## **XI**

### **THE BANK BOOKKEEPER**

A twelve-dollar-a-week bookkeeper in a prim New England town, without access to the funds of the bank for which he worked, stole nearly a half million dollars and so juggled the books as to hide the shortage from the directors and from the national bank examiner for a period of two years.

The "faro gang," a band of master crooks, as well organized as though for the development of a mining venture, financed in advance for many thousands of dollars, took the money from the bookkeeper as regularly as he took it from the bank—took it all, but never aroused his suspicion.

The detectives of the bureau of investigation, Department of Justice, unraveled the whole tangled skein and revealed the ramifications of one of the completest schemes for the illicit acquisition of other people's money that the history of the crime of the nation has ever developed.

The first incident that led to the discovery of this monster plot to defraud took place when two most staid and dignified of the solid citizens of Bainbridge, Mass., happened to meet outside the First National bank of that serene suburb of Boston one sunshiny afternoon. Their conversation led to an argument as to whether there was \$186,000 or \$187,000 in the endowment of an orphanage, of which they were directors. To settle this argument they decided to have a look at the books which contained the record of deposits and withdrawals.

So these dignified guardians of this endowment fund approached the cashier's window in the First National bank and asked for the balance in the given account. The official turned automatically to the ledger containing the inactive accounts of the bank, glanced at the balance and automatically reported the figures there revealed.

"Four thousand five hundred dollars," he said.

So was obtained the first revealing flash into the affairs of this institution which had stood as the conservative financial bulwark of the community for a hundred years. Yet a week later, when the principal pass books had been called in, and the experts had completed their examination, the bank was shown to be but a financial shell. Each of those large inactive accounts that lent the institution its strength was found to have melted away. A bank of a capital of but \$100,000, it was soon shown that it had been looted for more than \$400,000 of the depositors' money.

As soon as the shortage was evident a report was made to the Department of Justice, in Washington, which has charge of the prosecution of violators of the national banking laws. Expert accountants and Special Agent Billy Gard of the Bureau of Investigation of that department were immediately hurried to the scene. When they arrived they found that one event had just transpired which came near establishing the facts as to the immediate responsibility of the shortage. The bookkeeper of the bank had disappeared.

The bank was an institution which employed but three men; a cashier, an assistant cashier, and a bookkeeper. The disappearance of the bookkeeper, Robert Tollman, fixed attention on him, and it was ultimately demonstrated that he was the only individual inside the bank who had anything to do with its misfortunes.

Special Agent Gard, who handled the outside work of the investigation, found Tollman to be a youngster of twenty-three, a mild-eyed, likable chap, who made friends easily. He was a member of one of those old New England puritanical families that have become institutions in the community in which they reside. Back of him were a dozen generations of repression, of straight-edged righteousness. At the age of eighteen he had entered the bank, and at twenty-three was receiving a salary of but \$12 a week. There had been no chance for advancement. At twenty-one he had come into \$20,000 as an inheritance from an aunt and this had been the one event of his life, up to that time.

The government's expert accountant immediately established the manner in which the funds of the bank had been taken. As bookkeeper, Tollman did not have access to the cash or securities, and was therefore not considered as being in a position of trust. He was not even bonded. But beneath his eye

there constantly passed those large accounts of the bank which represented its wealth.

It was about six months after Tollman came of age that irregular charges began to appear against the inactive accounts. At first they were modest and infrequent. Steadily they strengthened and grew in size. Eventually it was shown that charges averaging \$5,000 a day were being regularly placed against these accounts. There were weeks during which the bookkeeper had succeeded in abstracting such amounts every day.

The bank accountants were soon able to demonstrate the method of these abstractions. The bookkeeper would give a check against his own account to some individual in Boston and that individual would deposit it for collection. It would be sent through the clearing house and eventually reach the bank in Bainbridge. The bookkeeper was always early at the bank when any such checks were expected from the clearing house. He opened the letters transmitting them, turning the statement of the total amount represented over to the cashier, that a check might be sent by him to the clearing house. It was the province of the bookkeeper to enter the individual checks against the accounts represented. When he reached his own personal check, he charged it to some one of the inactive accounts instead of his own and destroyed it. So had he taken \$400,000.

But the immediate task in hand fell to Billy Gard. It was the apprehension of the fugitive and the recovery, if possible, of all or part of the money taken. It was in the course of the performance of this duty that the ramifications of this case which give it a place among the most unique and complete crimes of the age were developed.

While accountants were revealing methods used inside the bank in getting hold of the money, Gard was busy outside. Tollman, having disappeared, was to be traced. The first step was to establish his habits, to find his associates. To the experienced special agent the groundwork of a case of this sort unfolds almost of itself. There were the people who knew him best in Bainbridge, for instance. They told Gard that the youngster had broken away, of late, from the friends of his youth. He was believed to have gone to Boston for his pleasures. He had a big red automobile which, it was supposed, he had bought with the money of his inheritance and in which he

drove away practically every night. Through the whole of the last year of his peculations, Tollman, the twelve-dollar-a-week clerk, drove regularly to his work at the bank in this car.

In Boston Gard picked up the clues. Tollman was well known at certain hotels and cafés. At one hotel which was rendezvous for sporting people he regularly called upon a very dashing young woman who was registered as Laura Gatewood. It was at this same hotel that he became acquainted with an accomplished individual known as John R. Mansfield, who was well known about McDougal's Tap, in Columbia Avenue, and whose livelihood was secured through alleged games of chance. Miss Gatewood also introduced Tollman to a Mrs. Siddons, an especial friend of Mansfield, who maintained a cozy little apartment in a respectable part of Boston, and who had, in a dress suit case, a portable faro outfit which could be set up in her rooms upon occasion. There was also Edward T. Walls, a large and dominant man, who had, of late, found poker playing on transatlantic liners a rather precarious calling. But, finally, Miss Gatewood arranged meetings between Tollman and "Big Bill" Kelliner, who lived in Winthrop, not far away, was in the wholesale liquor business, in politics, and, as afterward developed, was a dominating spirit in the "faro gang."

With the development of the friendship with Kelliner began the trips to New York. These two would meet two or three times a week at the Back Bay station and together take the train for New York. So frequent were these trips that the members of the train crews came to be well acquainted with the men, and to know something of their movements. They gave clues to the hotels in New York at which these travelers stayed, and this led to their identification by hotel clerks and other facts as to their associates. Eventually all this led to a certain house in West Twenty-eighth Street and a consultation with the New York police as to its character.

It developed that in this house there was always running, on evenings when Kelliner and Tollman came to New York, a faro game. Here Kelliner gambled and at first won and induced Tollman to try his luck. The youngster was allowed to win prodigiously. Again he would lose, but not enough to frighten him away. So was the craze for gambling developed in the bookkeeper. But eventually he lost what was left of his inheritance.

Up to this time he was honest. But at the suggestion of Kelliner he stole from the bank to make good his losses. He lost again, and was in the mill. There was no chance of escape but through stealing more of the bank's funds and gambling in the hope of eventually winning out. The bookkeeper had entirely lost his head. He became consumed with the recklessness of desperation.

In the meantime the Gatewood woman had moved to New York. Also Tollman had become deeply enamored with her. So fond was he of her company, as a matter of fact, that he would often turn over to Kelliner and Mansfield and other of their friends the money with which to gamble, while he visited with Miss Gatewood. The members of the gang would go to some gilded restaurant and dine sumptuously and return to Tollman and report that luck had been against them, and that they had lost all their money. On such occasions the profits of the evening were almost clear to the gang. On such occasions, so the members of the train crew back to Boston reported, "Big Bill" Kelliner would sob out his apparent grief, because of his losses, on the shoulder of Tollman. The latter was thus placed in the rôle of comforter. Kelliner would swear never to gamble again and make his protestations so earnestly that Tollman would become the aggressor and urge his associate on and paint pictures of luck ahead. So adroitly did Kelliner play this game that Tollman had been heard to threaten to break with him because he was a piker.

For two years this arrangement continued. Kelliner, Mansfield, Walls, the Gatewood woman, and other accomplices, maintained themselves as decoys that induced the young bookkeeper to draw ever more checks against his personal account and always extract these and charge them where they were least likely to be missed. Despite his long carouses at night Tollman never failed to be at the bank in time to open the mail and extract the checks that would have betrayed him. Despite the loss of sleep he was never so dull that he neglected any detail of his bookkeeping that would have caused his accounts to fail to balance or to show any irregularities that would have caused the bank examiner to grow suspicious. Unsuspectingly the stern old bank of Bainbridge stood with unruffled front until it became but a financial skeleton, its last spark of vitality wasted away.

But this young bookkeeper of the gambling mania! What became of him? Those other aiders and abettors to his crime! What action was taken in their case?

Special Agent Billy Gard eventually had in hand a complete understanding of the individuals and the methods that were associated with this case. He had reached the necessity of making arrests.

Kelliner was taken into custody. He indignantly protested that he was innocent of any criminal wrongdoing. Mansfield, Walls and Tollman had disappeared. The capture of the latter was of first importance.

The special agent turned first to that primary command of the old-school detective when a crime is committed: "Find the woman." The results obtained indicate that there may be much in the theory. In the case of Tollman the connection with the Gatewood woman was soon established. She was not about her old haunts in New York. No trails were immediately found. It was developed that she had originally lived in Kansas City. When any individual has got into trouble there is always a strong probability that he will return to his old home, another detective theory to which Billy Gard subscribed. It is particularly true with reference to such serious crimes as murder, but it is to a material extent true in all cases that necessitate flight.

Upon this theory Gard went to Kansas City to look for the woman in the Tollman case. It required some weeks to find her. When she was located it was found that Tollman was not with her. He had been there until the night before. They had quarreled and he had gone away. The cause of their quarrel was the fact that Tollman had no money. She had cast him off as a dead husk. She did not know his whereabouts.

In practically every case of otherwise well executed crime there develops some element of unexpected folly—the criminal does some one thing that seems, from what would be supposed to be his standpoint, inexcusably stupid. Gard was therefore not surprised when it developed that Tollman had not so much as a thousand dollars out of all he had taken from the bank. He had made no provision for the time which he must have known would inevitably come when he should be detected. This, however, was not the crowning folly from a criminal standpoint. Despite the dash and cunning and the determination he had evinced in his lootings, he lost his nerve when

his woman threw him out. He purchased, with the proceeds of pawned jewelry, a ticket to Bainbridge, Mass., went there, and gave himself up to the police. His nerve was broken.

The theory of "find the woman" was applied in the case of the third of the offenders, John R. Mansfield, the Boston gambler. The apartment of Mrs. Siddons where the faro game was, upon occasion, set up, and the woman herself, who was suspected of being particularly intimate with Mansfield, were watched. The watch was not effective, however, for the woman disappeared with no one seeing her.

The janitor at the apartment house reported that in going she had taken a particularly heavy trunk. Special Agent Stephens undertook to follow that trunk. He canvassed half the expressmen of Boston before he found the man who had taken the trunk away. This man stated that he had taken it to the Back Bay station at a certain time, and that it had been weighed and found to be in excess of the baggage a passenger might carry free of charge. This singled it out from the mass of trunks. The expressman remembered that it weighed 225 pounds, and that the baggageman had marked it for 60 cents excess. According to the rate book this would have been the excess charge for that weight to New York. The trunk was thus located with sufficient definiteness that its number was procured.

In New York it was found that the excess trunk had been sent on to North Philadelphia with the charge C. O. D. Here the record showed that the trunk had been called for by a Mrs. Price, living at an address on Broad Street, and the agent remembered that she had been accompanied by a man. At this address a Mr. and Mrs. Price were found to be living. Special Agent Stephens watched the Broad Street house until Price came out. He was none other than Mansfield. He was placed under arrest.

With confidence in the old detective theory of the woman, the special agents applied it again in the case of Walls, the one-time gambler on transatlantic liners. This was not done, however, until several suspected individuals in different cities had been shown not to be the man wanted, and many other schemes for the apprehension of the gambler had failed. For Walls was married to a very attractive and respectable woman, who supported herself by keeping a boarding house after his flight. It could not



be discovered that she was in communication with her husband. Finally, there was developed another woman with whom Walls was known to have been friendly, and who had a part in the activities of the faro gang. This woman's correspondence was watched, and it was soon discovered that she was sending letters to and receiving letters from a man in Detroit, Michigan. Tracings of the man's handwriting were made as the letters came through the post office, and when compared with that of Walls, the resemblance was convincing.

The writer of these letters gave his address as a lock box. A special agent went to Detroit, but the box had been given up. Two months later more letters came to the same woman from Grand Junction, Colorado, and also from a lock box. The postmaster was able to describe the man holding the box and the description suited Walls. But he moved again before a detective got there to identify and arrest him. There was a chase of six months on such clues, always through the same woman, but Walls was still at large.

Eventually there appeared among death notices in New York the name of Edward T. Walls. Subsequently Mrs. Walls went from her boarding house in Boston and took charge of the body. Suspecting that this might be a trick to throw them off their guard, the special agents took every precaution to identify the body. Eventually they were convinced that the man they had pursued so diligently was dead. The case was closed.

The three principals in this case, Tollman, Kelliner and Mansfield, were given 15, 18 and 10 years respectively. After their conviction both Tollman and Kelliner talked freely to Billy Gard of the whole case and threw some interesting sidelights upon it. Kelliner told particularly of the inception of the plans of the faro gang. He said it came into being at Atlantic City where he and Mansfield and Walls happened to be spending a week-end. Kelliner at that time already had a line on Tollman, and other possible victims were deemed ready for the plucking.

With these prospective victims in mind the faro gang was organized. Money had to be raised for the fitting up of the establishment in Twenty-eighth Street, which was only used when victims were in tow. This alone cost \$2,000. Then there was the necessary expense money of the members of the gang while they were developing their victims. There must be cash in the

bank to be won when those victims made their first appearance. Altogether it was a business that had to be capitalized for something like \$20,000 before it could begin operations. But, as it afterwards turned out, it was a profitable investment if viewed from the standpoint of Tollman alone; and there were other victims.

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## XII

### PUTTING UP THE MASTER BLUFF

Did you ever go among strangers and pretend to be a more important personage than you really are? Yes? So have I. There are many of us who habitually take a taxicab when we go into a strange city on a modest piece of business. Yet at home we would walk six blocks to save a nickel in car fare. I would not acknowledge to the hotel clerk, nor would you, that an inside room, price one dollar, is what, in my heart, I would like to ask for when I say that three-fifty will be about right. And we tip the waiter, you and I, although we know that he makes twice the money we do, and we let the haberdasher's clerk sell us a shirt for three dollars when we should pay one, and the barber bulldozes us into taking a shampoo when there is a perfectly good bar of soap at home and not working.

For, to ourselves, upon occasion, we like to be the dream people, to see ourselves as the great and dominant of the land, to step out of the everyday commonplace of our existence. We pay the price of our temporary emancipation. We may feel a bit foolish when the bellboy is gone and we are alone with the pitcher of ice water, but in our hearts it is worth the money.

Admitting this tendency to dissemble, how large a front of false pretense could you put up, how important a personage do you think you could make of yourself, if you should find all the gates open and were invited to do your durndest? And if you should, in a moment of abandon, summon courage to introduce yourself as the King of Spain or Anthony Comstock or Lillian Russell, and if you did this in a gathering that you knew to be made up of selected master minds, how well do you think you would be able to sustain the part?

This is the story of a modest employee of the Government, drawing \$2,500 a year, who walked into a convention of millionaire manufacturers and with no basis in fact for his claim, virtually spoke to these dominant and successful princes of industry as follows:

"Gentlemen, you are mere children playing at the factory business. I am the master here. Please be nice to me and tell me all your secrets or I will cut off your supply of raw material."

It was such an assignment as this that one morning came over to New York in the mail from Washington and fell to the lot of Special Agent Billy Gard. The instructions said:

"The Northern Pulp and Paper Manufacturers' Association will hold its convention at the Waldorf on the 19th, 20th, 21st and 22nd. It is suspected of being a conspiracy in restraint of trade. Its deliberations are in secret and the membership is unknown. Ascertain all action of the convention and procure a list of the members of the association."

This action on the part of the Government was occasioned by complaints from publishers of newspapers throughout the country which seemed to indicate that there was an understanding among manufacturers as to prices that should be charged for white paper. If there was such an agreement that prevented competition, it was probably reached through some association of which all were members. There was the Northern Pulp and Paper Manufacturers' Association. Its deliberations and its membership were secret. This fact put it under suspicion. Was it fixing prices?

To answer this question, Special Agent Billy Gard went on his vain-glorious debauch of assuming an importance that was not his due. He unleashed that tendency that is within us all and let it run riot to the limit. But back of the dissembling there was an object to be accomplished.

"You are President Van Dorn of the association, I believe?" said Gard as he presented himself to that individual on the morning the convention was to be opened. "My name is William H. Gard. I am most anxious to attend your meetings."

"Are you a member?" asked the president, an incisive and businesslike man of affairs whose factories produced 40 per cent. of the white paper used by the daily press of the nation.

"No," acknowledged Gard, "I do not belong to the association, but I nevertheless believe that the membership would be glad to have me present."

"If you are a manufacturer you may become a member and attend," said President Van Dorn.

"I am not a manufacturer," smiled the special agent. "I am the man back of the manufacturer. I come to you to-day, but in the near future you will all come to me. It is in the interest of the manufacturers that I want to attend."

"I do not understand," said the president.

"You of course know of the Canadian Northwest Timber Company," said the special agent. (As a matter of fact there was no company of exactly that name.) "I am the representative of that company. You may also know that we have been accumulating lands covered with spruce timber for twenty years. Our holdings now amount to areas equal to the whole of the States of Maine, New Hampshire and Vermont. It is not necessary that I should call your attention to the exhaustion of the spruce of New England, nor of other areas in the United States that have, in the past, been your source of supply for pulp from which to make your paper. The timber supply heretofore available for this purpose is approaching exhaustion. When it is gone you will all turn to the forests that are next most accessible. We have those forests. I therefore say to you that all of you will come to me within the next decade. I am coming to you in advance."

As the young man who claimed to be from the Canadian Northwest talked, the brusque manner of the president of the paper manufacturers gradually relaxed. He stroked his luxuriant, close-cropped whiskers in each direction from the distinct part down his chin and listened with undivided attention. The Canadian timber lands were at that time the matter of greatest interest in the pulp and paper world. These lands had been something of a mystery, for their owners were evidently sitting tight and biding their time.

"I had depended on my subject to interest you," said Gard. "I came all the way from Canada to get acquainted with the men who are going to consume my product. I would like to attend your convention and address it."

Gard's preparation for this approach and bid for a seat on the floor of the convention, had been most thorough. Upon receipt of his orders he had found himself with a week in which to make ready. His first step had been to get in touch with the publisher of a great New York daily who had

reported to the Department his belief that there was a white paper trust. That publisher spent hundreds of thousands of dollars every year for paper. He had therefore carefully studied the paper situation. He had all the facts as to the supply of pulp timber. He knew just the crisis that the paper manufacturers faced. These facts he imparted to Gard and the special agent saw, through them, his opportunity to reach the confidence of the manufacturers and get all the facts with relation to their organization.

The convention was yet a week off. Gard had time to accumulate a sunburn and he went fishing down the bay three afternoons in succession, wore no hat and rolled up his sleeves. He was a young man of a lobster red for a day or two but of a deep bronze at the end of the week. With a touch or two of the woods such as a stout pair of shoes and a hunting knife which he found occasion to produce, just the right impression was created.

"There is nobody that the convention would rather hear talk," President Van Dorn was saying. "There is nobody who has a subject of more interest. But admission to the convention is provided for in the constitution and by-laws. Only members may be admitted. Our work is strictly confidential."

"However, nothing is impossible," insisted Gard. "A constitution can be amended."

"The manner in which it can be amended is also provided for in the by-laws. It cannot be done in four days."

The special agent saw himself bound to fail to get himself admitted to the convention. There was the advantage, however, of having been denied a courtesy to which he had a strong claim and this left the way open to the asking of other important favors.

"Even though you cannot attend the meetings," Van Dorn suggested, "I want to see that you meet all our leading people and in this way you may accomplish practically as much. I would be glad if you would dine with me to-night."

"I shall be very glad to do so," said the special agent. "In the meantime you can probably provide me with a list of your members. In that way I can at least communicate with them all."

"That list is quite confidential," said the president. "I have no copy of it myself."

"But your permanent headquarters in Fourth Avenue will have it," suggested Gard. "Can you give me a note to the secretary?"

To this the president assented somewhat hesitatingly. The note he wrote was also a bit indefinite. It was not instructions to give a copy of the list. It might be so interpreted if the secretary were inclined to be friendly.

So Gard went for his list with some inward trepidation, although the man who pretended to hold the fate of the paper manufacturers of a nation in his hand could afford to show no outward manifestation of it.

The secretary of the Northern Pulp and Paper Manufacturers' Association was a most courteous young Virginian bearing the name of Randolph. The special agent knew the secretary was a Southerner as soon as he met him. The former had originated in Baltimore. After the manner of Southerners the two discussed names and families. The special agent knew a great deal about the Randolph family. In fact, he said, his family had married into the Randolphs in one of its branches. The lines were followed until it seemed that the men might well believe that they were cousins several times removed. Incidentally they had started to be friends in the way most accredited among Southerners.

Gard delivered his note from President Van Dorn and took great pains to explain the position of the Canadian Northwest Timber Company. He made it clear that his people were on the eve of playing a large part in the paper pulp world. He wanted to ask Randolph's advice about certain matters and he wanted to get in touch with some enterprising young man who knew the manufacturers. To such a young man he might offer an enviable business opportunity. In the meantime he would like a copy of the membership list of the association.

It developed that there was but one such list in existence. It had to be dug up from the association's safe and copied. But the secretary was friendly to this one-time Southerner, now of the north woods; he was a young man who knew the manufacturers, and who would take a look at a business

opportunity; he had the note of instruction, somewhat indefinite to be sure, from the president of the association.

Gard secured his list of members. As fast as a taxicab could carry him, he was away to his office, from which requests for prices of paper were dispatched to every firm on the list, in the name of the New York publisher who was helping the Government.

That night the special agent dined with President Van Dorn and other men high in the counsels of the Pulp and Paper Manufacturers' Association. His position was explained and regrets were generally expressed that he might not be present at the meeting. Only the constitution stood in the way. There was no other reason why one so vitally interested in the welfare of the manufacturers should not be a member. Information of a most exhaustive nature should be given him. Even the minutes of the meeting and copies of addresses should be put at his disposal. He should meet all present.

So Agent Gard loafed about the Waldorf for four days. He was regarded, not merely as a master of finance who was the equal of any of the manufacturers attending the convention, but as the man of them all who held the whip hand. Morning and night he cultivated these men, talked business with them, asked them questions. They told him all that went on in the convention, allowed him to read its minutes. He was the most courted man at the hotel when the word got well circulated that he was the pulp king of the Canadian Northwest.

Gard, of course, had an average number of acquaintances scattered about the country and many of these knew of his association with the Department of Justice. In a New York hotel there is always a chance of meeting friends from any place in the world. Gard was therefore not surprised, on the evening of the manufacturers' banquet which brought the convention to a close, to pass in a corridor two old-time friends, men whom he had known in college. They hailed him vociferously as "Gard, old man." It was against just such an emergency that he had used his own name.

The special agent was at the time going in to dinner with Randolph, the secretary, and a member from Buffalo. Nothing would have come of this chance greeting had it not been that a paper manufacturer was standing



beside the two friends of Gard when the latter passed. One of these young men turned to the other and asked:

"What is Gard doing now? I haven't seen him since I left college."

"He is with the Department of Justice," said the second friend. "He is a special agent, a detective working on big trust investigations."

And the manufacturer heard it all. He immediately communicated his information to President Van Dorn. That official lost his urbane equanimity and fluttered about in much confusion, consulting with others in authority. He did not approach Gard, and that young man was all unsuspecting that anything had gone wrong until the time came for after-dinner speeches.

"Before we proceed with the toasts on the program," said President Van Dorn, who was master of ceremonies, "I should like to call the attention of the members present to one matter not regularly scheduled. We have all met, during the week, Mr. Gard, of the Canadian Northwest. Mr. Gard has furnished many of us with facts that seemed to be vital to the interests of wood pulp business. We, in exchange, have given to Mr. Gard much information with relation to the pulp and paper business. I should like to present Mr. Gard to this gathering, if I may."

President Van Dorn paused and looked expectantly in the direction of the young man in question. The situation was such that Gard was required to arise and receive the introduction and, as he expected, make a bit of a speech. He rose to his feet.

"This, gentlemen," continued Van Dorn, "is Mr. Gard. As the representative of the Canadian Northwest Timber company you have unbosomed yourselves to him. He is, in reality, a detective of the Department of Justice. You, gentlemen, are under investigation. Will Mr. Gard be so good as to tell us whether or not we are a trust in restraint of trade?"

The young representative of Uncle Sam was taken completely by surprise. He had gone so far with his work without being suspected that he had thought he would get all the way through. But he had all the time discounted the possibility of being found out and was therefore entirely prepared.

"I plead guilty as charged," he said, bowing profoundly and grinning somewhat sheepishly and boyishly. "You, gentlemen, have been, as we say in sleuth circles, 'roped.' You have told your secrets to the investigator unknowingly.

"I most humbly apologize for the imposition. I was working under instructions. Unless it can be shown that your association is in restraint of trade nothing will come of the investigation. If you are a conspiracy you will deserve what you get.

"If I may be pardoned for talking shop I will tell you just your position with relation to the Government. What the Department of Justice wants to do with such people as you is to go to you frankly and ask you to lay your cards on the table—to open your books to the examination of our experts. Before this is done it is sometimes wise to get a look behind the screens before the stage is set for the play. I have been taking that peep.

"Four days ago, for instance, I secured a list of the membership of this association. That night, in the name of a certain newspaper publisher, letters were written to every member asking for quotations of prices. The price lists are in the mail by this time and coming back to us. Now, if there is a great similarity in those prices, suspicion will be aroused. It is better that this and other tests be put upon manufacturers before they are aware that an investigation is on.

"But now we are in the open. To-morrow I will call upon the association to produce its books. It need not respond to that call, but if it is honest there is no reason why it should not. It may be that I will ask individual members to show their accounts and correspondence. In the end we will be very well acquainted. I trust that we may then be as friendly as we have been during your convention and my deception. I will now bid you good-night."

Gard's work "under cover" was completed. It was but an incident in the relations between a great industry and the Government. The next week the books of the association were thrown open to the Government. President Van Dorn, whose factory was the largest of them all, volunteered access to his records and others followed suit. So was an era of fair dealing inaugurated.

This all happened years ago. The fidelity with which the special agent laid the basis of his deception is proved by the fact that many of these manufacturers are now getting their pulp from the Canadian Northwest. The name of Gard does not, however, appear among the list of officers of any of the companies supplying pulp. The young man is probably now off on the trail of some other real or suspected violator of the Federal statutes, meeting new emergencies, gaining new experiences, playing a modest but not unimportant part in the big and vital affairs of the nation.

THE END

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